Trial Transcript

Case Number: CGC-21-594102
Date: April 17, 2025

In the matter of:

FRANCISCUS DYLAN ROSARIO v SUBHI ABDELHALIM, et al.

TRIAL

Day 8

CERTIFIED COPY

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IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN FRANCISCO - UNLIMITED
BEFORE THE HONORABLE GARRETT L. WONG
DEPARTMENT 504

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

vs. Case No. CGC-21-594102

SUBHI ABDELHALIM;
INDIVIDUALLY, AND DBA
SONOMA LIQUOR, DOES
1 TO 50,

Defendants.
_____/

REPORTER'S TRANSCRIPT

THURSDAY, APRIL 17, 2025

PAGES 1 - 150

Location: San Francisco Superior Court
400 McAllister St., Dept 504
San Francisco, California 94102

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SESSIONS

	PAGE
THURSDAY, APRIL 17, 2025	
MORNING SESSION	5
AFTERNOON SESSION	79

INDEX OF WITNESSES

	Direct	Cross	ReDirect	ReCross
FRANCISCUS DYLAN ROSARIO				
	17, 79			
SUBHI ABDELHALIM				
BY: Mr. Rosario	91, 116		135	
BY: Ms. Navaratnasingham		132		

INDEX OF EXHIBITS

		For Identification	Admitted
Plaintiff			
20	(Recording)	100	

April 17, 2025 San Francisco, California

PROCEEDINGS

THE COURT: We are back in session in the matter of Rosario versus Abdelhalim. The record should reflect all parties are present.

Ms. Navaratnasingham.

MS. NAVARATNASINGHAM: Thank you. Good morning. Your Honor, I just wanted to touch briefly based upon how yesterday went. I know there is a lot of latitude in the Court given to Mr. Rosario.

Mr. Rosario requested and this Court ordered that the matters of liability and causation be bifurcated from damages.

So I wanted to address the issue of any testimony related to emotional distress or the sequelae of his injuries.

He testified as to what he thinks his injuries are. I don't think it is appropriate for the jury to hear now. That is better addressed in the damages phase, should we get there.

So I wanted to make sure Mr. Rosario is aware of my concern and that is because this has been prolonged. I just want to make sure he -- at least my perception of the scope of testimony is noted.

MR. ROSARIO: Noted. Today we are better prepared. Yesterday was quite an emotional (inaudible) relationship with me, Your Honor, and today I have a sequence and the timeline and those

things, and will be stepping through those as you had asked.

THE COURT: Do you still plan to give a narrative?

MR. ROSARIO: Yes, Your Honor.

THE COURT: What I will say to the jury this morning is that rather than proceeding with the question-and-answer format, that you have elected to provide a narrative to the jurors. We will leave it at that.

MR. ROSARIO: One more question on that.

THE COURT: Yes, sir.

MR. ROSARIO: Since I don't have people here to testify about the medical conditions, we have brought the information which was certified at the subpoenas from the Compex system that has all of those.

Do we have to enter those during the trial or do we provide these to you ahead before the jury arrives, sir?

THE COURT: First, you should provide those materials to Miss Navaratnasingham.

MR. ROSARIO: They have them already.

THE COURT: She has to be shown which ones you are going to offer contemporaneously with your testimony.

MR. ROSARIO: Okay. They are kind of like in there.

I will move on to the next part. When I am discussing about my damages, in a sense, I am not allowed to do hearsay about what the doctors tell me, I have to express my feelings about how my body feels for the jury.

I am not allowed to say, oh, the doctor told me I need to go to the hospital because I am dying, like that conversation yesterday which set me off pretty bad because the doctor told me, literally: You are going to die.

So in order to avoid that kind of hearsay, I have to be able to speak about my feelings, about how my body is feeling.

Unfortunately, she backed me into a corner this way.

Fortunately for us, the San Francisco -- on the point of me dying, the San Francisco Fire Department wrote that in their record about me potentially dying due to this.

So I would be able to enter, through the San Francisco Fire Department, business records clause. So I don't think I will have to get as upset as I did yesterday, but also at the same time, I still want to make sure I am not being admonished for talking about things in a manner that fits within the boundary of not having hearsay from doctors.

THE COURT: Well, the rule is: Any out-of-court statement offered to prove the truth of

the matter is hearsay.

And if -- that statement in the purported business records offered by you from the Fire Department, it is not admissible. It is hearsay.

So the big problem you have here is that all statements that are in these documents are subject to the hearsay rule unless you can find some exception.

The business records exception doesn't get you out from under that hearsay rule. So the problem is if a firefighter said something about mortality or dying or something to that effect, that is simply hearsay, unless you have an exception that you can raise that would allow the Court or would permit you to have that document or that language admitted before the jury.

MR. ROSARIO: So instructions of life and limb that are backed by later documentation for specifically certified business records from hospitals, that they can't point to a cross from the Fire Department, specifically their disclosure about that over to, like I said, the certified documents about the actual information.

THE COURT: It is hard for me to make a ruling until I actually have the item in front of me and I have the context.

I can't do all of that now, we have to do it at trial in front of the jury.

Again, I am telling you that you have to work

from the idea that any statement made in any of these documents, even if they were certified as true, would still be subject to the hearsay rule.

Many times people believe that certain things are admissible under some evidentiary rule. They are. But then there is the secondary problem of what is contained in the document that often is hearsay and then the document is not permitted to be admitted into evidence.

MR. ROSARIO: Portions of those can be redacted, yes, Your Honor, in order to avoid the hearsay clause.

THE COURT: It just depends on what you are trying to offer.

I have to see the context of the piece of evidence that you are seeking to have admitted. Okay.

So we have addressed the narrative issue.

We have addressed emotional distress.

Then I am not going to read this into the record, at least, this instruction. But, Mr. Rosario, it is clear from the earlier instruction to the jury that they may not consider whether any of the parties in this case has insurance.

And there is an instruction that I gave to them yesterday that says: The presence or absence of insurance is totally irrelevant. You must decide this case based only on the law and the evidence.

So that was the California Civil Instruction

105, which I think you have. So you need to remember that.

One instruction that I will give them, but I will change it somewhat, is evidence of settlement. And I am going to tell them that I have allowed you to describe the scene and I gave you some latitude with respect to mentions about what Mr. Abdelhalim purportedly said, but evidence of settlement or offers between the parties cannot be used to determine responsibility for harm. It is as simple as that.

And I am going to tell the jury that this morning; it is one of the first things I am going to do.

So please understand they can only consider evidence that is produced in this case that pertains to the issue of harm.

Whether someone made an offer or not to resolve the matter, if it was that, is not pertinent to the issues in this case.

MR. ROSARIO: Judge Wong, if we are going to potentially put Mr. Abdelhalim on the stand, is there a particular way that you would ask us to approach that?

THE COURT: That issue? You are prohibited from --

MR. ROSARIO: From putting him on the stand.

THE COURT: No. You can put him on the stand. You can call him as an adverse witness. You

may cross-examine him, but you are not permitted to examine him or question him about settlement offers in this matter.

MR. ROSARIO: Yes, absolutely. I stipulate, whatever that is called, absolutely.

One more thing. Officer Orengo has videos, body cam videos.

If we were to use that as well as the 911 call to -- and we are going to impeach Mr. Abdelhalim based upon his statements -- the appropriate manner that you feel that would do that, because there is a video involved -- we brought our own screen, so that way we can share that. It is the same video everyone has, the Defense has it.

So the certification has been provided from Mr. Sobati to make sure that those things were sent and that the Dolan Law firm has provided those as well.

THE COURT: This is how you should do this, all right?

Again, I can't tell you how to run your case.

It seems most -- one of the ways is not the most expedient, but one way of handling this is to simply ask Mr. Abdelhalim the questions that you want to ask him.

He may agree with you or he may disagree with you.

If you want to use the video recording, you

can offer that into evidence rather than trying to examine him piecemeal by way of the video.

Again, I can't tell you how to do this, but if you choose, you may then use whatever his answers are and tell the jury in closing argument to them what differences of opinion you have with respect to Mr. Abdelhalim.

Because having you argue with the witness in front of the jury is simply going to be unworkable for you, that you have acknowledged your courtroom experience is limited, and it may be this is the easiest way of you handling this, simply asking him the questions, and then after he is sat down, after he has been examined by Defense Counsel and then you have an opportunity to redirect, just like everything else, then you can put the video recording on, assuming that there are no other objections, and play it in front of the jury.

Then, rather than having an argument with Mr. Abdelhalim about what was said or not said or trying to prove it to have him concede something on the witness stand -- that only happens in the movies -- so then you come back in closing argument and you point out the differences that took place with his examination and what has been shown by the video recording.

MR. ROSARIO: Understood. I don't want to make it any more than just a couple questions. They

are going to be elegantly placed --

THE COURT: It is your call, sir. I just want to try to put this case in as simply as you can to make your presentation and be comprehensive; however, sometimes, trying to be comprehensive may become an issue because there may be too much detail, and the process that I am anticipating may prevent you from making your case. All right.

Is there anything else?

MS. NAVARATNASINGHAM: Yes, Your Honor. May I address two things?

One, with reference to the instruction that Your Honor just mentioned, that he is going to read to the jury about settlement at the scene, the claim is so outlandish and so untrue that I fear that if the Court addresses that, it is going to give it some credence to the jury.

I am perfectly happy putting Mr. Abdelhalim, when I question him on the stand, and asking him: Did you offer him money at the scene?

And he will say: No.

I am concerned, Your Honor, if we address that this morning, it will give credence to that allegation.

So I would maybe ask we refrain from doing that because it is ridiculous.

THE COURT: Okay.

MR. ROSARIO: That is my testimony. So it

comes down to credibility between Mr. Abdelhalim and me.

THE COURT: No. Her point, her request is simply that she address your issue.

After that, we are not going to be talking about settlement.

MS. NAVARATNASINGHAM: Exactly. Then my second question, Your Honor, is we received documents, still shots of the video from Mr. Rosario which had captions on them, and that is not the original video.

So I want to make sure that is not a version he will play because the excerpts of the original video should be played.

The body cam footage doesn't have captions on it.

THE COURT: What are they, captions? Are they spoken words?

MR. ROSARIO: It is kind of like a karaoke thing when the text is on the bottom. So when they are talking, we had an artificial intelligence, third party -- not by us, but we went through and detected the words and created the closed captioning.

I am an expert in artificial intelligence so this is what I do.

As the person speaks, the word highlights, it is not perfectly accurate, but given that we used their transcript and what is on the screen, we can, essentially, cross tabulate and people can look at the

screen or they can look at the paper and they can use both.

THE COURT: Well, whatever, subtitles or captions on the video recording should be removed, period.

If you want to put it on a piece of paper, you may do so. It is required to have a transcript in any event so that the jurors can use it as a guide to follow the audio recording or the body cam.

MR. ROSARIO: We would like to see a copy of the transcripts to inspect them before the Defense can do whatever and put them forward.

We have a right to see that because if there is a discrepancy from what we have seen --

THE COURT: Sir, it is not evidence. So for both sides, if you are going to have a transcript of some recording, then you need to exchange it, in any event. But secondly, the transcripts -- the jurors will get to keep them but they are not evidence in the case.

And I tell them in no uncertain way that it is not evidence, it is simply a guide, and that whatever they hear on the audio recording or the body cam or what have you is the evidence in the case. Okay.

It is 9:45, sir. We need to go.

MR. ROSARIO: Can we get a copy of their transcript, sir?

THE COURT: Ask them. Don't ask me, sir.

MR. ROSARIO: Thank you.

(Short recess).

(Whereupon, the juror entered the courtroom).

THE CLERK: Good morning, Jurors. Thank you for coming. Thank you for being punctual. If you can put your phones on silent, turn them off, whatever is your preference.

Today I will have Kalene (phonetic) here. She will be with me. I will be stepping out for a moment then I will be back.

We will start in a moment, once we have everybody here.

THE CLERK: We are here on the matter of Franciscus Dylan Rosario versus Subhi Abdelhalim, case number CGC-21-594102.

THE COURT: Very well. We are back on the record in the matter. The record should reflect all jurors are present, all parties are present including the clients and Counsel.

Very well. Members of the jury, this morning we are going to continue with Mr. Rosario's testimony.

He has now elected to give a narrative rather than proceed with the question/answer.

It is his view this may be a little more efficient.

So Mr. Rosario, please resume the witness stand, sir. You may bring your papers with you.

MR. ROSARIO: I presume I am still under oath.

THE COURT: Yes, sir, you are still under oath.

(Whereupon, Franciscus Dylan Rosario, having been previously sworn and examined, resumed the witness stand and testified further as follows).

THE WITNESS: Okay. I guess a statement here real quickly is that Mr. Sobati kind of progressed us quickly through, and I believe that the full magnitude is for me to provide everybody a more -- a direct, less emotive roller coaster ride.

It was very cathartic yesterday. Excuse that. There was a lot of things released through my testimony.

I have collected, to the best of my ability, a written timeline that is going to give us a kind of a front to back and I should be able to move fairly quickly through it because we are not going to get into anything other than purely my personal observations, not what other people said, and the events that are backed by my evidence. So let me start.

MS. NAVARATNASINGHAM: Your Honor, may I have a copy of that document that he is referring to?

THE WITNESS: It is my notes from my memory. It is not something I will submit. It is my reading notes.

MS. NAVARATNASINGHAM: Okay.

THE COURT: It is his work product to the extent we can call it that.

Very well. You may proceed, Mr. Rosario.

THE WITNESS: Okay. On February 4th of 2021, I had -- intending to depart my home or my workplace at 835 Terry A Francois Boulevard. I was heading towards Safeway on Market Street, 14th and Market Street.

And as you all are aware, that is February 4, 2021, the pandemic was in play, and the City had a lots of the Lime scooters, and different scooter-type companies were all over the place. But they were leaving them there for weeks in front of my laboratory.

When I would go out once in awhile they wouldn't be very well charged, they would kind of just be there.

So I had realized there was a little bit of a hack that I could just rent one and just kick scoot it even if the batteries were not operational, if they still worked, I had a bicycle and it was hard to get across the City, so other than that, there were several in the area.

I couldn't find one, so I rented one. The battery was very low and the battery gave out very quickly, and I have that record as evidence, it is kind of a business record. I don't know whether it is

admissible or not.

But the battery went out fairly quickly so I just converted it to kind of kick scooting, or once in awhile the pulse electrical part, it would work. It got me around.

Long story short, I live across the City. And the evidence on my records will show these things, but at about -- that was about 2:18 I rented it.

It died, or the battery was just failing pretty much immediately and so I had to push it or kick it across the city.

That was at about 2:18 and so between 2:20 -- and this is a reconstruction from my estimations of every time that I had traveled to the Safeway over on 14th, my estimations were -- to travel across the City, I have kick scooted across the City before, I have rode bikes since then.

I don't scoot anymore because of this incident, I don't rent them or ride on them anymore. But at about -- between 2:20 and 2:40 p.m. I had traveled about two miles, so about 20 minutes, about an average for somebody who is kick scooting going somewhere.

And normally under, like, you know, power, I would have gotten there, like, about 10 minutes, but kick scooting it was kind of flat for my area, there wasn't any major hills, it was just I went across the bridge on -- I believe it was 5th Street bridge, over

by the ballpark, and so my office was like right on the edge of UCSF right on the water.

So I was going to ride over to the grocery store. And one of the fellows that was working with me is Chris Martinez, I was going to try to stop by his place so it was kind of en route to the Safeway, he had a skateboard shop that was interesting enough, it was actually right across the street from Mr. Abdelhalim's office. It was called Create Skate.

And my business partner Chris Martinez owned a skateboard shop directly across from his liquor store which is on 5th, and Jessie and Chris Martinez's skateboard shop was also on 5th, and Jessie but on the opposite side of the street.

And so I was actually, sometimes -- I -- I can't remember whether I had decided to go and stop by his place, but Chris Martinez had messaged me earlier, so I wasn't sure whether I was kind of re-routing in that area to get over to that area of the city or if I was just continuing on to 14th and where the Safeway was.

I don't know what happened other than that, yeah, normally it would have taken me only about 10 minutes to get there and I was kick scooting so it took me about 20 or 40 minutes.

So as I said, you know, oftentimes I would stop, relax, chill, get off, you know. Even when I was operating electric scooters, I jump off and walk

along, there was a lot of people in the area, or if there were vehicles when crossing streets I don't ride the electric scooter especially -- well, I don't want to talk about the situation about being on the, quote, wrong side of the road going against traffic, which is absurd to me.

But -- so I got to about 2:40 p.m. I am estimating based upon the time that I called Ben Giler at my office, it must have been right around that time, because he said I rang him shortly after 2:40 p.m. or around that time.

And that is when I called. I think I had mentioned that yesterday during my testimony. And so I got to that intersection around 5th and Tehama Street and what happened there, whether I was walking, kick scooting or whatever it was, I just remember where I came to, all right?

And I was on the sidewalk down 5th Street, a few feet from where the stripes and the little yellow, like, bumpy markers are where you come up on to the curb were at, that is where it was, and the scooter was still in the crosswalk and I was on the sidewalk, a couple feet past it next to a fence.

And I was in severe pain. I just knew my back felt like I was getting crushed.

And like I told you guys yesterday, that is when I looked up and, you know, I saw Mr. Abdelhalim looking at me from his van.

I think there was a number of different things that really happened, and actually it really didn't dawn on me about the mechanism and my postulation.

I am an engineer, so the postulation about how I was hit, the way I was hit, the direction I was hit, it finally really clicked with me about, I think it was, late last year, and it was because of the damage on my back.

I have a demonstrative thing to show the people where my back was. It is a skeleton. And I can point it out to them.

Would that be helpful for you guys to understand where it was hurting me?

I won't talk about or try to interpret anything, but I think you guys could appreciate by seeing where and -- exactly where my broken bones were and what was screaming and raging in my mind while I was in pain.

Judge, would you allow that? It is just an anatomy of the human skeleton. It would be easier.

MS. NAVARATNASINGHAM: If it is limited to showing where he experienced pain.

THE COURT: If you don't have an objection.

MS. NAVARATNASINGHAM: To the extent it calls for expert opinion, I object if he is using it to show where he experienced pain.

THE COURT: Very well.

THE WITNESS: I was on the ground --

THE COURT: Do you want to wait until Mr. Keegan brings in the skeleton?

THE WITNESS: Yes, the skeleton, anatomy.

We can permit this --

THE COURT: Sorry. I didn't hear that. You need to speak up a little.

THE WITNESS: I will try to be descriptive as possible for Mr. Souza so he can get this. Bring it and hold it, it is kind of heavy.

Everyone, this is the right arm, and this is the left arm here. This is the skull here.

When I came to, I had excruciating pain all through this area from here through here on my back, (indicating).

It was shooting up my neck and I could barely use my leg and my arm, it wouldn't move, they were frozen up.

And it felt like there was a vice pushing on my chest every time I breathed, it was like -- it was like you breathe and then the vice contracted and then I breathe and it contracted. It felt like there was somebody turning a screw on my chest.

That is where it was. It was right from here all the way down to here, (indicating), and it was just amazing. It was unbelievable pain, it was white, everything, it was just ringing through my ears.

And I thought I was dying there. I thought I

was going to die.

I thought that maybe my -- my -- I knew that -- I guess my lung was compromised, possibly, but I thought maybe I was over reacting, like being a big baby.

So that is where it happened. It was right here, right through this area pretty high up. You know, if I am standing -- I am, like, 5-7 so. And it was isolated, that was the only place, the injury, which matched exactly the height of his van's bumper, the mirror or the lights, and it was along my back. That is where I got hit. So I didn't see anything coming.

It was just, next thing you know, you are waking up on the sidewalk. And that was my experience at that point.

You can put it down and then we can talk about it again.

I didn't do anything wrong. I don't know why, it wasn't my fault for walking through a crosswalk.

So Mr. Abdelhalim struck me while I was walking my scooter in the crosswalk in that area.

The scooter pretty much went down immediately right where I was standing and I was tossed far enough that -- that I couldn't reach my cell phone and the things I had in my -- you know, I had a bag with me that I got thrown onto the ground.

I actually had a speaker and it is here with me, sometimes I would go over to visit Mr. Martinez at his skateboard shop which is literally across the street from Abdelhalim's liquor store and we go over and listen to music and stuff, or we go to Dolores Park and I just chill, you know, and do things that people in San Francisco do.

It was the pandemic and everybody was separating and so it was like it was only like a couple of people that I would even go hang out with because we were trying to make sure that nobody got infected.

And a couple months earlier, a very, very dear friend who contracted COVID had passed so I was trying to stay away from everybody. Sorry about that. It has nothing to do with this.

But the Defendant, when I looked up -- I don't know how long I was blacked out or grayed out.

The weird thing is, from my understanding now, is that you black out, you actually don't know if you black out, right?

I mean if you black out for three seconds you wouldn't know, especially if nothing was changing, if you are sitting in the bedroom.

But if you blacked out for three seconds and a train was coming towards you and then it disappeared, you would see that that object had changed in your conscious mind, right?

I mean, it makes sense. You are blacking out, your conscious mind turns off, you don't see, hear or record anything during that time; your conscious mind comes back on and suddenly you are in a different temporal position.

But potentially, you might be in a different physical place.

So I see his van, this white transit van, and it is blinking towards me.

And I am laying on the ground. I have a map that could help to show people. It is not to scale, but it is an approximation. It has been helping me look at the scene from an objective view, so that way I would be able -- I have been preparing for this for four years, and I had an attorney.

And I have only been preparing for six months now. So now I realize I don't have experts so I have to use demonstrative and common sense to explain these things to you.

But if you could imagine any street in San Francisco -- for those of you who know the street of Tehama and 5th, the area is actually a two-way street with a single lane going towards Market and two or three lanes going away from Market Street, and 5th goes all the way to the bridges.

And so if you visualize that, there is a bike lane going away from down -- away from Market, which, you know, kind of like me, it presumes bike lanes are

two ways. Often, as Officer Fernandez says there are two-way bike lanes, so it is a confusing thing.

But I didn't know that riding on or kick scooting or even walking on that side of a street, I could be killed. It is my fault (inaudible) I didn't know that; or if it is -- if it is not, I don't know.

But I can't speak to the laws. It doesn't seem right. More of that later.

But what happened is that the injuries got -- they got really severe. And it was -- when things are, like, pulsing in white and you are in such pain, I don't recall whether it was at that moment that Mr. Abdelhalim approached me and then got back in his truck and moved and then disappeared or if he just kept on going then came back.

I was in pain, I was trying to stay alive. I was freaked out.

What I do remember is that I looked up and then he was gone, the car, the van, everything, and I was in pain and I didn't know what to do and my phone was back by the curb several feet away from me.

So there is no way I could get up. I literally grabbed the sidewalk and I was pulling and shredding my own fingers to pull myself across the ground to get to my phone to call 911 or whatever. I didn't even think 911. I thought I had to call family because I thought I was dying.

I was worried somebody would walk up, steal

my wallet and I would be a John Doe when they put me in the morgue.

So I am like, well, whatever, I will call my family, let my family know, you know what, I am dying, if they can't find me, look in the San Francisco morgue.

My children all live up in Washington State and, you know, at the time, it was before Victoria and I married, right?

So I was a single man. I was a scientist. The world was on lock down. I was hiding out in my laboratory, my friend just died from COVID here in San Francisco and I was like literally I am going to go to the grocery store, get some food and hide.

And, sure enough, you know, here I am, I am traveling to get across the City and I, you know, pretty much get hit whole scale. That is where we are at.

So the injuries that I got, maybe it was just the fact that I couldn't -- I couldn't think of what to do. I was confused.

I sustained injuries across my entire body from here (indicating) to my toes (indicating), and I touched the crown of my head to my feet. There are essentially systemic injuries everywhere that I suffer to this day still.

I do not have experts so I could not tell you specific words or names of those, but that is,

essentially, how the rules work in the court. But you guys can draw inferences from there.

Mr. Abdelhalim -- remember, this is about 2:40, that I called one of my employees at about 2:40 p.m.

And one of my employees arrived at the scene about 25 minutes later based upon when I called him because I went for the phone. I called him at 2:40.

Mr. Abdelhalim waited until 2:55 p.m. to call 911. For 15 minutes I sat on the sidewalk dying with my crushed ribs, confused, alone, not sure if anyone was going to come for me. Not sure if I was going to see my family or if I was going to live another day.

My ribs, my chest was feeling like it was a vice crushing every single breath I took. And I didn't know what to do. I started yelling for help.

We are going to get to that part in a little bit, about what happened while I was yelling for help while Mr. Abdelhalim was not there to provide the support that he was supposed to do for me.

He was supposed to -- he was obligated, from what I understand, that drivers -- my experience of driving is that if you hit somebody, you are supposed to stop immediately, you are supposed to render aid, you are supposed to contact authorities if there is injury.

You are supposed to, if -- the instance that there is an immediate risk to other people, I believe

that it is warranted that you could move a vehicle, not move the vehicle first and then come back and decide on what you are going to do.

It is pretty much you are supposed to stop and check on the person and call 911 immediately, not decide you will sit out for 15 minutes, take a breather, or go have a cigarette or, you know, call your friends first, you know, while the person is lying there dying. That is not what you are supposed to do. You are supposed to render aid.

You can understand that -- how upset I am on that. I thought I was going to be abandoned to die on the sidewalk. That was my feeling. I was dying.

And, you know, it is hearsay what people told me. I have documents that say -- but whether I can submit them or not, we will see here in a little bit.

But I know what I have and what I got and, you know, that is that lack of aid and coming over to help me, waiting it out.

And then yesterday -- finally, when he approached me -- and the Judge had given me some very specific instructions on how to handle this portion of what happened when he approached me, and I don't want to violate that.

So there was an interaction between me and Mr. Abdelhalim that involved, in my opinion -- my opinion, a one-sided, I guess you would say, implication to avoid me calling the authorities in

lieu of something else. You get it.

So I am walking a very fine line not to mention something that is banned by the Court.

I did not find that -- at that moment, I realized that I was going to die on the sidewalk and this man standing over me was not going to call 911.

I had gotten even more, like, freaked out.

I am, like, what the hell, man? I am, like -- I started yelling louder and louder and he stood over me and I had started yelling "help" then.

I started yelling "help" the best I could with a collapsing lung and my spine.

Finally, I was just laying, going -- I mean, if the shoe were on the other foot, I would -- wow, oh, oh, you want me to call 911 now?

I am, like, oh, my God, like the absurdity of that concept of not calling 911 immediately when somebody is hit, thrown to the ground and is screaming to help; to drive off, hide somewhere for a few minutes while you determine, like, Ohh.

First thing I think about, hey, that is somebody's sister, child, a human being laying there in the street.

That is not a road cone that is just trash.

I am a real human being. I am breathing, I have family, I have children, I have employees, I have business partners. I am a real person. I am not a person you can toss aside, that you can run over

because it is inconvenient on your way back to your work. That is not cool.

So I am sitting there freaking out -- and we are going to get to this next part.

He finally calls 911.

He goes, oh, you want me to cool 911. I am like, oh, my God, I just kept on yelling "help."

Finally, he picked up -- I wasn't sure if he was faking it or not. He goes: Hi, 911.

I said you know what, this is my only chance to tell my family where I am at. Maybe somebody doesn't show. Maybe somebody takes my wallet. They can't identify me, I am a John Doe. They throw me in a hospital, morgue, take your organs out of your body it is done. I was freaked out.

You can imagine the amount of adrenaline and cortisol going through my body.

Now, so he starts -- I can remember I was on a one-sided conversation, I am laying on the ground. I see Dustin Roseman (phonetic) across the street from me. His eyes are like this big. He is freaking out. I am like freaking out. I can barely breathe.

He starts talking and I thought maybe he is not really talking to 911. I yelled out as loud as I could. I said: He hit me with his van.

If there was somebody on the other end of that phone call. My perception at the time -- I am sorry. I didn't know if he was like a hit man, I

didn't know.

I mean, like, hey, let's go harvest some organs today.

I don't know what is going on. All I know is I am suddenly hit from behind, I am on the ground and there is a guy who has been -- and just sitting there. It was almost like -- from my opinion, guys, it was like -- it was almost like a predator watching me die, like some kind of like -- it was disgusting to me. I couldn't believe I was being treated like this by another San Franciscan. All right?

I couldn't believe it. I was astounded that somebody could hit me like this and just leave me there and watch me and sit from his van and come over and do the things -- the avoidance, the attempt to avoid was so profound. It just -- it was visceral to me.

And when he got on the phone with 911, I was adamant to send a message to my children in case I died right there on that sidewalk, because they needed to know what happened to me.

It was an injustice of what happened. And I needed to make sure my kids, my family, my employees, my friends, my sisters, my mother -- who did that to me.

That was the only thing I could do. I could hardly say anything. It was the best I could do to get a breath in my chest.

And my father, he died from small-cell lung cancer because of agent orange and his service in Vietnam. And I remember him having a hard time breathing. He sacrificed his life for the constitution --

THE COURT: Mr. Rosario, come back to the incident.

THE WITNESS: He told me about how it felt.

THE COURT: That is not relevant. Please, sir.

THE WITNESS: Yeah?

THE COURT: That is not relevant. You are getting sidetracked.

You need to focus on the issues that are a part of this phase of the case. All right? Focus on that, please. Come back to that.

THE WITNESS: So about 2:55 -- I am looking at the 911 record -- he called 911 and told them that he hit me with his truck and I yelled: He hit me with his van.

And he said: Well, it was barely anything, to the 911 operator. And it was a lot. It was not barely anything. It was a fatal wound, or what you call a mortal wound, it can kill you. I believe that is what they call it.

A life-threatening wound may be more specifically what we would say today, the colloquial, those things are ancient.

But the concept of, like -- of, like, him telling them, the 911 operator, saying: I am calling for him --

My mind was going everywhere, right? And I hear him say: Hey, I am calling for him.

MS. NAVARATNASINGHAM: Objection, hearsay.

THE COURT: Overruled. It is a party admission.

THE WITNESS: He said this to me, it is on the 911 tape, you guys will be able to hear that.

He said: I am calling for this guy.

And so I thought it was my turn to talk to the 911 operator. The only thing I could think of is saying, oh, my gosh if I die in 10 minutes they are not going to know what happened to me. Obviously, I am dead but they wouldn't have known who had killed me.

So I yelled out, I mustered as much in my lungs as I could. I yelled out. I said: He hit me with his van.

Because this guy had no intention to call 911 whatsoever at all, leaving me there on the ground for 15 minutes while he is contemplating it.

I had enough time to call an employee and ask other people to give my -- my -- I am not sure whether I called my sister -- I called a couple people on the speed dial on my phone and somehow somebody -- I don't know who it was -- somebody walking by on the

sidewalk -- I was completely unaware of where I was at. I had no idea. I had lost all brain -- like everything in my mind blinked out.

I didn't even know what street I was on. I didn't even know I had a scooter. I barely even knew my own name at that moment.

And I called, and somehow or another I got a phone call in before Mr. Abdelhalim even returned to me, before even the police returned to me, early enough to call one of my team members all the way from across town to drive all the way over and pick me up.

You will see in the videotapes, I never touched my phone. So how did one of my team members show up other than I called them?

That is 100 percent proof I was laying on that ground long enough to make a phone call and to send a person over to drive, to grab their bags, get their keys, get in their car, drive all the way across town, park their car, walk over to the scene and find me at 13 to 14 minutes after the hour.

I sat on that ground and called somebody to come get me.

He sat there watching me die like a Kimono dragon sitting there watching its pray to die from whatever they had done to it.

It was surreal to me. My feelings were that this guy is going to let me die and I had to go take care of myself.

THE COURT: Mr. Rosario, move on, please. You have described the scene. The 911 call has been made.

You described what did you. What happened next, if anything?

THE WITNESS: Just pushing through this, okay. This is the first time -- I have been waiting four years to tell somebody this story so I am going to move, okay.

So the 911 gets called. I don't know where he went. He disappeared. And so I started yelling for help. I was yelling: Ow. I was, like -- I mean, I don't necessarily scream like (indicating), I was like, you know -- for me, it was a delivery of things. Words are, you know -- you will hear me on the audio track yelling for help.

It is like I am trying to get up and to take care of myself. You can hear me going (indicating), you can hear it in the background during the audio track.

And they ask him, I believe -- they say: So did you hit a pedestrian with your truck?

And he goes: No -- yeah. And he admits to it again.

So that was like the fourth time that indirect -- he said it three times. He hit me with his truck, twice he said it was barely anything. And then he said -- he admitted to the 911 operator that

he had struck me.

Now, you guys recall he is still claiming to this day that he found me on the sidewalk by myself with -- I was screaming in pain by myself, he never touched me with his vehicle. All right?

He still to this day claims he never touched me with his vehicle.

THE COURT: Mr. Rosario, just testify what happened.

THE WITNESS: Yeah. He then in front of -- you know, in front of me, continued to tell the 911 operator that -- what I think a normal person would do -- I thought it was weird that he had stood way over there hiding in his truck to come back, and I think maybe he had that one glimmer of conscious, like, thought in his mind where he had a consciousness and said: Wow, this person could be dying. I need to call 911 and let them know.

So from that call from 911 where he already was having a hard time telling the truth -- we had talked about this, about candor, about telling the truth -- he -- he alluded and tried to change the story to 911. Then 911 dispatched cars. It was, oh, my gosh, a person is on the ground they have been struck by a vehicle. That is the moment the 911 operator got called and the first responders.

From there, you can actually pick up from where the police then become involved.

And so he hangs up. The police arrived. He hangs up. And at about 2:57 p.m. -- the police were there really fast, within three minutes, all right, they were downtown -- the police start pulling up, the police start pulling up right about 3:00 o'clock.

Is that right Mr. Keegan.

THE COURT: Just testify. You can't ask questions.

THE WITNESS: The memory thing is, I believe it was right around just before 3:00 o'clock that the first officer arrives.

And Mr. Abdelhalim is standing about halfway down the block with his truck where he parked it and he had walked back to me, but the police were driving all the lanes. In the body cam you can see it.

There is no cars whatsoever anywhere, it is pandemic, there is nothing, the streets are completely empty, no reason to move your vehicle out of traffic issues, like he had claimed.

So the police arrived and an officer comes up to me and just starts barking at me right at the moment, you can see it in the body cam.

He starts barking at me. And I am going: I am dying on the sidewalk and officers are trying to establish fault already.

I couldn't believe it. I was saying: Hey, I am injured here. My ribs have been crushed. I am dying. Help me out.

And it was just like I couldn't believe it. I know who it was. I won't say the officer's name. I hope he is off the force soon.

Matter of fact, after this trial, I am going to make sure I put a notice in about who he is, what he did to me while I was laying on the ground literally dying, trying to figure out -- matter of fact, he is the one officer who didn't have a body cam, right?

We all know there was a statement from some officer about me that works to Mr. Abdelhalim's benefit. We all do know that. That is the one that didn't make statement, didn't make a report. I am not going to mention him right now because I think we all know what went down there.

Lucky for Mr. Abdelhalim, he has friends in high places. Let me say this: I couldn't imagine that a person dying on the sidewalk would get barked at by the police, the way he was coming at me super aggressive.

If I wasn't on the ground, I would get back in his face. I am not a weakling that would back down. I am definitely a type A alpha male in my company.

I hire people and I am all about team work, I am like a quarterback of a team in a culture -- whatever. I am not a person to back down. But when somebody is standing over me while I am dying, barking

down at me, demanding that I answer all these questions -- I mean, I am totally confused on what is going on anyways.

I had just came back from blacking out.

The guy is sitting there, you know, trying to avoid accountability, calling -- and I am going on -- what the heck is going on.

I am like: Yeah, yeah, whatever. I am agreeing to whatever he says so I can get the heck away from this officer and these people.

And then the emergency services show up and they are still barking at me, demanding messages while he was standing over there going: Hey, what's up, Officer? And they are all laughing at me, literally laughing at me while I am dying on the sidewalk.

He is lucky he is not dead; literally, in the video, you can see this.

I actually am dying and they are laughing at me, saying: Oh, he is lucky he is not dead. It is disgusting.

THE COURT: Mr. Rosario, explain what happened --

THE WITNESS: I will bring it down. I am sorry.

THE COURT: Explain what happened after the EMTs, emergency services, arrived.

THE WITNESS: So the emergency services arrived. They asked me -- I do need to remember, I

just answered: Yeah, yeah, sure, sure this way, that way, whatever.

They collected information from a man who has just been tossed by a 7,000-pound truck from behind, blacked out, whatever the hell -- whatever goes on with a person in your mind that you are just, like, realizing this. You just want to get the heck away from what is happening.

I am in fight or flight. I am saying I have a fight thing. Usually, I will do that, which is obvious about me. I will stand up for myself. But at that moment, I wanted to get the heck away.

I was that hurt. For me to want to opt to do flight rather than fight, that takes a lot. I am the type of man, somebody comes up, I will protect my family, my team, my everybody.

I am a very honorable man. I was raised by a Marine.

THE COURT: So what happened after the EMTs arrived? They asked you questions. What happened next, as you recall?

THE WITNESS: They told me -- I can't say it because it is hearsay.

THE COURT: Just tell the jury what happened next.

They asked you some questions?

THE WITNESS: They asked me some questions, yeah. They asked me some questions. I can barely

remember. I remember that I could see the video now so I could see what was being asked of me.

It is a kind of an after-the-fact thing.

So it is kind of weird, knowing what happens after something happens, so you don't know what happened during the event but you can go back and you can watch a video yourself while you are completely out of it.

THE COURT: So, Mr. Rosario, from what I gather, you don't remember everything or anything that happened, it is all on the video. Am I correct?

THE WITNESS: No. That is not right.

THE COURT: Then identify what you do remember. Then you can play the video so that the jury can hear what happened. Okay?

THE WITNESS: There were so many people talking to me. There was officers running around.

I didn't know who was an EMT, who was a police officer. I think I mentioned that.

And you are laying on the ground, you are in pain, you are trying to get away from the situation, there is a group of them barking at you, implying things, and they go: Oh, it is your fault.

And I am like: What?

And I remember that clearly. Somebody said: It is your fault.

And I go: What are you talking about?

And after that, I didn't want to do anything

with them.

I realized that there was officers at the scene who were there specifically to blame me no matter what it was, if I am walking or anything, to ensure that Mr. Abdelhalim could get off the hook.

They made sure, they were like -- they established it.

They said: Oh, what did you say?

I said: I was going -- I saw it later, I could see it and I can remember, quasi remember the questions. But the whole thing was specifically to get this thing that: You were traveling the wrong direction it is your fault.

And I am like: Whoa, whoa, whoa.

I am not even capable of even having a regular conversation with the officer. My testimony is not even credible.

Yet you guys are basing off of a man who is literally dying on the ground. A forced interrogation of me to get information so you can get a driver?

What do you guys think -- you know what? And I think about this. They were treating me -- they were talking to me like I was some junky fentanyl addict. I am sorry --

THE COURT: Mr. Rosario, when the officers arrived, someone said it is your fault. What happened next?

Were you in the ambulance? Were you in the

intersection?

What happened next?

THE WITNESS: That officer who never put his video cameras in started saying that to me.

THE COURT: And then what happened, sir?

THE WITNESS: Then they put me on a gurney and they kept on doing it to me over and over. I wanted to get the hell away.

THE COURT: Doing what?

THE WITNESS: Demanding and interrogating me, yelling at me, implying things.

I am like I want to get away from these people.

THE COURT: Were you in the ambulance or were you on the street? Describe it for the jury, please.

THE WITNESS: Yeah, I was on the street when they first started doing it. You could see the videos, they started barking at me. The EMTs were trying to get me away from the situation, and they put me into the ambulance.

And I didn't trust anybody after that. And -- I mean, thank goodness I called one of my employees to come and get me.

I was done with them, all of them. The police, the EMTs, Abdelhalim, all of them. I just wanted to get away from them.

And I stayed long enough for the officers to inspect me, you can see it. I didn't have any

bruises. That is the craziest thing.

My wife will tell you this: I walked away from that, the 7,000-pound truck hit me.

And from the emergency records that I am going to submit in a little bit -- I am not allowed to tell you what is in there but it clearly, states I had a fracture across five ribs.

THE COURT: All right. Mr. Rosario, there is something I don't understand.

You said you walked away. Did you remove yourself from the gurney? Did you have any emergency services, or the paramedics release you from the gurney then you walked from the ambulance? What happened there?

THE WITNESS: Yeah.

THE COURT: Yes?

THE WITNESS: Yeah and no. Then Benjamin Giler showed up and he helped me step down out of the thing. And you wouldn't believe it, but --

THE COURT: No, no. All I am asking you is -- okay. So Mr. Giler is your employee, correct?

THE WITNESS: Yes, that is correct.

THE COURT: He helped you from the ambulance.

THE WITNESS: And I get in the truck and drive off. That is where you last see me in the videos.

Let me see about turning it off. I don't know what I do.

So Mr. Giler arrives, I don't even know the exact time. We can see the timestamps on the police video. But he helps me get away from those crazy-assed cops that were trying to force me -- whatever the hell like story line they wanted.

Of course, I can speak for myself and they got the story line. I didn't agree to it. I was not even capable of giving a statement. But they used that statement against me and they still are today.

So I pretty much think that I have gone through this, yeah -- hold on, one last one to go here.

I have a little timeline. You guys can't see it. I will read from it. Okay.

THE COURT: We will take a break in a couple minutes. See if you can run through that for the jury, please.

THE WITNESS: At 2:55, the first responders get dispatched. That is, I think they dispatch as soon as they got the address at 2:56.

At 2:58, the fire department EMTs arrived and Mr. Abdelhalim walks down the street, doesn't even like even stand around me, like I am not even a human being.

He is not even concerned for me. He walks down by his van and leaves me there.

And remember, I recall that he told the 911 like: Hey, I hit this guy. He said it three times in

there and admitted he hit a pedestrian.

THE COURT: Mr. Rosario, you are repeating yourself.

THE WITNESS: So I was wondering why he didn't come back over to talk to me --

THE COURT: You can examine him on that issue. No. Please tell the jury what happened next.

You were working well, you had a time, 2:55, 2:58. What is the next moment you have recorded there that you want to tell the jury about?

THE WITNESS: That is when that officer, the one who was like, "it is your fault," came into the scene. I started to clam up. I wanted to avoid him. It was rancid.

THE COURT: What time was that?

THE WITNESS: That was right around 3:01, 3:02.

THE COURT: Then what happened?

THE WITNESS: They kept on going. They tried to put straps on my neck.

I was like: Get this off of me.

THE COURT: Who was trying to put the straps around your neck?

THE WITNESS: I don't know. I didn't know what was going on. It was a complete confusion.

THE COURT: Was it a brace?

THE WITNESS: I think as to.

THE COURT: Was this by EMT?

THE WITNESS: Yeah, I think so.
THE COURT: By the emergency service?
THE WITNESS: Now I know it was, yeah, I could see the video. I didn't know who it was at the time. I didn't know if it was police officers trying to choke me out. I didn't know --
THE COURT: Just tell us what happened from what you remember at the time, not what you saw on the video to refresh your recollection, but -- because it doesn't sound like you remember. You were out, correct?
THE WITNESS: It was spotty. Like I said, it was after things -- after seeing the video, the holes start to fill in, it is like weird, right. You have the impressions, things --
But my brain was not accessing or recording anything at the time. I was high on drugs --
THE COURT: So after 3:01, the officer you will not name was interrogating you.
Sometime thereafter, there was a emergency services person, presumably a paramedic, who helped to try to put a brace on your neck. You rejected that.
What happened next?
THE WITNESS: All right. So the guy said "How" -- like, he goes: How fast was the driver going?
And I said: I don't know, maybe five miles per hour.

THE COURT: Who asked that question?

THE WITNESS: It was an EMT. Then they walked over to ask him how fast he was going and he either said "I didn't hit him" or it was -- "Just me, I found him on the street." I don't remember exactly what it was.

All I know is this guy is reporting all of a sudden he had no contact with me: No contact, didn't touch me, didn't hit him.

I am like: Can you imagine this?

THE COURT: Mr. Rosario, get back on track.

THE WITNESS: So the cops come back over and they say: He says -- he says that you -- you didn't -- he never touched you with his van.

Something like this.

And I am, like: What?

And they are, like: Oh, you fell off your scooter. You did this to yourself and you were also going on the wrong side of the street. You just did this to yourself, caused your own injury.

Officer Fernandez said that yesterday. That is where we are at four years later.

THE COURT: All right. Let's take our morning break. Let's come back at 11:10. Remember not to form or express any opinions about this case to anyone. We will see you at 11:10.

(Whereupon, the jury was excused from the courtroom).

(Short recess).

THE CLERK: Remain seated and come to order. Department 504 is back in session.

THE COURT: We are back on the record in the matter of Rosario versus Abdelhalim.

The record should indicate all jurors are present, all parties are present including Counsel and the clients.

Mr. Rosario, do you have any further testimony that you wish to give?

MR. ROSARIO: I believe -- is the next step cross-examine?

THE COURT: Yes, sir.

MR. ROSARIO: Can we do the testimonies? Because that was quite a long session.

Would you like to break my testimony up, possibly?

THE COURT: No. We want you to complete your testimony in one continuous session so that will give the other side an opportunity to ask questions on cross-examination.

MR. ROSARIO: Okay.

THE COURT: You may resume the witness stand and you are still under oath, sir. And if you want to testify further or give a further narrative, you may; other even that, you will be subject to cross-examination.

What would you like to do?

MR. ROSARIO: I would like to finish up the details still outstanding regarding my visit in order to get me the emergency care to save my life and essentially that -- in the case of where --

THE COURT: Why don't you just resume or return to the witness stand and your narrative about what happened.

MR. ROSARIO: Okay.

THE COURT: Very well, sir. You may resume.

The last we heard, I think it was Mr. Giler -- is that his name?

THE WITNESS: Mr. Giler.

THE COURT: -- picked you up.

What time was that, roughly.

THE WITNESS: I believe that it was maybe 20 minutes after 3:00 o'clock.

THE COURT: Okay. So what happened next?

THE WITNESS: It was pretty quick, the whole situation. You guys have to understand, the police came in, arrived about three minutes to 3:00 and were gone by 3:30 or 3:20, 3:30. So it was like a rush job for them to get in, establish fault and leave.

Mr. Giler shows up. Officer Fernandez, I couldn't see him below his mask but he was there, he was just here yesterday talking with us. He was doing his job just collecting information.

Officer Orengo had given him the Defendant's statement. And we will be seeing that video a little

later today, or whatever we can get around to it, I hope.

Mr. Giler then told me -- picked me up -- and they had told him -- well, I can't say what they told him.

Mr. Giler was informed with some information and he then took me to San Francisco General Hospital for a little bit, but there was a large line at General Hospital and it was already -- I was getting real exhausted and I was in too much pain and I wanted to make sure that I wasn't being a big baby about it, maybe I had just, like, a cracked rib or something like that.

I had discussion with the EMT before I got out of the ambulance, and they notified me -- I can't say what they said. How can I say things? Oh, I was -- I was given advisement and my -- my personal, like, body feelings was that, you know, it was -- I didn't know, because there was no bruise, right? I didn't have any lacerations. And I looked good. And they checked my lung and they are like, these things are -- well, these things are internal when your ribs are broken.

So no one can actually see that externally and it can cause this --

MS. NAVARATNASINGHAM: Objection, hearsay.

THE COURT: Sustained.

THE WITNESS: No. A broken rib -- I don't

know how many people heave broken ribs --

THE COURT: No. Just describe what happened, sir.

Don't ask --

THE WITNESS: Yeah. So I went to the hospital and they were full. And so he took me home. And I waited for my wife to show up and, you know -- and that is that; next morning, the pain just continued to get higher and higher and higher and I was waiting for my doctor at One Medical.

And I went in there and I actually got in a fight with my doctor. My doctor goes: Go to ER.

I go: ER is full of people dying from COVID.

She goes -- I just want to get an x-ray to make sure I am not being a big baby.

She goes: I think you should go.

And I am like: Why?

She goes: You got hit by a truck.

I said: Okay.

So she took me to the hospital. So they gave me a note to go to SF General -- to UCSF, and I went to the UCSF radiology.

And I think I had mentioned to you guys, once I got that x-ray, my wife was driving me home and we got several calls from my doctors. And the information --

MS. NAVARATNASINGHAM: Hearsay.

THE WITNESS: No. I am saying the doctor

called me. I have the phone records.

THE COURT: He got the calls.

What happened next?

THE WITNESS: I didn't say anything about what she said.

THE COURT: What did you do, if anything, next, sir?

THE WITNESS: Until we know that I can actually say, I am not saying hearsay, I am just saying someone called me.

THE COURT: Sir, the Court is asking you: What, if anything, did you do next? I did not sustain the objection or overrule the objection.

THE WITNESS: Oh, okay.

The next thing I did is I went to -- I went to Parnassus. I drove to Parnassus and there was a line there all the way down the street going all the way down the hill from the Parnassus hospital.

So Victoria then took me to Sutter. It was dark -- it was getting dark by that time and I had gotten the -- I had finished up at UCSF.

We get in the car, we get my bags. And I knew I was probably going to be in the hospital for a couple days, I got my -- you know, my laptop computer and some other things, and so it was a slow, rolling death.

I knew that I had to get there and I had to find one that wasn't going to be busy and would be

more casual.

I wasn't freaked out. By that time, I was just like: Whoa.

So we just wanted to find one that wasn't going to be inundated. I knew it had to do with my lung and I didn't want to go into a hospital where a lot of people are dying from lung disease, from an infection to the lung.

So I wanted to find one that was chill. So we went to Parnassus. I was -- I was told to go to Parnassus but I can't say -- whatever.

I was told to go to Parnassus. We went to Parnassus, there was nobody there. I went to Parnassus. That was my hearsay instructions.

But I went to Parnassus, no way to get in, the line was all the way down the hill.

So we turned around, we come back down, we go up Van Ness and we stop at Van Ness and Sutter.

I go: Okay, it is emergency room, right? So we go in, get in, it is nice and chill in Sutter. Sutter is a very nice hospital if you have ever been there.

So we get in there and I go to the triage counter and I take -- they take all my information. The doctor comes out and he and I have a conversation -- no hearsay -- and he then performs a x-ray on me and then -- no hearsay -- they put me in an ambulance and shipped me -- like I said, I can't

say what the doctor said.

I can tell you that the doctor himself called an ambulance and sent me to Zuckerberg. And the reasoning that I understand about this is that Sutter is not a trauma hospital that handles, like, gunshot wounds and those type of hospitals, Sutter is not one of those.

The only one we had in the area -- they are building a new one by my office by UCSF. The only one that is truly, truly a trauma hospital is Zuckerberg General.

And so they picked me up at Sutter and they put my in an ambulance and they took me from one emergency room to another emergency room and I got a bypass for the line, which is really crazy. So -- which is good, because there was, like, a line of people all dying from COVID.

So they took me in this side door and I am on the gurney and my chest is -- remember, every breath, it is like a vice, one turn of a vice.

So my chest is being compressed every single turn. And this has been going on now for 24 hours.

I am barely walking. I am completely crooked like this (indicating) leaning over trying to hold myself up. All right.

Broken ribs, chest collapsing on you, breathing, feeling like you are going to die and -- and, you know, it was killing the baby, and nothing

worked, I tried to power through the pain. It did not happen.

So I get taken direct to San Francisco General Hospital Zuckerberg. And they have an amazing trauma unit there.

They drove me past with sirens and everything are coming in fast and they take me into this room. I have never been there before. It is called revival two. And there are two rooms, there are revival one and revival two.

I get there and there is a -- the emergency intake triage people that pull me out of the -- on the gurney and they slammed through the door. It was kind of like in the movies. I know courtrooms aren't like movies but hospitals could be.

But when I got there, they took me into revival two and within 30 seconds this man about your age, sir, walks in and then suddenly there was 15 kids. I am what are all these children here for -- suddenly these kids start grabbing me taking my clothes off, and then I am like they are med students and they are like young, young.

I was like: Whoa. They must have been 18, 19, 20, med students or something like that.

But they started taking my clothes off, sticking stickers to me. And the lead doctor, he says to me -- he actually didn't say anything, but -- so no hearsay.

He -- he tapped them all and then they all vacate and then another guy who comes in and he is kind of -- he was really -- he was really sad, and -- and he works in the CT room where they bring all the cadavers when people are killed on the street and he photographs them to see what is going on inside their bodies and that is connected right between revival one and revival two at San Francisco General.

And I am looking at them and I am like: Am I going to die?

MS. NAVARATNASINGHAM: Objection, hearsay.

THE COURT: No. Hearsay, it is directed to whether he is asked -- to the question -- the question is not hearsay. The response may very well be hearsay.

All right. So you can tell the jury what you asked them, but what they said in response is hearsay.

THE WITNESS: So I asked them if I was going to die. The actions they took, they took me into another room. They put me on another machine. And it was a head clamp and a CT machine. They put me through a couple times.

I didn't mention this but at the prior hospital, at Sutter, Dr. Yamamoto or Yakamoto, ran x-rays on me, and he had -- not saying what people said is weird, but the expression on his face was something else.

He kept on doing this (indicating) and

looking at me, and, like, looking at the x-ray, then looked at me, looked at the x-ray. And the words that he had said, which I cannot say, were exclamatory and he was like, whoa, it prompted for me to be put into a silent running ambulance.

It was really -- it felt really bad. Okay?

So this was the second hospital we went to. We went to Parnassus, we went to Sutter, but in the morning I went to UCSF to get the original x-rays and they told me to go to Parnassus.

Well, okay, the information I got and the people -- the information -- I went to Sutter or Parnassus, Parnassus was full. From UCSF, we went to Sutter, Dr. Yamamoto took the x-rays, he immediately stuck me in an ambulance, shipped me to Zuckerberg, okay?

So now I am at the fourth hospital for the day, so this is -- and this is COVID, right?

And I got all the records, I mean, it is all here.

So sorry, it is almost an absurd story. It was a narrow brush with death for me.

And so I get to -- I guess I go back now to San Francisco General.

They put me on a machine and they photograph me with a CAT scan. And those are available for you guys to review.

I won't tell you what is in them. I am not

an expert. But you can read them yourself. They are business records that were provided to me and they are what they are.

THE COURT: Mr. Rosario, those are subject to the Court's decision on admissibility.

THE WITNESS: Okay. Well, I tell you that I got x-rays from --

THE COURT: Sir.

THE WITNESS: They can't see them but I can talk about what happened.

THE COURT: No, you cannot.

THE WITNESS: They put me in a machine, sir. All right. All right.

THE COURT: All right. They put you in a machine.

THE WITNESS: And they made a business document from the machine. Sorry, I don't understand the rules about -- it is silly. Okay.

THE COURT: Let me reiterate it for your benefit.

All right. Again, we start with the basic principal of hearsay. It is an out-of-court statement offered to prove the truth of the matter.

You are offering or suggesting the doctors and their explanations, from the records about your particular condition, are admissible. They are not.

The only people who can talk about those records are medical doctors because they have the

expertise to do so.

You are not able to do that because you are not a medical doctor. It is simply your statements about what those records show are, essentially, an understanding drawn from what the medical professionals had told you -- including EMTs and anyone else -- as to what your particular condition is.

That is not permitted unless you have those individuals here to explain what they said or did at the time.

They have the requisite expertise.

So, sir, please move on with your chronology.

We want you to stay on track with respect to what happened next.

After you were in triage, what happened next?

THE WITNESS: You can respect the fact that it is very difficult for me to talk about the injury without explaining what a doctor clearly told me to do and then do that.

THE COURT: That would be hearsay.

THE WITNESS: I don't have the money. And I asked for an expert, and you won't assign me one, Mr. Wong.

This is a problem. We are going to continue this problem because I don't have the money to afford an expert. If you can give me one, which you have the authority to do -- but you won't.

So, now we are in this position that I have to tell the jury about something that the rules say that I can't even speak about because it is hearsay, where any person of an educated level -- like this group of jurors we have here, which are very nice and smart -- could probably come up with their own inference, you won't let me show the documents to them.

So I am doing my best to explain something around the rules of the Court.

THE COURT: Very well. The rule is that you cannot discuss what the doctors or medical staff or anyone else said about your condition, period.

The records are not admissible unless you have an expert witness to come in and discuss the matter.

Only the experts, at least in this particular case, can identify what your condition was and so forth.

THE WITNESS: Okay. So --

THE COURT: To the extent that the Court has decided any issue with regard to the appointment of experts, the court has already made its ruling and you have to live with it.

THE WITNESS: Okay. So what we have to provide during this phase -- give me the card, the big one, the one that is folded in half, please.

All right. Yeah. Yeah.

THE COURT: Will you show -- has the Defense seen this?

If it is your notes, very well, continue, please.

Mr. Rosario, one of the things I am going to remind you is I think you are repeating yourself and you need to stay on track. That is one thing.

THE WITNESS: If you are rushing me --

THE COURT: I am not rushing you but I am going to give you some deadline to complete your testimony.

You should finish it by the noon hour today.

That is your direct examination. You have roughly 20 more minutes to give testimony with respect to what happened in this case.

So please proceed accordingly.

THE WITNESS: All right. We are talking about the causation and -- that part, right now.

We are not going to anything else. That is why we bifurcated the case, so that way we can get to a point where you guys get to give me a ruling or, essentially, a verdict on whether the Defendant, indeed, hit me or not, and whether he was liable.

That is why we bifurcated it with the Judge.

THE COURT: Very well. Proceed, please.

THE WITNESS: So what we are trying to do is establish he caused my injury.

But because I am not allowed to talk about

the injury to you guys, you guys have to infer that from what I say, okay?

So you have to -- you know, if they say I am not allowed to present documents, you have to be convinced based upon my testimony, then.

So this is a very, very difficult predicament that I am in.

So what I am going to do is I am going to use every minute that I have with you to share with you and express something to you that the Court -- and because of my lack of money, I am incapable of bringing experts -- the Court refuses to give me an expert, too.

So you guys think of that type of limitation that I have right now to express something to you. They are going to say that I don't have evidence, but I believe that testimony and my expression of it and the -- your ability to be able to determine whether I am authentic and telling the truth -- all right -- that a group of people, including doctors, and giving you descriptions about my experiences at these hospitals would resonate and you guys would believe something, that they are going to say is insufficient.

That is what she is going to say. She is going to say I don't have medical documents because I can't enter them.

What will happen is that will come down -- you guys can make the decision of whether the fact

that you heard -- he admits it. I am not allowed experts, I can't afford them, he is not going to assign them.

So that gives me only one option, to get causation from you guys, is that you guys understand and believe the story that I present despite me being completely limited in being able to present actual documents that are right over there.

THE COURT: Mr. Rosario, you have 20 minutes.

THE WITNESS: Mr. Wong, I am going to tell them what the rules are. You made sure I am going to have to do this. I am going to use the last minute of time to explain to them my testimony of what is happening.

THE COURT: Very well. That is your call. You have till noon to present your case, sir. You may employ whatever time or use whatever time you choose that you decide to put statements before the jury.

THE WITNESS: Mr. Wong is doing the best job with me he can. I am a Pro Per. I am a bit of a wild card. I don't understand the system.

All I can do is understand what I -- what I can appreciate. I don't blame him for the way he is treating me. It is the rules of the Court. He has to abide by them. I don't like it. I might banter with him but I absolutely respect the seat he has and what his job -- role is here. Make no mistake about that. All right.

I want you guys to understand that I have absolute respect for the roll of the Superior Court judges. Okay.

What happened after I went to Zuckerberg and when I was there they held me for three days. Okay?

I was held there for three days; it was that severe. All right?

They -- they -- later that night when I got hit, they -- they took me into a room. There was this nice, young, like, group of young doctors that came over. And they spoke to me. I won't say what they said.

But they took me into this very quiet room and they gave me an injection of something like -- they called it Dilaudid or something, and I relaxed and they came in and prepared me for the surgery.

And I met the doctor who was going to do the surgery. I remember this doctor. She came in, she was about -- she was a little bit older than me, maybe in her mid 50s, and she introduced me to the doctor that did the surgery on me.

It was this young guy, and tall -- I remember that, that something about him. I got the name over there. And he, he is the one who -- they laid me back and then they punctured again through my rib cage here underneath my arm and they stuck a tube --

Evan, can you help me with this?

Hold up the --

MS. NAVARATNASINGHAM: Your Honor, I have to object. This lacks foundation.

THE COURT: Overruled.

And let her state her objection.

MS. NAVARATNASINGHAM: There is no authenticity or foundation of surgery having taken place, Your Honor. I object to this.

THE WITNESS: Otherwise, I would be dead. Of course there is a foundation. I am alive, I am walking around.

THE COURT: Sir, the Court is going to have to make a ruling first before you do anything.

So, Mr. Keegan, before you bring anything up, allow the Court to issue its ruling.

It is overruled.

And Mr. Rosario you may describe what you believe happened to you in the hospital.

THE WITNESS: Okay. Not only believe what happened, but for three days later, I had the tube sticking out of my chest. They punched me right through here, right in this area right here, and they punched a hole through here, and they somehow manipulated several of these ribs that were broken here and they got the air out of my chest from the collapse, the collapsing lung that I kept on feeling like that vice that was squeezing my chest more and more and more.

They stuck this tube in then they stuck this

thing -- they called it a pigtail catheter. I remember when they pulled it out, it was like a curly cue inside my chest, inside my chest cavity. I sat there for three days.

And I woke up and they said they are moving me to intensive care unit. I was in an intensive care unit for three days while they kept a monitor on me.

And I was worried.

They go: Well, this should heal pretty quickly.

There is no worry about me catching COVID or getting infected?

No --

MS. NAVARATNASINGHAM: Objection, hearsay.

THE COURT: Sustained.

THE WITNESS: I was worried about that. And I was moved into -- I was worried and I asked them a question about that. But I ended up being put in a different wing than all the people who were dying from COVID.

So I was in the intensive care unit. I don't remember what the word was, but I stayed there until they released me three days later and my wife and Robert Bloodgood, who works for me, picked me up from the hospital and they took me home.

And I was still in extreme pain. I was given gabapentin and Tylenol. I am allergic to opiates, so I took those and tried everything I could. I mean,

when you are in that type of pain --

The ribs were still -- my back, here, was still excruciating pain. There was nothing I could have done about it. They said they couldn't wrap it or -- I am sorry -- they did not wrap it; not that they said, they did not wrap it, apparently, because it is not possible to wrap ribs, and then everything along my right side hurt including my hip, my neck, my shoulders, my back, everything was sore.

After a couple days later, after being hit by by a 7,000-pound truck, the pain really started to set in.

And the broken ribs were -- were -- it was like a -- it was like -- it was life altering I, will say that, that amount of pain.

The ribs here in the back (indicating) take approximately about 900 pounds to break. Cumulative --

MS. NAVARATNASINGHAM: Objection, calls for expert testimony.

THE COURT: Overruled. You can explore that on cross-examine.

THE WITNESS: Okay. So those are broken, all right?

And, you know, it felt like somebody had taken a sledgehammer for, like, hours to my -- my back, and I couldn't sleep. I was sitting up. My wife got me situated and my laboratory over with

Arvind Patel my CEO, and people started coming by visiting me to make sure I was okay.

I really appreciated that. My children called me and I had -- I opted at the time because COVID and everything, and I did not -- Victoria and I were not married at the time yet.

So I had private, like, medical practitioners come by my place, you know, good friends, and they helped me maintain my pain and get me into a position where I was able to not want to throw myself off a bridge out of pain.

It was pretty serious, what happened there. And most people, you know, you crack a rib, you don't have to go in and have air sucked out of your chest. I experienced that. That is what I experienced and, you know, being held for the three days and constantly coming in and monitoring me.

Let me sleep. I remember that. Every time I would try to pass out they would come in and wake me up. I would be like: What the heck? I need some sleep. They just wouldn't let me sleep the entire time. I don't know why. It beats me.

But every single time, every couple of hours, as soon as my heart rate would go down, they would come in -- or my breathing would go down.

Maybe they were worried about -- I don't know. I won't tell you what they were doing. You guys can probably run some inference on that.

The problem about afterwards is that I had no information, I didn't even know who hit me.

I didn't even know who it was.

Now, usually, from my understanding and from when I learned about driving, is if you hit somebody, you are supposed to give them your insurance information.

MS. NAVARATNASINGHAM: Objection.

THE COURT: Sustained.

THE WITNESS: Sorry. You are supposed to trade contact information about your agency, about your -- not -- about your capacity to be able to work with each other to handle a situation.

I didn't know who hit me. That is my point. I mean, I had no identity from the guy, no phone number, nothing. That is all. And then I got a letter in the mail from some well-funded corporate organization --

MS. NAVARATNASINGHAM: Objection.

THE COURT: Sir, please move on.

THE WITNESS: All right. I got a letter finally finding out who it was -- let's say that -- almost a month later. And then I found out who it was and I didn't know what to do and I am in pain every day.

And the letter from Mr. Abdelhalim said that he did nothing to me and that he had no part in anything to me.

He said that to me, that he effectively had never touched me with his vehicle, in that letter to me he wrote.

MS. NAVARATNASINGHAM: Objection, hearsay.

THE WITNESS: No, it is a letter. I have it. It is not hearsay. I have a letter.

THE COURT: Sir, let me make the ruling. All right?

THE WITNESS: I am sorry.

THE COURT: Quit while you are ahead. The objection is overruled. It is a party admission, assuming it is a document that was signed by your client.

MS. NAVARATNASINGHAM: That is where it lacks foundation. But, okay. I want to make the objection, for the record.

THE COURT: Very well.

THE WITNESS: I did not know who hit me until a letter came in from some arbitrary source; but it was regarding Mr. Abdelhalim. And immediately, it said on there that he does not recognize that there was an injury or touching of my body with him with his vehicle.

That is as about as generic a way I can say it to you guys.

THE COURT: What was that?

THE WITNESS: There was no touching or anything of my body from his vehicle, there was no --

the words are hard to -- okay.

There was no -- would add -- admonition?

Yeah. There was no -- he said that, effectively, he wasn't at cause, straight up, right off the bat, didn't even communicate with me that -- Mr. Abdelhalim gets a letter out to me via different channels. Okay. I am not allowed to talk about those channels. So some channels reached out to me immediately and said: We are not involved.

The police report says that: You caused your own injury.

That is where the other shoe drops, right? My gosh, that is what the cops were yelling at me about when I was at the scene.

I am, look, wow, you think you almost -- you are brushed with death, you go to the hospitals, you get surgeries to save your life and then suddenly, you know -- and the guy calls 911 and on the phone allows me to deliver a message to my children in case I die, you know, and expresses to them his involvement which he and I both know, and then weeks later I get a thing saying: Oh, yeah, by the way, dude, I never touched you.

A letter stating you are on your own. You have medical bills, whatever --

MS. NAVARATNASINGHAM: I object. It lacks foundation.

THE WITNESS: Yeah, I apologize --

THE COURT: Sustained. Sir, your remarks are stricken. Your remarks are stricken.

You have about eight minutes to go before we recess for lunch. Finish up, please.

THE WITNESS: So we are at this place where -- that is where we are at now.

So that happened four years ago, okay?

It happened in February, I think, I believe I got the letter from Mr. Abdelhalim saying that he had no contact with me.

MS. NAVARATNASINGHAM: The same objections.

THE COURT: Overruled.

THE WITNESS: Mr. Abdelhalim, you know, I don't know under what auspicious -- why he even just stopped and came back if he was going to do this. Why didn't he just keep on driving? I would have never known, you know --

MS. NAVARATNASINGHAM: Objection, relevance.

THE COURT: Sustained.

THE WITNESS: Well, the thing is, my testimony is that the feelings that made me go through at the moment in time when I --

MS. NAVARATNASINGHAM: Objection. That is for the damages phase. We discussed that this morning.

THE COURT: Sustained.

THE WITNESS: I was confused as to why your client has problems telling the truth, from one second

to the next.

MS. NAVARATNASINGHAM: Objection.

THE WITNESS: So why he didn't make a phone call to 911 then denies it within 15 minutes.

I don't understand that, that logic.

MS. NAVARATNASINGHAM: Objection, relevance, argumentative. Move to strike.

THE COURT: Sustained.

THE WITNESS: I think we are at a place where I would like to make one last line about this, I guess, the -- we are dealing with just causation.

Mr. Abdelhalim, his business is within a block of where --

MS. NAVARATNASINGHAM: Objection, relevance.

THE WITNESS: Hold on a second.

THE COURT: I will allow him that fact into the record. All right.

THE WITNESS: So I have -- you know, I had one understanding that I don't know where maybe he had gone back to his business or walking back to his business, or whatnot.

What I know is when I got left there on the sidewalk, he wasn't present. And maybe I would have seen his truck later on -- is that -- I look up and you could see the marks from my jacket, from my leather jacket on the front of his truck, and he is --

MS. NAVARATNASINGHAM: Objection, lacks foundation.

THE WITNESS: I am talking about my own experience.

MR. KEEGAN: Oh, come on.

MS. NAVARATNASINGHAM: Excuse me, Your Honor, I have been hearing comments from Mr. Keegan and Mr. Rosario for the last two days and I am trying to be patient and I am trying to keep order in this Court, but it is extremely distracting.

THE COURT: Gentlemen, you will forfeit your opportunity to assist Mr. Rosario if you maintain your conduct as described by Counsel.

You cannot have comments, side comments, interrupt the flow of things.

We want to have Mr. Rosario make his presentation without any further interruption.

Please understand that the Court will enforce a decorum in this courtroom.

If you fail to observe it, there are other consequences that I have already described outside of the presence of this jury.

So let's maintain your composure and let's have Mr. Rosario complete his remarks before we complete the morning hour.

THE WITNESS: My observations for when he hit me, I was looking at that, directly through the window at Mr. Abdelhalim, before he fled from the scene and immediately from where I was, and long before he had done this I am looking through a window and I see with

my leather jacket where I smeared and smudged on the front of his truck.

MS. NAVARATNASINGHAM: Same objections.

THE COURT: Overruled.

MR. ROSARIO: I can see it with my eyes. And what happens then is that Mr. Abdelhalim -- you know, I guess the videos will show you what is going on here. But at this point right now, I couldn't believe where I was at and where we are at still today after four years, that this denial is still going.

So I guess we are at this point, about to break for lunch.

Your Honor, I reserve the right, if something happens and identified, for me to continue. I believe I should be finished right now, and you gave me until this time. We can break. If there is anything that is absolute critical, I will tell you after lunch that has to be added.

THE COURT: Very well.

THE WITNESS: Thank you, everyone, I appreciate the chance to be transparent.

THE COURT: Members of the jury, we will take our hour-and-a-half lunch.

Remember not to form or express any opinions about this case to anyone and we will see you back here at 1:30. Thank you.

(Whereupon, the jury was excused from the courtroom).

AFTERNOON SESSION

THE CLERK: Remain seated and come to order. Department 504 is back in session.

THE COURT: Thank you. We are back on the record in the matter of Rosario versus Abdelhalim, and the record should indicate that the jurors are all present, all parties are present along with Counsel.

Mr. Rosario, would you please resume the witness stand?

MR. ROSARIO: Yeah.

(Whereupon, Mr. Rosario having been previously sworn and examined, returned to the witness stand and testified further as follows)

THE COURT: You are still under oath, sir.

THE WITNESS: I believe there was one or two final things that I think that we need to have clarified. And I used demonstrative illustrations in order to express things in a much more, I guess you could say, easier way than technical.

So I think there is one thing that I wanted to express was, and to illustrate, if -- well, I think the testimony is really important for all of you, and the testimony would be specifically about the moment of the impact, specifically breaking it down.

I guess I could act it out so you could understand what happened at that moment, because it is going to come down really to causation and I want to -- like I told you guys, I want to be very

transparent with that.

THE COURT: Mr. Rosario, I will permit you to do so only if you stick to what you intend to say about the issue, not to digress.

Do you understand? I gave you 25 minutes the last session to get to the point and you did not.

So I am expecting you to get to the point so we can move on with cross-examine.

THE WITNESS: Okay. How about 10 minutes?

THE COURT: I am not giving you -- I am not foreclosing you for any amount of time.

But I think you need to get to the point.

THE WITNESS: Okay. I want to talk about what happened as I approached the intersection so it is a bit more clear for everybody.

The evidence -- Mr. Keegan is much taller than me, and I am deathly afraid of scooters now, but I was going to have Mr. Keegan illustrate in a manner that would show what had happened at that moment and so you can see what I feel or what was going on at that time.

So taking our illustrative example here -- the scooter, please -- and going over there by the wall, by the calendars.

As I walk towards you at first -- and just for a second, show them what needs to be done on the scooter.

MS. NAVARATNASINGHAM: Your Honor, the only

objection I want to lodge is that this is not obviously the scooter that was involved in the subject incident. That was a rented Lime scooter that was apparently disabled.

THE COURT: Very well. That is understood.

THE WITNESS: It is illustrative of the fact that a person mounted on the scooter, that the police officer had told us that this is a vehicle.

So right now, it is a vehicle, all right?

Let's just say that 5th Avenue (sic) is parallel to that and he is riding the direction towards you.

Now, if a van is turning from, say, behind Judge Wong here and turns, the person who is looking through the mirror would have to look in the rear view, in the side mirror to their left to see anybody coming along before they turn left, all right?

And then there is another side where if the van were approaching from this way, they would be seeing him coming towards them. So either a van who is coming toward the intersection would see Evan on the left side as they come to the intersection before they turn left, or a van coming from the opposite direction would also see Evan going towards the intersection.

Does that make sense? I hope so.

So let me kind of illustrate here.

Stand right about between the tables, Evan.

Closer to the table there.

So if I am a truck over here and I am approaching the intersection, and let's just say the blue line here is Tehama and this lane here is 5th Avenue.

Now, if I am all the way over here and I am approaching to turn left onto Tehama and I am driving a truck, I would have seen Evan on my left-hand side driving up to that intersection.

Now, if I was approaching also from this way, going this direction and turning right on Tehama, I would also see Evan approaching as I drive to the intersection before I turn right.

So the problem that we have here is that the Defendant had said --

I will say the testimony that was provided in the audio and in his deposition stated that he doesn't remember whether he turned right or left.

So as we can see, regardless of the direction that he approaches the intersection, Evan would have been in his view either way, on or off of the scooter. All right.

Walking -- now, Evan on that right there -- now, Evan is not a vehicle, he is walking.

And the police officer said: Evan, could you stand on that. It is now legal to kill Evan right now if he is standing on it.

MS. NAVARATNASINGHAM: Objection, Your Honor.

THE COURT: Sustained.

THE WITNESS: Officer said that right in front of all of you right there. If Evan is on this scooter right now in this direction and a vehicle approaches from -- in this way (indicating), Evan caused his own death if he was killed.

THE COURT: The remarks are stricken.

THE WITNESS: Hold on --

THE COURT: Sir, the remarks are stricken.

You are not giving the Court an opportunity to make a ruling. Anything you said after that will be stricken.

The jury shall disregard.

If you want to start over, you may, but the objection is sustained.

THE WITNESS: Okay. Is what the officer testified in Court not considered hearsay?

THE COURT: It is considered hearsay; however, simply put, make your point with the evidence in this case and do not try to put before the jury your disagreement with one witness or another.

That is the purpose of closing argument.

THE WITNESS: I understand. So the Defense says that -- and they are sticking by it with a report that Fernandez wrote, is that I caused my own injury, and that, they say, exonerates the Defendant. All right?

MS. NAVARATNASINGHAM: Objection, Your Honor.

Is this testimony or closing argument?

THE WITNESS: No.

THE COURT: Then put on your evidence, sir.

THE WITNESS: My evidence is that when I was struck, and again that direction away from behind you would be Mission Street and that direction would be the ballpark -- 5th Avenue runs parallel to 4th, all right?

Evan, if you move -- start back here.

The crosswalk is about from -- was about from here to the white stripes, from here to the chair, all right?

And so when I approached if Evan had one foot on the scooter kicking -- and dismount now -- and now walking with it like this through an intersection, he is now a pedestrian, all right, like me, and right when he got to -- there are these yellow blocks here and there is a yellow block over here.

Right when he got there, boom (indicating). And I landed over right about where -- underneath the clock, about there.

MS. NAVARATNASINGHAM: Your Honor, if I could lodge an objection for the record. To the extent this calls for an accident reconstruction expert opinion, it lacks foundation, it is vague and ambiguous, it calls for speculation.

THE WITNESS: It is my memory.

THE COURT: It is noted, the objection is

noted.

MS. NAVARATNASINGHAM: Thank you.

THE WITNESS: And so the scooter is then on the ground like this over here. We are kind of spinning this whole thing around.

Move this scooter over to that thing over there, right about there, and -- well, turn it the other way with the wheels towards the wall.

So if I was landed here, I could see Mr. Roseman who was directly on the ground.

I am sorry, but I was on the ground about here and I could see Roseman directly across from me looking me in the eye like that (indicating), and I couldn't get up.

And my phone and everything weren't there and so I had to pull myself like in (indicating) towards my phone on the ground.

My leather jacket -- can you pull it over here? The jacket -- and I have another illustrative exhibit.

The leather jacket that is on the videos and the police body cams and that I was wearing, this is it, this is the jacket, you will see it fits me, it is pretty tore up since then.

The strike was these marks right here, those ones right there.

There is a different type of shredding, this is the plastic, but that is where it hit me and across

my back here (indicating) and that is where I was thrown. Yeah.

And then you could see that by the time the police arrived, that my jacket had been removed, and you will see the mark that I saw on the van right where he struck me right in my back, it will be clearly right above the passenger side lights, directly above that where his van broke my back. All right.

MS. NAVARATNASINGHAM: Your Honor, if I may lodge an objection for the record. It lacks foundation. It has been four years since the incident occurred. There is no evidence that this is what the jacket looked like after the accident.

THE WITNESS: It is in the video.

THE COURT: Very well. The objection is noted. The jury will understand your objection.

THE WITNESS: It would be a pretty elaborate con for me to pull all this evidence off.

I know the Defense; I know you have to do your job. I will say this: From the truth and transparency it is difficult for me to go over some of the other things, but I remember clearly having to crawl across the ground.

It wasn't where I am laying --

Evan, bring the scooter thing.

I don't know whether that is the reason why it saved my life or if it was just an angel,

1 something, but I narrowly escaped with my life.
2 And it was at that moment that the vice
3 started pressing on my chest. All right? And I
4 couldn't breath. And my breath kept on getting
5 shorter.
6 I felt my vision went gray. It was like a
7 tunnel.
8 My head, when I got hit, got extended
9 (indicating), I felt my neck extend this way
10 (indicating).
11 It popped right up here, the top of my -- at
12 the top of my back. And I have been having problems
13 ever since with my vision, with my balance, and all
14 along the inside of my head along this side
15 (indicating) over here. I have had hearing problems
16 in my ears, I have got tinnitus.
17 MS. NAVARATNASINGHAM: Objection, Your Honor.
18 Violates motions in limine ruling.
19 THE COURT: That is overruled. He is
20 describing what his ailments are.
21 THE WITNESS: And inside, in here, I have a
22 pain that constantly -- it is coming up again above my
23 ear going forward over my eye.
24 I have that every day where my pain is in my
25 neck and at the point where my spine, right up here.
26 Remember my ribs, my pain is here right up
27 here below the mid shoulder to right about the middle
28 of my back. And it extended my neck forward by being

thrown and I landed -- it was hard, I landed really hard.

I mean, his van is a 2017 Ford Transit 250, so it is a F250 Ford pickup with a van chassis box on it. So it weighs about 7,000 pounds empty, curb weight.

I am just glad to be alive, to be able to walk and see my grand kids. That is all I care about.

To say that, even just being able to enjoy, like, potentially to be able to pick up my grand kids, I am blessed. That is it.

THE COURT: Mr. Rosario, you are going beyond what you promised to testify about.

Anything else?

THE WITNESS: I think that is one that I felt there might have been a gap for everybody.

THE COURT: Thank you.

THE WITNESS: I guess I have to prepare myself for the cross-examination --

THE COURT: Sir. No question is pending. I am not asking you for any remarks before your cross-examine.

It is now time for Ms. Navaratnasingham to cross-examine.

MS. NAVARATNASINGHAM: Your Honor, I will reserve my cross until my case in chief.

THE COURT: Are you calling him as an adverse witness?

MS. NAVARATNASINGHAM: Correct.

THE COURT: Very well. Then you may step down, sir.

THE WITNESS: All right. I will answer anything honestly if she wants. Okay.

THE COURT: All right. Call your next witness.

MR. ROSARIO: I think it is time to do that, huh?

I have prepared this -- this concept, Your Honor, to do this eloquently and with as little confrontation as possible with Mr. Abdelhalim for the sake of the propriety of the Court.

I think everyone knows how I feel about him.

So I believe that I could present to the Court, in, I guess --

THE COURT: The only question I have, sir, is: Who is your next witness? Is it Mr. Abdelhalim?

MR. ROSARIO: Yes.

THE COURT: All right. Call that witness. We will have him sworn. The next part of this is you are to ask him questions.

MR. ROSARIO: Okay. I call Mr. Abdelhalim.

THE COURT: Okay.

(Whereupon, Subhi Abdelhalim, having been called as an adverse witness was sworn and testified as follows).

THE CLERK: Please be seated. Please state

your name and spell it clearly for the recorded into the microphone.

THE WITNESS: My name is Subhi Abdelhalim, S-u-b-h-i; B as in boy; a-b-e-l-h-a-l-i-m.

THE CLERK: Thank you.

THE COURT: Thank you. Very good. Here are some suggestions.

Have you ever testified in court before?

THE WITNESS: No.

THE COURT: So listen to these suggestions and you will be able to get through this, okay?

So the first thing is: Let each party ask the question or finish the question before you answer, because you may be answering something they didn't ask.

Second is: Listen very carefully to the question and only answer the question.

We don't seek by way of a narrative. We ask for separate and discrete bits of information. If either party seeks more information, they will ask another question.

When you answer, you must answer out loud and can use an audible English word.

Please don't use any hand gestures or head nods because the Reporter won't be able to see those gestures and we want to make sure that we have an accurate -- an accurate record of your verbal responses. Okay?

If there is a time when you are not sure, we ask you not to guess because you are under oath.

If you do not understand the question, you could say you do not, and if you hear an objection, do not answer it, because it means I must rule on the objection.

I will tell you if you have to answer or I will tell the party to rephrase or ask another question.

Make sure you keep your voice up.

And do you have any questions?

THE WITNESS: No.

THE COURT: Very good. Thank you, sir.

You may inquire, Mr. Rosario.

EXAMINATION BY

MR. ROSARIO: Q. Mr. Abdelhalim, are you aware of the duty of care for yielding to pedestrians?

MS. NAVARATNASINGHAM: Objection, calls for a legal conclusion.

THE COURT: Sustained. Rephrase it, please.

MR. ROSARIO: Q. Mr. Abdelhalim, are you aware of the duty of care vehicle codes?

MS. NAVARATNASINGHAM: The same objection.

THE COURT: Sustained.

MR. ROSARIO: I thought making awareness was different than asking for conclusions. Asking individuals if they are aware of something is very

different than a conclusion. Is that correct?

THE COURT: I can't explain this to you, sir. The objections are sustained.

MR. ROSARIO: Q. Okay. Mr. Abdelhalim, are you aware that reporting to police may be a crime -- inaccurately reporting to the police may be a crime.

MS. NAVARATNASINGHAM: Objection, relevance.

THE COURT: Sustained.

MR. ROSARIO: Q. Mr. Abdelhalim, are you aware that not reporting a collision with a pedestrian may be a crime?

MS. NAVARATNASINGHAM: The same objection.

THE COURT: Sustained.

MR. ROSARIO: Q. Oh, okay. All right.

Mr. Abdelhalim, you have stated in your deposition a number of claims that you did not strike me.

Is that story still the same?

A. Could I have that question again?

Q. Your deposition has a number of statements about the condition around the collision with me.

Is your story still the same?

MS. NAVARATNASINGHAM: Objection, vague and ambiguous.

THE COURT: Sustained. You are calling for a narrative.

You need to be specific about what statements were made, Mr. Rosario, in order for him to answer to

your inquiry.

MR. ROSARIO: Q. Mr. Abdelhalim, has anything in your deposition changed since the time you made it in 2022?

MS. NAVARATNASINGHAM: Objection, vague and ambiguous.

THE COURT: Sustained.

MR. ROSARIO: Q. Mr. Abdelhalim: Yes or no, has your statement changed since 2022?

MS. NAVARATNASINGHAM: The same objections.

MR. ROSARIO: Q. In any way.

THE COURT: Sustained.

MR. ROSARIO: Q. Mr. Abdelhalim, your vehicle made contact with me, the victim, correct? Yes or no?

A. No.

MR. ROSARIO: I am going to rest for right now. I will bring you back, possibly.

THE COURT: Well, you have one opportunity to bring him back.

MR. ROSARIO: One more?

THE COURT: I mean, you only have one opportunity to call him as a witness in this case.

You may call him on rebuttal if there is something that is an issue; but at this point, you cannot in your case in chief bring back a witness once, twice or three times.

This is your one opportunity to examine the

witness, so you may proceed.

MR. ROSARIO: Well, the impeachment was -- is that he said he did not touch me with his vehicle, so I believe -- I asked him clearly the question: Did you hit me with your vehicle? Was there any contact --

MR. ROSARIO: Q. Mr. Abdelhalim, was there any contact between me and your vehicle?

MS. NAVARATNASINGHAM: Calls for expert opinion, it calls for speculation.

THE COURT: Can I have that question -- I thought that was the first question.

Was there any contact between his vehicle and you? Is that the question?

MR. ROSARIO: Yeah.

MR. ROSARIO: Q. Was there any contact between me and your Ford Transit van that you were driving on February 4, 2021?

MS. NAVARATNASINGHAM: It calls for speculation.

THE COURT: Overruled. If he knows --

You may answer.

THE WITNESS: No.

MR. ROSARIO: Q. Mr. Abdelhalim, did you call 911 at the scene at my request? Yes or no.

A. No.

Q. Mr. Abdelhalim, did you call 911 at all at the scene?

A. Yes, I did call 911.
Q. Mr. Abdelhalim, did you tell -- what -- Yes-or-no questions. All right.
Mr. Abdelhalim, did you admit or tell the 911 operators that you hit me? Yes or no?
A. No.
MR. ROSARIO: No more questions at this time. I think that -- and I don't believe that everything else is premised on whether he is able to tell the truth, Your Honor, so I think we are at this point now that I am going to have to rest.
I don't think there is anything else.
THE COURT: With this witness. Are you saying you are concluding your examination of this witness?
MR. ROSARIO: Oh, I need to play a piece of information is what I am saying right now. In between, we have to set up the audio, then we will bring him back when I am ready to go, to ask him if this is his voice. Does that make sense?
How do you do that? We will play an audio clip for him to ask him if this is his voice.
You told us that we have to have that prepared with a speaker and all that yesterday.
THE COURT: I understand that. I am not so sure what you are asking me.
MR. ROSARIO: Does he stay on the stand, then?

THE COURT: Sorry, sir. I didn't hear that. I am trying to understand what you are seeking to do. Do you wish to continue the examination with Mr. Abdelhalim?

MR. ROSARIO: Yes.

THE COURT: Okay. Because you said you rested your case, which that means something entirely different.

That means that you have completed the presentation of your entire case.

MR. ROSARIO: No. No. That is incorrect. Okay, I misspoke.

What I need to do was -- that is my mind.

I need to play an audio clip to ask Mr. Abdelhalim what is in it; is it his voice?

Do I do that while he is on the stand? Does he sit down, we play it, then bring him back up.

THE COURT: You can play it, pause it, then ask him whether that is his voice.

MR. ROSARIO: Okay. We have a speaker here.

THE COURT: What kind of recording is -- audio? Is it visual?

MR. ROSARIO: It is the official 911 CAD audio record, with the audio watermarks from the San Francisco Emergency Services 911, that was the record that the emergency services had sent them the certifications, and Dolan Law Firm.

THE COURT: Have you prepared a transcript of

that 911 call?

Do you have the transcript?

MS. NAVARATNASINGHAM: I believe they gave me one yesterday, Your Honor, if it is the same thing.

MR. ROSARIO: We made one for everybody.

THE COURT: The first hurdle you have to address is: What are you submitting to be heard before the jury?

MR. ROSARIO: Okay.

THE COURT: So identify that for the record. Is that an exhibit that you have?

MR. ROSARIO: Yes. That is right.

THE COURT: And the exhibit number is --

MR. ROSARIO: We have the envelope coming over here. It would be entered, I believe, as Exhibit No. 9 -- hold on, let's see.

I believe this is the right one. It is Exhibit No. 20, 020, and it bears only one page.

Exhibit 20 bears -- let's see here. What we have here for the Court and for the transcript, we have a 911 transcript for --

THE COURT: Sir, are you playing this from a compact disc --

MR. ROSARIO: A digital file.

THE COURT: A digital file. Okay. Is that digital file on something that the Court can admit into evidence?

MR. ROSARIO: Dolan Law firm has it locked in

their vault right now. It is the last one on earth.

There is only one -- we can burn one for the Court on a disc if the Court pleases that. We tried to give you one on a thumb drive, but we were told the Court does not accept thumb drives and I don't have a DVD burner anymore on my computer.

THE CLERK: I do want to clarify. You provided those exhibits to the Court for the Court's review.

We don't review the exhibits, but I did say that you needed to have a copy available should you want to have it as an exhibit for the jurors to review.

MR. ROSARIO: So we are talking about two different things. We are talking about an audio file on the one hand, and on the second hand, we have a actual text transcript of that audio file.

THE COURT: The transcript is not evidence.

MR. ROSARIO: Correct. The transcript is -- as you said multiple times -- is just a guide for us to follow through based upon the best effort.

The Defense has been given one since yesterday --

THE COURT: No. Sir, don't get distracted.

MR. ROSARIO: Okay.

THE COURT: What we have here is: You are offering a recording.

MR. ROSARIO: Yes.

THE COURT: The recording itself could be evidence if it meets certain thresholds.

You have to show those thresholds in order to have the recording admitted into evidence.

MR. ROSARIO: Yes.

THE COURT: That is to show that this is an authentic recording.

MR. ROSARIO: Okay, I see what you are saying.

THE COURT: And then once the item has been done to be authenticated, then we will pass out the transcript to the jurors as a guide for them to use with a clear note to them that the transcript itself is not evidence.

It is the recording itself that is the evidence that they must consider as part of this case.

MR. ROSARIO: So we have those files and they are bringing them now. Okay. Here we go.

We have here a certified copy that was delivered to us from the officer of the Court, Dolan Law firm, which states the Custodian of Records -- the information is in the exhibit that shows the certification from the San Francisco Emergency Services.

They gave us two discs. Those are stored in a vault at my prior attorney 's office.

They have come in and testified that these are the authentic copies and they provided the URL and

the download links to both the Court and the Defense.

The Defense was given this information prior during discovery, as per Dolan Law firm -- they are a very big law firm, if you know, provided to them; credible in the sense that the Department of Emergency Management Services provided that and this is the receipt of the records and the certification from the custodian of records.

THE COURT: Very well. So is it a -- will you provide us with a thumb drive of that material at some point, please?

MR. ROSARIO: They will pull that up and provide it. Would you like me to give one copy to you and one to the Defense?

THE COURT: Yes. The question would be: Is there an objection to the admission of this recording into evidence?

MS. NAVARATNASINGHAM: No, Your Honor.

THE COURT: Very well. That will be Exhibit 20 as designated by Plaintiff.

(Plaintiff's Exhibit No. 20 was marked for identification).

THE COURT: All right. Now you may pass out the transcripts to each the jurors along with a copy to the clerk and to the Court.

You may also offer one, if you have another one, to Mr. Abdelhalim.

While he is reviewing his materials, what I

am going to suggest that you do when you receive a copy of anything, each individually, is to mark the back of that document with your seat number.

Sometimes when you are deliberating they get lost in the shuffle and your own personal information may be on that.

We just want to make sure that there is some opportunity for you to cover whatever gets lost in that mix-up. So I am not assuming there is going to be, but that is best for purposes of identifying the documents for yourself.

I would also mark it as Exhibit 20 as well.

MR. ROSARIO: So to clarify, we have provided one of these to the Court yesterday.

THE COURT: It is in evidence now. It is admissible. And you may play the recording. But please have the transcript pages presented to the jurors now.

Please pass those out.

MR. ROSARIO: Mr. Sobati will hand you a transcript.

THE COURT: The record will indicate that a -- now, for purposes of this proceeding, members of the jury, please understand that this recording will not be reported by the Court Reporter. It is simply too difficult for him to capture all of that. So it makes perfect sense to everybody, I think. All right.

MR. ROSARIO: The file that we received from

the 911 services is a master file.

There is a second transcript that goes along with the first transcript, which we are now prepared to also present to the jury.

THE COURT: Let's just do this one step at a time.

MR. ROSARIO: Well, the sequence, I believe, is the --

(Discussion off the record).

MR. ROSARIO: Wait a second. Stop. Pause.

This audio file has two callers from it, simultaneously, one back to back. It is a single file.

It was provided to us by Emergency Management Services and Dolan.

There are two different parts. We ran two different transcripts because there were two different callers on this incident.

THE COURT: Is there a second transcript?

MR. ROSARIO: Yes, there is. We can present that second transcript now, which we spoke about with the Defense yesterday, and I can go ahead and present that.

We had discussed it prior and I am now ready to enter the second piece of the audio transcript.

They are two different individuals that called in.

THE COURT: Understood.

MS. NAVARATNASINGHAM: Your Honor, is he playing -- I think it is appropriate to play a recording that he wants my client to hear as it relates to his testimony.

I don't know why he is playing an unrelated audio recording.

MR. ROSARIO: The problem is that if I jump to a specific point, we are not playing it for the full record all the way through.

To make it exactly correct, I want to make sure you all --

THE COURT: Before that is passed out --

MR. SOBATI: I am sorry. I am so confused. My apologies.

MR. ROSARIO: Don't jump the gun. I will let you know when that second one can be handed out. All right.

MS. NAVARATNASINGHAM: Your Honor, if I may, it sounds like he has to fast forward to the audio recording to get to the recording of my client.

MR. ROSARIO: Yeah, but then we are jerry-rigging from the record. I want the full record transparently to be presented because it has everything to do with the entirety of this case.

THE COURT: Well, sir --

MR. ROSARIO: It has to do with the liability part.

So we are here doing hearings on causation

and liability.

THE COURT: Sir?

MR. ROSARIO: Yes, sir.

THE COURT: You are permitted to play the portions that apply to Mr. Abdelhalim.

You are not permitted to -- to play the other portions of this recording if he doesn't know anything about them. And from what I gather. He doesn't know anything about another 911 call.

You may ask him, but I don't think you have a basis at this time to --

MR. ROSARIO: Your Honor, I do have foundation and a basis. Mr. Abdelhalim knows about his own actions. His actions were seen by another person.

THE COURT: Sir?

MR. ROSARIO: Yes.

THE COURT: Examine him on that portion of the 911 recording that you have.

Once you have completed that task --

MR. ROSARIO: Got it, I understand now.

THE COURT: -- then you may examine him on the second issue if you think you have a foundation for asking those questions.

MR. ROSARIO: I got it.

THE COURT: Otherwise, you will not be permitted to play the second call because he simply doesn't know anything about it.

You can't ask him about something he doesn't know. Understood?

MR. ROSARIO: Yes, understood. I am sorry.

THE COURT: Proceed.

MR. ROSARIO: Okay. Let's go. Now we are going to have to go to a point in the audio.

THE COURT: No preamble. Just play the portion that you need to have him hear in this recording.

MR. SOBATI: Your Honor, if I may, or -- just -- just for the fact that we only received one file from the San Francisco Department of Emergency Management, therefore we have not scrubbed this file to the exact point.

And in the interest of honoring the Court, I don't want any inappropriate portion to play so we need a moment to make sure we are playing the proper part of audio.

Do not play the audio -- we don't know.

We just need literally one minute, Your Honor, then we would be able to play the file properly so we don't have that other cam that they themselves attached into one record.

MR. ROSARIO: It is a queue point. We are just making sure we get to the right queue point where Mr. Abdelhalim -- or he allegedly (inaudible) so we don't cross the streams until I ask him about the second one. Sorry, but I am new at this.

(Short recess).
THE COURT: Proceed, please.
MR. ROSARIO: All right. That is not it. Where is the audio?
(Discussion off the record).
MR. ROSARIO: There it is, we are on. So I don't know why it is not working. It was perfect before.
MR. SOBATI: We can play it from the laptop. Maybe I can amplify it through this right here (indicating).
MR. ROSARIO: Do that. The speaker is not working. Poor little speaker.
(Whereupon, an audio file was played for the jury).
MR. ROSARIO: All right. I will handle it. It looks like we are having problems with that laptop.
Let me restart from your screen.
MR. SOBATI: Do you have the time stamps?
MR. ROSARIO: I have them here.
THE COURT: Are we replaying the recorder?
MR. ROSARIO: We are playing it on a clearer -- that laptop, you couldn't hear it; nobody could.
So we are going to play it again from the speaker here at 1:30.
MR. SOBATI: 1:29.
(Whereupon, the audio file was played).

MR. ROSARIO: For the sake of Your Honor, do any of the jury need to hear it a second time to clarify the audio that was spoken?

THE COURT: I don't believe so. Ask your next question, sir.

MR. ROSARIO: Q. Mr. Abdelhalim, before we listened to this audio clip, you stated that you did not make a 911 call, is that correct? Or you did make a 911 call, but then also stated that you never hit me with your vehicle?

You know, there was no contact with me with your vehicle.

THE COURT: Which question do you wish to put in? One question at a time.

MR. ROSARIO: Q. Mr. Abdelhalim, was that you on that phone call?

A. Yes.

Q. When you called in to the 911 operator, the caller, you, Mr. Abdelhalim, said that you were driving your van and there was a guy in front of you and that you barely hit him with anything but you are calling for him.

That was just played for you in the audio track. Are you still denying that that was you?

A. That is not correct.

Q. What is not correct, the audio?

MS. NAVARATNASINGHAM: Objection, vague and ambiguous. I am not sure what the question is.

THE COURT: Why don't you rephrase another question?

MR. ROSARIO: Q. Mr. Abdelhalim, you said "I barely hit him with anything." That was heard clearly. That was you, correct? Yes or no?

A. Correct.

Q. I am sorry. What did you say?

A. Correct.

Q. That was you?

A. No.

MS. NAVARATNASINGHAM: Vague and ambiguous. I don't think my client is understanding the question.

MR. ROSARIO: Q. I asked you, Mr. Abdelhalim: You said in the audio and in the -- did he get transcript?

MR. SOBATI: Yes.

MR. ROSARIO: Q. Mr. Abdelhalim, can you see the transcript, the first entry?

It says: Caller. It says: Yes, yeah, there is -- I was -- I am driving a van and there is a guy going to cross, he crossed from me, and I barely hit him with anything but I am calling for him.

Was that your voice?

A. What do mean across from me? You was on sidewalk --

THE COURT: No, no, Mr. Abdelhalim. The question was: Was that your voice?

THE WITNESS: Yes. That is my voice.

THE COURT: That is all you have to answer.
THE WITNESS: Thank you.
THE COURT: Your next question.
MR. ROSARIO: Q. So before we listened to the audio, I had asked you clearly whether you had hit me and whether you had said you -- at the time -- I asked you -- did I ask you whether you had called 911 and you told them you hit me, and you said: No. You said: No -- clearly to all of us.
You said: I never told the 911 operator I hit you.
MS. NAVARATNASINGHAM: Objection, Your Honor, that misstates the question. I think he asked: Did you call him for me?
MR. ROSARIO: The Court Reporter can read that back.
THE COURT: No. We are not going to do that.
Your new question is: Based upon what was said earlier in your testimony, have you changed your opinion about having heard now the recording? Will you change your opinion about whether you struck or hit Mr. Rosario?
That's the question.
MR. ROSARIO: Yeah.
THE WITNESS: No.
MR. ROSARIO: Q. You did not change your story?
A. No.

Q. Okay. Mr. Abdelhalim, are you -- do you typically lie, Mr. Abdelhalim?

MS. NAVARATNASINGHAM: Objection, argumentative.

THE COURT: Sustained.

MR. ROSARIO: Q. Mr. Abdelhalim, were you lying when you made the statement on the phone?

MS. NAVARATNASINGHAM: Objection, argumentative.

THE COURT: Sustained.

MR. ROSARIO: Q. Mr. Abdelhalim, were you being honest on the phone call?

MS. NAVARATNASINGHAM: The same objection.

THE COURT: Sustained.

MR. ROSARIO: Q. Mr. Abdelhalim, you made a statement to us that you did not strike me, and on the audio that we just played for you, about halfway down the first page, it says: After the victim yelling at me he hit me with his van.

Will you please look at the text there?

THE COURT: This is not evidence. It is the recording you can rely on.

MR. ROSARIO: Q. Yeah. I am going to talk about the recording. You clearly did on the audio, and said: He was turning to the right and he was boom in front of me, I just hit him, hit him with barely anything.

Was that your voice also?

A. That is my voice.
Q. Okay, Mr. Abdelhalim. And then later on, the 911 operator asked you something.
And then you said you were turning to the left side; is that correct?
You said first you were turning to the right side, and then you said you were turning to the left side. And it is clearly in the audio.
Do you remember which direction you were turning?
A. I do remember. It was the right side -- would be on the right side.
Q. Okay. And then the operator asked you: I am sorry. Then she goes: Okay, and "I am sorry" during the audio.
And then she asked you: Can you talk directly in the phone what happened?
And then I spoke.
And then you said: I'm calling 911 for him.
I asked you earlier, before we played the audio clip, if you had called 911 for me, and you said: No.
Was this your voice again when you stated that: I am calling 911 for him?
The question is: Was that your voice in the audio that said: I am calling the 911 for him? Yes or no. That was your voice?
A. Yes.

Q. Okay. And then it says: The operator then asked to get a clarification for you -- from him and she slowed down very clearly. And I can play that portion again for you if you need to hear it.

Would you like to hear that portion where she slowed down and asked a clear question?

THE COURT: Sir, we don't play anything again unless he says he doesn't remember. So ask him a question about what was on the recording.

MR. ROSARIO: I don't see him saying that he doesn't remember.

THE COURT: I am saying to you: You do not get the opportunity to replay the recording unless he doesn't remember something that you are asking him about.

MR. ROSARIO: Q. Oh, okay. The operator asked you: Okay, so you were in your van. You were driving and he was on the street. You hit a pedestrian. And you started to say "no", and then you said "yeah."

So you clarified, that was in the audio.

A. I don't remember.

MR. ROSARIO: Now what do we do? Do we play it back again from the audio in case he doesn't remember?

THE COURT: Yes. You can play it back.

(Whereupon, an audio tape was played).

MR. ROSARIO: Q. Okay. All right. So we

heard what you said there.

I am going to slow that down for you so you can hear it, because it went a little bit quick.

THE COURT: No, sir. You don't get a second opportunity to replay it. You must ask him the question about whatever it was that you wanted when he said "I don't remember."

Now that the recording has been played that, should have refreshed his recollection, and now you can ask the question again.

MR. ROSARIO: Q. All right. So it says -- the operator had asked you clearly. So you said you were in your van driving and he was on the street. And I think you answered: No.

And then it said: You hit a pedestrian.

And you answered, "Yeah."

So that was also your voice, correct? So obviously, same recording, we both know it is your voice.

A. Not correct.

Q. That is not correct?

A. (Deponent nods head up and down).

Q. That was not your voice?

A. My voice, but it is not correct what you are saying.

Q. Okay. Now we know. So now you are saying that you did not hit me.

Is that where you are at? Is that true? You

said you did not hit me after admitting to it three times in the call, Mr. Abdelhalim? Is that what you are saying?

MS. NAVARATNASINGHAM: Objection, argumentative.

MR. ROSARIO: No. I am asking for a clarification.

Q. You said it three times to call --

THE COURT: Sir, don't editorialize. Just ask him the question.

The objection is sustained.

MR. ROSARIO: Q. Mr. Abdelhalim.

THE COURT: Sir. I am asking you to stand at Counsel table. Do not approach the witness. You have no permission.

MR. ROSARIO: Q. You said three times in the phone call that you hit me. And now you are saying that you didn't do it.

Which is it? Is it yes, you hit me, or did you not hit me?

THE COURT: You may answer.

THE WITNESS: No.

MR. ROSARIO: Q. No hit?

THE COURT: You must answer.

THE WITNESS: Yes.

MR. ROSARIO: Q. Mr. Abdelhalim, why did you call 911? Why?

A. Because when I turned it was a clear in front

of me and I heard somebody said: Help, help, help.

I pull over and I stand -- and I approach you and I told you there: Sir, do you need any help?

And you started yelling at me.

The minute you yell at me, I back up. I call 911.

Q. You called 911?

A. Yes, I did.

Q. How long did it take to you call 911? One minute? Two minutes? How many minutes?

A. I don't recall on this.

Q. Okay. Where was your truck, Mr. Abdelhalim, when you called?

A. On the side of the street.

Q. Was it by my body, Mr. Abdelhalim?

A. No, no.

Q. Where was your truck?

A. I pull over on the right and when I heard you say: Help, help, help --

As a good citizen or a good something, whatever you want to call it, I stopped and I hear somebody say: Help, help, help.

I approached you you were on the sidewalk.

And I asked you: Do you need any help?

You start yelling at me. And you say: You hit me. You hit me.

I back up and I call 911 and I waited for the police to come.

I never go nowhere, I stay there.
Q. Mr. Abdelhalim, if that were so, why would you tell the operator that you hit somebody? Can you give us an explanation why you would say those things to an operator?
A. No.
Q. Is there any explanation, Mr. Abdelhalim, why you would say "I hit him" to the operator?
A. No explanation.
MR. ROSARIO: It is going on 2:30, Your Honor. Can we take a small break, please.
THE COURT: Let's take a break. We will come back at 3:05. Remember not to form or express any opinions to anyone.
(Short recess).
THE CLERK: Remain seated, come to order, Department 504 is back in session.
THE COURT: We are back in session in the matter of Rosario versus Abdelhalim.
The record should reflect all jurors are present, all parties are present including Counsel and their clients.
Mr. Abdelhalim, you are still under oath.
Mr. Rosario, you may resume your examination.

EXAMINATION RESUMED BY

MR. ROSARIO: Q. Where we picked up from before, Mr. Abdelhalim, I asked you why -- if you

could explain to us why you would have said that you had hit a pedestrian. You didn't know who I was. You did not know my name.

Mr. Abdelhalim, you said you don't know why you told the -- 911 that.

And Mr. Abdelhalim, is that -- are you -- did you tell the police that you had hit the pedestrian? Mr. Abdelhalim? Yes or no?

A. You were telling me -- you were yelling at me, and you was making me confused and -- what I say to the police, you scared me. I was trying to help you. And you was yelling at me: You hit me, you hit me, you hit me.

And I get confused. I get scared. I get -- I back up.

That is my explanation for this. I was confused. I was scared.

When you call up, I didn't even know what is left and right, and I say left and I told you right.

I was confused and I tried to help you and you say: You hit me.

When I make the phone call, when I make the phone call and they asked me "Did you hit him?"

I say what he say to me: He hit me; what he say, what he said to me, I explained to the police.

He say: I hit him.

THE COURT: Mr. Abdelhalim, when you say, you talked to "the police," are you talking about the 911

operator or the police officers at the intersection.

THE WITNESS: No. 911, sir.

THE COURT: Okay. So make it clear it is 911.

THE WITNESS: Yes, sir.

MR. ROSARIO: Q. Let's go ahead and clarify that, Mr. Abdelhalim.

Do you have a recording of me telling you that I was going to -- about any of those claims that you said, that I said that you hit me or those things, before you called the 911?

MS. NAVARATNASINGHAM: Objection, compound.

MR. ROSARIO: Q. Okay. Mr. Abdelhalim, do you have any recording of me saying those things in which you say you instigated -- you say I told you those things.

So you repeated them to the 911 operator, is that correct?

MS. NAVARATNASINGHAM: Are you saying aside from the statements that are actually on that 911 call where you are saying those statements?

MR. ROSARIO: Q. I am trying to understand the reasoning why you said that to 911 -- I am trying to understand what you were trying to imply.

Are you trying to say that it was that I said that to you that you repeated it to the 911?

A. You was yelling at me and I tried to explain to the police, I got scared. I was confused. I don't

even say -- I told the police: What is this? What is it?

You say I hit you, and I told the police what you say to the 911: I hit you.

And even -- like what I say before, that time, I don't know left and right. And I say left, and after that, I say right.

I was very confused and I was scared -- somebody like this, it is just waiting --

Q. So, Mr. Abdelhalim, why didn't you just leave?

MS. NAVARATNASINGHAM: Objection, vague and ambiguous.

THE COURT: Sustained. It is not relevant.

MR. ROSARIO: Q. Okay. Mr. Abdelhalim, was it the first time that you talked to me or the second time that you talked to me that you said that you claimed I said that?

Can you give me the sequence of when I said those things to you, at which time?

A. That time when I approach you and I told you: Do you need any help?

You start yelling at me. You get me confused what I say and I repeat on the phone call what you say to me: I hit you. That is what I say I hit you to the police, what you say to me. What you say to me, I hit you. And I told them what you say to me I hit you.

Q. So you just said that you repeated what I said to the police?
A. Yes.
Q. Okay. I see what you are saying. So you are not actually -- you didn't admit to the police. You are just claiming that you repeated what I told you to say to the police? That is what you are saying?
A. Repeat the question again, please.
Q. Are you saying that what you told the police, I somehow convinced you to say to them?
A. Not convinced me. You scared me, and you were yelling at me.
When I told you you needed help, you say to me, you say: You hit me, you hit me.
Q. All right. I think we are about there on that one.
Mr. Abdelhalim, so, like, I guess, you know, talking about the collision and right before it, you know -- right before the collision, how fast were you going?
A. I am sorry. The question again, please?
Q. What was your speed right before the collision?
A. The speed?
Q. Yeah.
A. Five mile an hour when I turned to the right.
Q. Okay. And how far from me -- well, right after the collision, how far did you stop?

A. After that I finished that intersection. When I heard "help, help, help," I pulled over and I approach you and you start yelling and screaming at me and saying: You hit me, you hit me.

So I was confused and what I say to the police, I back up.

And I say this is what happened. And when I say to the police what you told me -- I hit you, I hit you, I hit you -- that is what you told me: I hit you. That is why I keep repeating to the police what you told me: I hit you.

Q. Yes, sir.

A. After that I back up and I went -- waited for the police to come, and when he came in, I cooperate with him.

I give him whatever question he asked me and after awhile he say: Don't get no citation, no anything, no whatsoever.

THE COURT: Okay. Mr. Abdelhalim.

THE WITNESS: Yes, sir.

THE COURT: You are answering things that have not been asked by Mr. Rosario.

So remember, you have to answer only the question he has posed.

You only answer his question. Don't volunteer anything else.

THE WITNESS: Okay. Thank you.

THE COURT: Next question.

MR. ROSARIO: Q. How long after the collision did you call the police?

A. I can't tell you. When I stopped and it is between 2:30 to 3:00 and I call, I can't say what time.

Q. 2:30 to 3:00, somewhere in there, right, 2:30 p.m. and 3:00 p.m.?

A. That is correct.

MS. NAVARATNASINGHAM: May I ask Mr. Rosario to speak up.

MR. ROSARIO: Me?

THE COURT: Everyone speak up.

MR. ROSARIO: Q. So it was about thirty minutes, ten minutes after the collision? Was it ten, five minutes after the collision?

MS. NAVARATNASINGHAM: Objection, misstates the testimony.

THE COURT: Sustained. He said he didn't know. He described the circumstances of his occasion to come see you.

And then he said he called 911 which he alternatively called the police but it is 911. Next question, please.

MR. ROSARIO: Q. All right, next question, how long after the call you made to 911 did the police arrive, the actual police of the 911 emergency services? Do you recall that part?

A. Can I tell what time he came? I waited when

I call 911 and I back up from you and I waited. I didn't know what time he is coming. I waited until the police just came and approach me and that is it.

Q. What type of van were you driving again? What color was the van, Mr. Abdelhalim?

A. Ford Transit, a white color.

Q. I remember from your deposition you keep it very clean. Correct? You said that you --

A. Repeat question, please.

Q. You said that -- during your deposition -- you said, during your deposition, that you keep your van very clean, the vehicle is like a wife to you.

I believe you said that. Is that true? You did say that, correct?

MS. NAVARATNASINGHAM: Objection, relevance and also we don't have the deposition testimony to confirm that.

THE COURT: Sustained. Why don't you just ask him about the car or the vehicle?

MR. ROSARIO: Q. Okay. Mr. Abdelhalim, you keep your van very clean? Yes or no?

A. The explanation --

Q. I asked a yes-or-no question, Mr. Abdelhalim.

Do you keep it very clean? Yes or no?

A. Sometimes it stay clean, sometimes you wash it, sometimes you cannot -- you cannot do.

Do you wash your car every day? That is the question.

That is the answer.
Q. Do you recall the time before the date of -- How often every week do you wash your van?
MS. NAVARATNASINGHAM: Objection, relevance.
MR. ROSARIO: It is absolutely relevant.
THE COURT: It is overruled.
MR. ROSARIO: Q. How often do you wash your van, Mr. Abdelhalim?
A. When I feel like it.
Q. Twice? Three times? Four times a week?
MS. NAVARATNASINGHAM: Asked and answered.
THE COURT: Sustained. He says when he feels like it.
MR. ROSARIO: Q. Okay. Mr. Abdelhalim, after the collision, were there any marks on your van?
A. Could be dirt, could be something -- could be --
Q. It is a yes or a no. Were there marks on your van after the collision?
A. What kind of mark? Explain.
Q. Any at all.
MS. NAVARATNASINGHAM: Objection, vague and ambiguous.
THE COURT: Sustained. You have to be more --
MR. ROSARIO: Q. Were there any marks that were abnormal on your clean van after the collision?
MS. NAVARATNASINGHAM: The same objection.

THE COURT: Sustained.

MR. ROSARIO: Q. Okay. Did you notice any marks on your van after the collision? Yes or no?

A. No.

Q. None?

MS. NAVARATNASINGHAM: Asked and answered.

MR. ROSARIO: Q. Okay. All right.

Mr. Abdelhalim, are you aware, when asked by a police officer about the marks -- any marks on your vehicle, you are obligated to tell the truth?

MS. NAVARATNASINGHAM: Objection, argumentative, relevance.

THE COURT: Sustained.

MR. ROSARIO: Q. Mr. Abdelhalim, did you find any marks on your van after the collision?

MS. NAVARATNASINGHAM: Asked and answered.

THE COURT: Sustained.

MR. ROSARIO: Q. Mr. Abdelhalim, did you or a police officer create the story about the collision?

MS. NAVARATNASINGHAM: Objection, argumentative, relevance, lacks foundation.

MR. ROSARIO: No. I have foundation on this. I have the video evidence.

THE COURT: Well, okay. Then lay the foundation.

The objection is sustained. You have to lay a foundation, sir.

MR. ROSARIO: Oh, okay. Your Honor, I enter

into the record -- evidence the police body cam. The SFPD provided a police body cam which was certified by the City and County of San Francisco Police Department which included all of the videos and body cameras from the incident.

THE COURT: All right. Before you do that. Let me hear that last question.

Read the question again, please.

(Whereupon, the record was read).

MR. ROSARIO: Q. Yeah. Mr. Abdelhalim --

THE COURT: All right. So first of all, the objection that was raised is sustained; however, Mr. Rosario, you need to not ask a compound question.

It is either you or the police asks one of those questions.

It is hard to fathom how police -- he would know whether a police officer fathomed a story about the collision.

So why don't you ask the other question.

MR. ROSARIO: Okay.

THE COURT: You don't need to play the recording. You need to just ask the question. Let's move this along, sir.

MR. ROSARIO: Q. Mr. Abdelhalim, did a police officer create the story about the collision for you? Yes or no?

MS. NAVARATNASINGHAM: Objection, calls for speculation.

THE COURT: Sustained.

MR. ROSARIO: Q. Mr. Abdelhalim, the video shows the officer creating a story for you about the collision.

Do you recall that? Yes or no?

MS. NAVARATNASINGHAM: Objection, lacks foundation, calls for speculation.

THE COURT: Sustained.

MR. ROSARIO: Q. Mr. Abdelhalim, were you the creator of the collision that was recorded in the video?

MS. NAVARATNASINGHAM: Objection, vague and ambiguous, yeah.

THE COURT: Sustained.

MR. ROSARIO: Q. Mr. Abdelhalim, did you alter your account of the event between the phone call and the video interview with Officer Orengo?

MS. NAVARATNASINGHAM: Objection, vague and ambiguous. Are you talking about they are both the same?

MR. ROSARIO: Q. No. We have a 911 call, Mr. Abdelhalim --

THE COURT: I don't need to hear your response, yet, sir.

I still need to determine what the basis of the objection is.

The objection is, again?

MS. NAVARATNASINGHAM: Vague and ambiguous.

THE COURT: It is overruled.
You may answer, Mr. Abdelhalim.
THE WITNESS: The question again, please.
MR. ROSARIO: Q. The question is: Did your story change from the 911 call to the record that you gave to Officer Orengo? Yes or no?
A. Nothing changed.
Q. Mr. Abdelhalim, you verbalized in the 911 call that you hit the victim, correct?
A. No. I just explained to you when I approach you, you were screaming and yelling. I got confused. I got scared. I can say anything I want, say anything that comes up in my mind like what I say.
I turn left and it was right. I put back again, I say -- on the phone call I say what you say to me: I hit you.
That is why I repeat to the 911 call what you say to me: I hit you.
Q. Okay. Mr. Abdelhalim, I have another question now on that.
Is that the same message that you gave to Officer Orengo, the one that you put on the 911 call, the same message that you provided to the 911 operator?
We know that -- you just explained that you are confused and somehow, for some reason, you said you hit me four times.
Now, when you talked to Officer Orengo, did

you also tell Mr. Orengo that you hit me?

MS. NAVARATNASINGHAM: Objection, Your Honor, asked and answered. Also, it assumes facts not in evidence if he knows who Officer Orengo is.

THE COURT: I will overrule it. I just want to get through this one question and then we can move on. All right.

You can answer the question, sir.

THE WITNESS: One more time.

THE COURT: Basically, he is asking: Did you change your story when you talked to Officer Orengo?

THE WITNESS: No, sir.

MR. ROSARIO: Okay. It is time for me to present the foundation, then, on this.

Mr. Abdelhalim, I am going to show you --

THE COURT: You can do that on a separate occasion.

You have his statement. You can offer the video recording or the audio recording at a different occasion as a part of your case in chief in order to impeach him.

MR. ROSARIO: Okay.

THE COURT: Your next question.

MR. ROSARIO: Q. Mr. Abdelhalim, would you agree that striking a pedestrian carries serious consequences; would you not?

MS. NAVARATNASINGHAM: Objection, argumentative, relevance.

THE COURT: Sustained.
MR. ROSARIO: Q. Mr. Abdelhalim, you understand -- even before this incident even happened -- that drivers have an obligation to yield to pedestrians; is that correct?
MS. NAVARATNASINGHAM: Objection, calls for a legal conclusion, relevance.
THE COURT: Sustained. Let's move on, Mr. Rosario.
MR. ROSARIO: Okay.
MR. ROSARIO: Q. Mr. Abdelhalim, is it true that you yield for pedestrians before making turns? Yes or no.
MS. NAVARATNASINGHAM: The same objection.
THE COURT: Sustained. Let's move on, Mr. Rosario.
MR. ROSARIO: Q. Mr. Abdelhalim, what is a typical speed that you turn into before you make a left or right turn into a street?
MS. NAVARATNASINGHAM: Objection, vague and ambiguous, relevance.
THE COURT: Sustained.
MR. ROSARIO: Q. Mr. Abdelhalim, what is the exact speed that you take when you begin a turn into a street?
MS. NAVARATNASINGHAM: The same objections.
THE COURT: Sustained.
MR. ROSARIO: Q. Mr. Abdelhalim, can you

tell us how fast you go when you turn?

MS. NAVARATNASINGHAM: The same objections.

THE COURT: Sustained.

MR. ROSARIO: Q. Mr. Abdelhalim, you said you were going five miles per hour -- to us, just recently -- right before the collision.

Does that still stand?

A. Yes, sir.

Q. Okay. Mr. Abdelhalim, what did you do right after the collision?

MS. NAVARATNASINGHAM: Objection, vague and ambiguous.

THE COURT: Well, it is not vague and ambiguous. I am going to 352 it now, which means, sir, you are getting into cumulative testimony.

I am not going to permit that. Let's move on.

We already know what he did after the purported collision.

MR. ROSARIO: Q. Mr. Abdelhalim, do you typically offer bribes for any reason whatsoever?

MS. NAVARATNASINGHAM: Objection, argumentative.

THE COURT: Sustained.

MR. ROSARIO: Q. Mr. Abdelhalim, is it ever okay to offer --

THE COURT: Mr. Rosario, please stop asking those questions. They are inappropriate and improper.

Because they are on a list you have created does not mean that you have the right to ask these questions.

I will sustain my own objection under Evidence Code Section 352.

MR. ROSARIO: Q. One last question at this time.

Mr. Abdelhalim, are you sorry about what you did?

MS. NAVARATNASINGHAM: Objection, argumentative, relevance.

THE COURT: Sustained.

MR. ROSARIO: Q. Mr. Abdelhalim, I think we are going to have to ask you to give the questions over to the Defense now, I guess.

THE COURT: All right. Very well.

CROSS-EXAMINATION BY

MS. NAVARATNASINGHAM: Q. Okay. Sir, prior to making your right turn, did you check your rearview mirror before making your right turn onto Tehama?

A. It was clear when I turn left or right, it was clear in front of me.

Q. So you checked your rearview mirror and did you not see any pedestrians or scooters or bicycles, correct?

A. No.

Q. Okay. Did you --

THE COURT: Wait, that is a double negative. Ask the question correctly, please.

MS. NAVARATNASINGHAM: Q. Listen to my question, okay. I know you are nervous. You are doing great. Just listen to my questions, okay?

Did you -- when you looked in your rearview mirror -- or, excuse me -- side view mirror, did you see any pedestrians, scooters or bicyclists prior to making your turn?

A. No.

Q. Prior to making your right-hand turn, did you look in front of you?

A. Yes.

Q. And when you looked in front of you, did you see any bicyclists, pedestrians or scooters in front of you prior to making your turn?

A. No.

Q. After you made your right-hand turn onto Tehama, did you feel any sort of impact to your vehicle?

A. No.

Q. Is the reason that you stopped and pulled your vehicle over was because you had heard somebody yelling for help?

A. That is correct.

Q. And you testified that you got out of your vehicle and you went up to Mr. Rosario; is that correct?

A. Yes.
Q. And he was yelling at you; is that right?
A. Yes.
Q. And after he started yelling at you, what did you do?
A. I back up and I call 911. I was confused --
THE COURT: No, no. Mr. Abdelhalim, remember what I said.
Everyone has a problem with this but I am going to be a strict enforcer of this.
Listen to the question and answer only the question. Don't volunteer anything else, understood?
THE WITNESS: Yes, sir.
THE COURT: All right.
MS. NAVARATNASINGHAM: Q. Okay. Sir, you waited for police to arrive, correct?
A. Yes.
Q. You provided them with your information, correct?
A. Yes.
Q. They did not cite you at the scene, correct?
A. What was the question again?
Q. Sorry. They did not cite you for anything, correct?
A. No.
Q. And they told you that you were free to leave, correct?
A. Yes.

Q. And you left the scene?
A. Yes.
MS. NAVARATNASINGHAM: Thank you.
THE COURT: Well, there was a double negative in there. Okay?
It is true that they did not cite you at the scene; is that correct?
THE WITNESS: Yes.
THE COURT: Thank you.
MS. NAVARATNASINGHAM: Thank you.
THE COURT: Anything else? Counsel? Anything else?
MS. NAVARATNASINGHAM: Sorry, Your Honor. No.
THE COURT: All right. Redirect?
Mr. Rosario, you can ask questions, it is redirect. They completed their examination.

REDIRECT EXAMINATION BY

MR. ROSARIO: Q. Okay. Mr. Abdelhalim, you stated that you checked your side mirrors and if you had seen anyone; is that correct?
You said that. You said: No.
Did you -- did you -- how long did you look? How much time did you spend looking in that mirror? Do you know approximately how much time you spent looking in that mirror to see if there were people?
A. So I better look in front of you, left or

right, to keep on going. You cannot just keep on going.

If you get clear, you got to keep going; if it is not, what are you supposed to do?

I am not gonna -- that is what happened.

Q. So you looked behind you or in front of you for people?

A. I looked behind you, you look in front you, and you look at your both sides.

Q. Okay. What type of glasses do you wear, Mr. Abdelhalim, for your eyes? Are those corrective glasses for near view, far view, short -- what is that called -- shortsighted or farsighted? Which are you?

MS. NAVARATNASINGHAM: Objection, compound.

MR. ROSARIO: Q. Mr. Abdelhalim, are you shortsighted or farsighted?

A. These glasses, just for reading; anything else, no. I don't know what you call this.

THE COURT: Reading glasses.

THE WITNESS: Reading glasses. But I have a problem, a prescription, and I have to keep it up. I get used to it. I don't take it off.

MR. ROSARIO: Q. Mr. Abdelhalim, if you take off your glasses, can you read the words over there on that sign that says: Juror to state the following?

MS. NAVARATNASINGHAM: Objection, Your Honor.

MR. ROSARIO: Q. Can you read it for me? I am curious about how far his eyes work.

MS. NAVARATNASINGHAM: Objection. The question has been asked and answered, and relevance.

MR. ROSARIO: What?

Q. After the turn on to Tehama, when did you feel the impact?

MS. NAVARATNASINGHAM: Objection, misstates the testimony. He said he never felt an impact.

THE COURT: Sustained.

MR. ROSARIO: Q. Mr. Abdelhalim, how big is your truck? It is a van, correct? It is a Ford Transit.

How much does it weigh?

MS. NAVARATNASINGHAM: Objection, it calls for speculation.

MR. ROSARIO: No, it is a known factor.

THE COURT: Sir, it is beyond the scope of the examination.

If you are going to ask about the weight of the truck, I think you have already established it.

So it is not relevant at this point.

MR. ROSARIO: It is. A 7,000-pound truck --

THE COURT: Sir, it is beyond the scope of the examination by Defense Counsel.

MR. ROSARIO: Q. All right. Mr. Abdelhalim, is it possible that you did not feel the hit because of the weight of the truck?

MS. NAVARATNASINGHAM: Objection. Calls for expert opinion, it calls for speculation, relevance.

THE COURT: Well, it is speculative, but he can answer the question.

MR. ROSARIO: Q. Is it possible you did not feel it just because you -- you know, you say you didn't feel anything. Is it possible the truck still could have hit somebody?

A. You could feel anything because the truck is very lightweight and it is empty, you could hear anything, that is what a van -- it is nothing, you could hear, I could hear you while you are yelling and need help. I could hear my van when I am going. It is nothing, nothing affect my van or anything.

I don't hear anything.

Q. Okay. You just stated that you could hear me yelling.

What did my yelling sound like to you? Can you give the Court kind of a explanation what it actually sounded like?

What -- were there words? What was the yelling?

MS. NAVARATNASINGHAM: Objection, asked and answered. He already said he heard him yelling for help.

MR. ROSARIO: Q. What form was the yelling? Was it screaming in a high shrill? Was I saying a word?

What was the yelling?

THE COURT: What is the relevance?

MR. ROSARIO: We are trying to establish what type of yelling it was.

Q. Was it somebody screaming "help"? People walk around all the time and scream.

What was the yelling that made you think you had to stop.

THE COURT: Well, Mr. Rosario, on this occasion, he heard you yelling for help and he stopped. I think that's the answer.

Are you asking whether it was shrill or loud or however? Is that what you are asking?

MR. ROSARIO: I think I had testified that I don't usually yell for help.

I did during the call you made to 911.

I am just curious about the yelling, what words were said.

THE COURT: Sir, it doesn't relate to the issues in this case.

He has said that he stopped the van, that -- because he heard you yelling for help --

MR. ROSARIO: Q. I am asking what you heard me yell. What did I say?

MS. NAVARATNASINGHAM: Asked and answered.

MR. ROSARIO: Hold on a second. Somebody was calling for help.

You are saying I said --

THE COURT: Sir, stop. I am going to ask him the question.

What did you hear?

THE WITNESS: "Help, help, help."

THE COURT: Was it loud?

THE WITNESS: Yes.

THE COURT: All right. Next question.

MR. ROSARIO: Q. Was your window rolled down, Mr. Abdelhalim, to hear that, or was it rolled up?

MS. NAVARATNASINGHAM: Objection, relevance.

THE COURT: Sustained.

MR. ROSARIO: Q. Mr. Abdelhalim, I asked you how fast you go through a turn to about five miles per hour.

And when you are going through a turn, are you normally stopped in the middle of an intersection so you can stop and help a person? Is that something that most people complete the turn and go all the way through?

You stopped because you claim you heard me yelling "help." So you stopped in the middle of your turn to jump out and offer help, then you said that I -- I threatened you and you moved the vehicle down and you came back after I threatened you --

MS. NAVARATNASINGHAM: Objection, misstates the testimony.

MR. ROSARIO: I am making sure I get the sequence correct.

MS. NAVARATNASINGHAM: It is incorrect.

MR. ROSARIO: Q. Now, at this point, here, Mr. Abdelhalim, you said after you moved your vehicle you got out and she said yes and then you made a call and the police came and then you said that they gave you no citation.

MS. NAVARATNASINGHAM: Objection, compound.

THE COURT: Overruled. I am not sure what the question is. What is the question?

MR. ROSARIO: Q. The question is -- now: I never contacted you.

Why did you send a letter to me?

MS. NAVARATNASINGHAM: Objection, misstates prior evidence. There was no letter from Mr. Abdelhalim to Mr. Rosario.

MR. ROSARIO: Well, I am not allowed to say who sent it.

MR. ROSARIO: Q. So it is obvious it came from someone that represents Mr. Abdelhalim.

MS. NAVARATNASINGHAM: Objection, relevance.

THE COURT: Sustained.

MR. ROSARIO: Q. I don't know why you would send a letter to me --

THE COURT: Sir, move on. Aside from that, it is beyond the scope of the examination by Defense Counsel.

Any other questions?

MR. ROSARIO: Q. Yes.

Mr. Abdelhalim, you, in your deposition, told

your wife that you were worried about something that happened.

MS. NAVARATNASINGHAM: Objection, relevance.

THE COURT: It is relevant, it is not relevant, and it is beyond the scope of the examination, sir.

Sustained.

You are complete? All right, sir. You may step down.

Your next witness.

MR. ROSARIO: I have a video, like I told you, Your Honor. I wasn't finished, but I need to do a video. It is really late now. It could take an hour for this video to go over it.

I think we should adjourn until tomorrow or Monday because the video will take some time to go through and I have to ask Mr. Abdelhalim about the contents of that.

So we can't continue until we do that.

THE COURT: How long will it take for you to prepare the video to be played in the courtroom?

MR. ROSARIO: I believe that we have to set up the screen and a number of things.

THE COURT: How much time do you need so that I can tell the jury to come at a time that is convenient for them.

I do not want them to be sitting in the courtroom at 9:30 waiting for an hour for you to be

setting up.

So tell me: What time do you expect to be complete?

MR. ROSARIO: 9:45, sir.

THE COURT: What time will you arrive?

MR. ROSARIO: I will be here at 9:00 a.m., sir.

THE COURT: Very well.

Members of the jury, we are going to adjourn for the weekend.

We will have you here at 9:45 Monday morning a.m.

Remember not to form or express any opinions about this case to anyone. Thank you. You can just leave your notebooks there. Nobody is going to be coming into the jury box tomorrow.

Thank you. Have a good weekend.

(Whereupon, the jury was excused from the courtroom).

THE COURT: Thank you. Very well.

Is there anything else we need to do?

How much more of a case do you have to present on this phase?

MR. ROSARIO: Mr. Abdelhalim changed his story between the 911 --

THE COURT: Sir, I asked the question. How much more time do you require to present your phase one testimony or evidence?

MR. ROSARIO: I believe one more day, sir.
THE COURT: All right.
MS. NAVARATNASINGHAM: Your Honor, Mr. -- my witness was going to be Mr. Abdelhalim, who has already completed his testimony.
I was going to show the body cam footage as well. However, we have pared it down to just about 10 minutes.
And then I was going to cross-examine Mr. Rosario.
I probably need a half a day, honestly.
THE COURT: All right. Okay. I would expect that you -- I think you presented me with jury instructions?
MS. NAVARATNASINGHAM: They are here, Your Honor.
THE COURT: And a proposed verdict form?
MS. NAVARATNASINGHAM: Yes.
THE COURT: All right. Please share them with Mr. Rosario and if there are any issues we will address them at the end of the day either Monday or -- preferably on Monday, so that we can roll right into the first phase, consideration by the jury of the liability and causation issues.
MR. ROSARIO: We also provided a verdict form.
THE COURT: Well, why don't you see if yours matches up with what Defense has proposed here? Okay?

My recollection is there may be some aspects of the verdict form that has been proposed which invoke some specific question.

So it may be -- it is not a general verdict, but it is the other form of verdict, special verdict form, that you may need to consider drafting of that form.

But I really don't want to have a circumstance where we are contesting the nature of the verdict form immediately before we present it to the jury.

MR. ROSARIO: Did you want to do final statements on Tuesday?

THE COURT: Yes, if we can do it, we will have oral arguments.

MR. ROSARIO: On causation and liability?

THE COURT: Yes, sir. Yes, sir.

MS. NAVARATNASINGHAM: And, Your Honor, you mentioned that, and that was a good point.

We may have to modify the jury instructions as well just because of the bifurcation.

So I will work on the Defense's draft or Mr. Rosario and their consideration.

THE COURT: See if you can, to the best of your ability, meet and confer.

You have a few days to review things.

Try to cooperate with each other with respect to the presentation of these materials to the Court.

I really don't want to have to resolve issues which, in the Court's view, can be resolved by the parties.

Next, I really encourage you, Mr. Rosario, to have your so-called body cam video recordings ready to go.

It does not appear to be anything in dispute with respect to their authenticity, so you can make an offer in front of the jury to say that these are the particular video recordings that we would like to have played before the Court, they come through the Custodian of Records responsible for these body cam video recordings. And please have them ready.

I will not allow you to delay the jury's time in the courtroom because you can't get your technical issues ready for them to hear the evidence.

MR. ROSARIO: I will have -- handle it myself, sir.

THE COURT: Very well. Anything else?

MS. NAVARATNASINGHAM: Your Honor, I just was going to reiterate, we pared down the videos.

We talked about this a lot, there is a lot dead air on those videos, like an hour and a half, and reference to insurance.

So I am hoping those are excluded from the Plaintiff's version.

MR. ROSARIO: Yes, Your Honor. I have went through and I have clipped wherever insurance was

1 mentioned.
2 There is one part where -- there is a video
3 part where like he is holding up an insurance card,
4 and I can clip that out, but they are having a
5 conversation during that part.
6 So it is not like -- it is kind of all over
7 the place.
8 Mr. Abdelhalim was giving insurance here, and
9 like I was saying: Why is he giving insurance if he
10 didn't hit me?
11 I am still confused. Whatever. I think they
12 asked for it. The officers asked for it because there
13 was a call that Mr. Abdelhalim told him that "he hit
14 me," so the officers collected the insurance.
15 So I think we are kind of in like -- I don't
16 know what to say.
17 MS. NAVARATNASINGHAM: I think the issue is
18 the insurance items are marked out of the video,
19 edited out.
20 MR. ROSARIO: I don't know why your client
21 offered the insurance if he wasn't guilty of hitting
22 me.
23 THE COURT: It is not pertinent to the issues
24 in this case. So I am going to ask you to redact or
25 to black out or to edit out any reference to an
26 insurance card or insurance at all that was referenced
27 in any of these video recordings.
28 You should have transcripts available;

otherwise, if you do not, then we will rely on the video recordings that Defendant is offering here which presumably would have edited out those insurance recordings.

Please -- I think you will need to identify for him -- that is, Mr. Rosario -- those sections that you believe need to be redacted, in an abundance of caution.

It is always an issue where someone may have inadvertently left something in, not because, as I say, it was inadvertent, it was not because it was intentional, it was because there was so much material that is on the recording.

So I think you need to at least share explicitly what your particular concerns were.

MR. ROSARIO: Okay, sir. All I have to do -- these are to match the MILs that you asked us to omit and to black out, correct, sir? The motion in limine, like insurance, and those pieces like that. Okay. Understood.

They can send me anywhere that has -- as long as it has insurance on it, we can do that.

I have black squares and we can negate the audio.

THE COURT: Do you have transcripts for these?

MR. ROSARIO: I do.

THE COURT: So you will have to redact that,

do the work, and somehow edit that material out of the video recordings and out of your transcripts.

MR. ROSARIO: Out of my transcripts, yes.

THE COURT: Yes, sir.

MR. ROSARIO: Okay.

THE COURT: All right. We will see you at 9:45. Please arrive at 9:00 o'clock so we can allow you to set up.

Again, I do not want the jury waiting for you to set up, sir.

MR. ROSARIO: I will be ready at the time.

THE COURT: Thank you. The Court is adjourned.

MR. SOBATI: Thank you.

MR. ROSARIO: Have a good evening, sir.

THE COURT: Thank you; same to you.

(Whereupon the court was adjourned at 3:58 p.m.)

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STATE OF CALIFORNIA)
) ss.
COUNTY OF SAN FRANCISCO)

I, DENNIS M. SOUZA, CSR No. 3893, do hereby certify that I am an official reporter Pro-Tem of the Superior Court of the State of California, in and for the County of San Francisco, and that as such, I was present and reported in stenotype the proceedings had in the within-entitled matter at the time and place herein set forth, consisting of these proceedings held on April 17, 2025, and that the same is a full, true and correct transcription of said stenotype notes as taken by me in said matter, to the best of my ability.

DATED: San Francisco, California, this 17th day April, 2025.

DENNIS M. SOUZA, CSR #3893

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---ooo--- 149:18

0

020 97:18

1

10 19:25 20:24 35:14 80:9 144:8
100 36:15
105 10:1
11:10 50:24,26
13 36:20
14 36:20
14th 18:8 19:15 20:20
15 29:10 30:6 35:23 58:18 76:4
17 5:1
18 58:23
19 58:24
1:29 106:27
1:30 78:26 106:26

2

20 19:21 20:25 52:16 58:24 64:14 66:9 97:18, 19 100:20,21 101:12
2017 88:3
2021 18:5,11 94:18
2022 93:4,9
2025 5:1
24 57:22
25 29:7 80:5
250 88:3
2:18 19:8,12
2:20 19:12,20
2:30 116:10 122:4,6
2:40 19:20 21:7,10 29:4,8
2:55 29:9 34:17 47:18 48:8
2:56 47:20
2:57 39:2
2:58 47:21 48:9

3

30 58:17
352 131:14 132:5
3:00 39:5,10 52:16,20 122:4,6,7
3:01 48:16 49:18
3:02 48:17
3:05 116:13
3:20 52:21
3:30 52:21
3:58 149:17

4

4 18:10 94:18
40 20:25
4th 18:5 84:7

5

5-7 24:8
504 51:3 79:3 116:17
50s 67:20
5th 19:28 20:12,13 21:14,18 26:22,24 81:10 82:4 84:7

7

7,000 88:5
7,000-pound 42:4 46:3 70:11 137:21

8

835 18:7

9

9 97:16
900 70:17
911 11:8 27:25,26 29:10 30:5 31:6,15,17 32:5,6,9,24 33:18 34:18,22 35:2,10,13,21 37:2,10,28 38:11,18,19, 23,25 47:27 74:18 76:4 94:25,27 95:1,4 96:23, 25 97:1,21 102:1 104:9, 19 107:8,9,18 109:7,10 111:3,19,21,24,26 114:27 115:6,7,9,27 117:5,28 118:2,4,11,17, 20,23,26 119:4 122:21, 22,25,26 123:1 127:21 128:5,8,17,22,23 134:6 139:14 143:25
9:00 143:6 149:7
9:30 142:28
9:45 15:26 143:4,11 149:7

A

a-b-e-l-h-a-l-i-m 90:4
a.m. 143:6,12
abandoned 30:12
Abdelhalim 5:4 10:7,21 11:9,24 12:7,20 13:18 14:1 16:15 21:27 24:22 27:13 29:3,9,19 30:26 36:8 39:12 40:16 44:5 45:25 47:22 51:5 72:26 73:20 74:6 75:9, 13 76:12 77:26 78:6 79:5 89:12,18,23,25 90:3 91:17,22 92:4,9,15 93:2,8,13 94:7,24,27 95:2,4 96:4,15 100:27 104:5,13 105:26 107:6, 15,19 108:3,14,17,26 110:1,2,6,11,15 111:2 114:2,12,26 115:12,15 116:2,7,19,23,28 117:4, 6,8,27 118:7,13 119:10, 15 120:17 121:19 123:5,20,23 124:8,14 125:8,14,18 126:10,24 127:2,9,15,22 128:2,8, 19 129:15,24 130:2,11, 17,23,28 131:4,9,20,25 132:8,13 134:7 135:20 136:11,15,23 137:9,24 140:7,11 141:2,14,18, 28 142:17 143:24 144:4 147:8,13
Abdelhalim's 20:9 25:4 40:11
abide 66:25
ability 17:16 65:18 145:25
abnormal 124:27
absence 9:25
absolute 67:2 78:17
absolutely 11:4,5 66:26 124:5
absurd 21:6 60:21
absurdity 31:16
abundance 148:7
accept 98:5
accessing 49:16
accident 84:24 86:14
account 127:16
accountability 41:6
accurate 14:26 90:27
acknowledged 12:10
act 79:25
actions 59:19 104:14
actual 8:22 66:7 98:17 122:26

adamant 33:19
add 74:2
added 78:18
addict 44:24
address 5:14 13:11, 22 14:4 47:20 97:7 144:21
addressed 5:19 9:17,18
addresses 13:16
adjourn 142:15 143:9
adjourned 149:13, 17
admissibility 61:5
admissible 8:4 9:5 19:1 61:26 63:14 101:16
admission 35:8 73:11 100:16
admit 95:4 97:26 120:5
admits 37:23 66:1
admitted 8:14 9:8,16 37:28 48:1 99:4
admitting 114:1
admonished 7:24
admonition 74:2
adrenaline 32:16
adverse 10:28 88:27 89:26
advisement 53:17
affect 138:12
afford 62:26 66:2
afraid 80:17
after-the-fact 43:3
AFTERNOON 79:1
age 58:18
agency 72:11
agent 34:2
aggressive 40:20
agree 11:26 47:7 129:25
agreeing 41:9
ahead 6:19 73:10 102:22 118:6
aid 29:24 30:10,18
ailments 87:20
air 68:24 71:14 146:23
alive 27:16 68:9 88:7
allegation 13:24
allegedly 105:26
allergic 69:27
allowed 7:3,6 10:5 46:5 64:28 65:4 66:1 74:7 141:15
alluded 38:22
alpha 40:23
alter 127:16
altering 70:14
alternatively 122:22
amazing 23:26 58:4
ambiguous 84:25 92:24 93:6 107:28 108:11 119:13 124:23 127:13,19,28 130:21 131:12,14
ambulance 44:28 45:14,20 46:13,23 53:15 56:28 57:3,13 60:5,15
amount 32:16 70:15 80:11
amplify 106:10
anatomy 22:21 23:4
ancient 34:28
angel 86:28
answering 90:14 121:21
answers 12:4
anticipating 13:7
anymore 19:18,19 98:6
apologies 103:14
apologize 74:28
apparently 70:6 81:4
apply 104:5
appointment 63:22
appreciated 71:3
approach 10:22 114:14 115:2 119:21 121:3 123:3 128:10
approached 27:13 30:21,23 80:14 84:13 115:23
approaches 82:20 83:5
approaching 81:19 82:3,7,10,12
approximately 70:17 135:26
approximation 26:12
April 5:1
arbitrary 73:19
area 18:24 19:26 20:19 21:1 23:14 24:7, 23 26:22 57:8 68:21
argue 12:8
argument 12:5,19, 23 83:22 84:1
argumentative 76:7 110:4,9 114:5 125:12,21 129:28 131:23 132:11
arguments 145:15
arm 23:11,12,17 67:26
arrive 122:26 134:16 143:5 149:7
arrived 29:6 39:1,20 41:26,28 42:20 44:26 47:21 52:20 86:4
arrives 6:20 39:11 47:1
artificial 14:20,23
Arvind 71:1
asks 126:14
aspects 145:1
assign 62:23 66:3
assist 77:10
assumes 129:3
assuming 12:16 73:12 101:9
astounded 33:12
attached 105:23
attempt 33:15
attorney 26:15 99:26
audible 90:23
audio 15:9,23 37:15, 19 82:17 95:18,21 96:14,22,24 98:15,17 102:11,25 103:6,19 105:6,18,19 106:4,14, 28 107:3,7,23,26 108:14 109:5 110:17,24 111:8,15,21,26 112:21, 24,27 129:19 148:24
auspicious 75:14
authentic 65:19 99:7,28
authenticated 99:11
authenticity 68:6 146:8
authorities 29:25 30:28
authority 62:28
Avenue 81:10 82:5 84:7
average 19:22
avoid 7:11 9:11 30:28 33:16 41:6 48:13
avoidance 33:15
aware 5:21 18:10 91:18,23,28 92:5,10 125:8

awareness 91:26
awhile 18:16 19:4 121:17

B

baby 24:5 53:11 54:15 57:28
back 5:3 12:23 16:11, 17 17:18 21:25 22:9,11 23:14 24:11 26:4 27:13, 15,21 30:2 32:1 34:6,16 38:14 39:14 40:21,22, 27 41:4 43:6 48:5 50:11,12,24 51:3,4 56:17 60:23 67:24 70:2, 9,16,27 75:15 76:20 78:25 79:3,4 84:9 86:1, 6,8 87:12,28 93:18,20, 26 95:19 96:17 101:3 102:12 109:16 112:24, 26 115:5,27 116:13,17, 18 117:15 121:6,13 123:1 128:14 134:6 140:23
backed 7:14 8:17 17:22
background 37:19
bad 7:9 60:6
bag 24:27
bags 36:17 55:22
balance 87:13
ballpark 20:1 84:7
banned 31:3
banter 66:25
barely 23:16 32:22 34:21,23 36:5 37:27 42:28 57:23 107:21 108:4,21 110:26
barked 40:18
barking 39:21,23 40:28 41:12 43:22 45:18
based 5:9 9:27 11:10 21:8 29:7 65:5 98:21 109:18
basic 61:21
Basically 129:10
basing 44:18
basis 104:11,13 127:25
bat 74:5
batteries 18:21
battery 18:26 19:2,9
bears 97:18,19
beats 71:22
bedroom 25:24
begin 130:24
Ben 21:8
benefit 40:12 61:20
Benjamin 46:18
bicycle 18:22
bicycles 132:25
bicyclists 133:8,15
bifurcated 5:13 64:20,24
bifurcation 145:21
big 8:5 24:4 32:21 53:11 54:15 63:26 100:4 137:9
bike 26:26,28 27:2
bikes 19:17
bills 74:25
bit 18:19 29:18 30:16 46:5 53:8 66:20 67:19 80:15 113:3
bits 90:19
black 25:20,21,22 147:25 148:18,23
blacked 25:18,25 42:5
blacking 26:1 41:4
blame 44:3 66:23
blessed 88:11
blinked 36:3
blinking 26:9
block 39:13 76:13 84:18
blocks 84:17
Bloodgood 69:24
blue 82:4
bodies 59:7
body 7:4,13 11:7 14:14 15:9,23 28:22 32:14,17 39:15,22 40:8 53:18 73:22,28 85:22 115:15 126:1,2,4 144:6 146:5,12
bones 22:17
boom 84:19 110:25
bottom 14:19
Boulevard 18:7
boundary 7:26
box 88:4 143:16
boy 90:4
brace 48:26 49:22
brain 36:2 49:16
break 47:15 50:24 51:16 70:17 78:12,16 116:11,12
breaking 79:24
breath 29:15 33:28 57:19 87:4
breathe 23:21,22 32:22
breathed 23:20
breather 30:7
breathing 31:25 34:4 57:27 71:25
bribes 131:21
bridge 19:28 71:11
bridges 26:25
briefly 5:8
bring 16:28 23:9 41:23 59:4 68:13 86:26 93:18,20,26 95:19 96:17
bringing 65:12 99:18
brings 23:3
broke 86:8
broken 22:17 53:23, 28 54:1 57:26 68:23 70:13,23
brought 6:15 11:12
bruise 53:19
bruises 46:1
brush 60:22
brushed 74:16
building 57:9
bumper 24:10
bumpy 21:20
burn 98:2
burner 98:6
business 7:21 8:3,8, 18 18:28 20:10 31:27 61:2,16 76:12,20,21
busy 55:28
bypass 57:15

C

CAD 96:23
cadavers 59:5
cage 67:25
calendars 80:24
California 5:1 9:28
call 10:28 11:9 13:2 18:3 27:25,26 28:3 29:9 30:5,7 31:6,15 32:27 34:24,25 35:21,24 36:8, 10,16 37:2 38:18,19 66:15 76:4 89:6,20,23 93:23,24 94:25,27 95:1 97:1 104:9,27 107:8,9, 16 109:14 110:12 114:2,8,17,27 115:5,9, 21,27 117:18,22,23 118:20 119:24 122:2,4, 25 123:1 127:16,21 128:5,9,15,17,22 134:6 136:18 139:14 141:3

147:13
called 11:5 20:9 21:8, 12 29:4,7,8 34:18 35:26 36:7,14,21 37:10 38:26 45:22 55:1,10 57:2 58:8 67:15 69:1 71:4 89:26 102:27 107:18 109:7 111:21 115:7,13 118:11 122:21,22 136:13
caller 107:19 108:19
callers 102:11,18
calling 30:28 31:17 35:2,5,11 41:6 88:27 92:25 107:22 108:22 111:19,24,26 139:25
calls 22:25 32:5 54:25 55:2 70:19 74:18 84:24, 26 91:19 94:9,10,19 126:27 127:7 130:6 137:13,27,28
cam 11:7 14:14 15:9, 24 39:15,22 40:9 105:22 126:1,2 144:6 146:5,12
cameras 45:4 126:4
cams 85:22
cancer 34:2
candor 38:21
capable 44:15 47:8
capacity 72:12
captioning 14:22
captions 14:10,14, 16 15:4
capture 101:26
car 27:19 36:18,19 55:22 123:19,27
card 63:26 66:21 147:3,26
care 36:28 37:18 52:3 69:6,21 88:8 91:18,23
carefully 90:16
carries 129:25
cars 38:23 39:16
case 9:23,27 10:15,19 11:21 13:3,8 15:20,24 16:15 33:19 34:15 50:25 52:4 63:18 64:15, 20 66:16 74:19 78:25 83:20 88:26 93:23,26 96:7,10 99:16 103:24 112:24 129:20 139:18 143:14,22 147:24
casual 56:1
CAT 60:26
catching 69:11
cathartic 17:13
catheter 69:1
causation 5:12 64:18 66:5 76:11 79:27 103:28 144:24 145:16
caused 50:20 64:27 74:10 83:6,25
caution 148:8
cavity 69:3
cell 24:26
CEO 71:1
certification 11:15 99:23 100:7
certifications 96:27
certified 6:15 8:18,21 9:2 99:19 126:2
CGC-21-594102 16:16
chair 84:11
chance 32:10 78:21
change 10:4 38:22 109:21,26 128:5 129:11
changed 25:28 93:3, 9 109:19 128:7 143:24
changing 25:23
channels 74:7,8
charged 18:17
chassis 88:4
check 30:5 132:20
checked 53:21 132:24 135:21
chest 23:20,23 29:14 33:28 57:19,21,26 68:20,24,26 69:3 71:14 87:3
chief 88:26 93:26 129:20
child 31:22
children 28:7 31:26 33:19 58:19 71:3 74:19
chill 20:27 25:6 56:9, 20
choke 49:6
choose 12:4 66:17
Chris 20:5,10,12,17
chronology 62:13
cigarette 30:7
circumstance 145:9
circumstances 122:19
citation 121:17 141:5
cite 134:21,23 135:6
citizen 115:20
city 18:11,23 19:6,11, 16 20:19 28:16 126:3
Civil 9:28
claim 13:14 140:19
claimed 39:19 119:18
claiming 38:2 120:6
claims 38:6 92:16 118:9
clam 48:13
clamp 59:21
clarification 112:2 114:7
clarified 79:17 112:21
clarify 98:7 101:13 107:3 118:6
clause 7:22 9:12
clean 123:8,12,21,24, 25 124:27
clear 9:21 80:15 99:13 112:6 114:28 118:3 132:22,23 136:3
clearer 106:23
clerk 16:5,14 51:2 79:2 89:28 90:5 98:7 100:25 116:16
clicked 22:7
client 73:13 75:28 103:3,20 108:12 147:20
clients 16:20 51:8 116:22
clip 95:22 96:14 107:7 111:21 147:4
clipped 146:28
clock 84:21
closed 14:22
Closer 82:1
closing 12:5,23 83:22 84:1
clothes 58:21,25
coaster 17:12
Code 132:5
codes 91:23
collapse 68:25
collapsing 31:12 57:26 68:25
collected 17:16 42:3 147:14
collecting 52:26
collision 92:10,21 120:18,19,23,28 122:2, 14,15 124:15,19,27 125:3,15,19 126:18,25 127:4,10 131:6,10,19
colloquial 34:27
color 123:5,6
comments 77:5,12
common 26:18
communicate 74:5

compact 97:23
companies 18:13
company 40:24
Compex 6:16
complete 48:25 51:18 64:10 77:22,23 140:17 142:8 143:3
completed 96:9 104:20 135:17 144:5
completely 36:1 39:17 43:7 57:23 66:7
composure 77:21
compound 118:12 126:13 136:14 141:6
comprehensive 13:4,5
compressed 57:21
compromised 24:3
computer 55:24 98:6
con 86:19
concede 12:21
concept 31:17 35:1 89:10
concern 5:22
concerned 13:22 47:25
concerns 148:15
concluding 95:14
conclusion 91:20 92:1 130:7
conclusions 91:27
condition 61:26 62:7 63:13,18 92:21
conditions 6:14
conduct 77:11
cone 31:24
confer 145:25
confirm 123:17
confrontation 89:12
confused 28:21 29:11 41:2 75:27 103:13 117:10,14,17,20 118:28 119:8,23 121:5 128:11,26 134:6 147:11
confusing 27:2
confusion 48:25
connected 59:7
conscious 25:28 26:2,4 38:15
consciousness 38:16
consequences 77:19 129:26
consideration 144:23 145:23
considered 83:17, 18
constantly 71:16 87:22
constitution 34:5
contact 29:25 50:8 72:11 75:10 93:14 94:5, 8,13,16 107:11
contacted 141:10
contained 9:7
contemplating 35:23
contemporaneously 6:25
contents 142:18
contesting 145:9
context 8:25 9:15
continue 16:22 62:25 64:3 78:14 96:3 142:19
continued 38:11 54:9
continuing 20:20
continuous 51:19
contracted 23:21,22 25:14
convenient 142:26
conversation 7:8 32:19 44:16 56:26 147:5
converted 19:3
convinced 65:5 120:10,11
cool 32:2,6
cooperate 121:14 145:27
copies 99:28
cops 47:4 50:12 74:13
copy 15:10,27 17:25 98:11 99:19 100:13,24 101:2
corner 7:14
corporate 72:17
correct 43:11 46:21, 22 49:11 89:1 92:1 93:14 98:19 103:10 107:8,25,26 108:5,6,8 111:5 113:17,20,21,24 118:18 122:8 123:8,14 128:9 130:5 132:26 133:25,28 134:16,19, 21,24,27 135:7,22 137:10 140:27 148:18
corrective 136:11
correctly 133:2
cortisol 32:17
Counsel 12:14 16:20 51:7 77:11 79:7 114:14 116:21 135:11 137:23 141:25
counter 56:24
County 126:3
couple 12:28 21:23 25:10,13 35:26 47:15 55:24 59:22 70:10 71:23
court 5:3,10,11 6:3,6, 12,21,24 7:27 8:13,23 9:13 10:24,27 11:19 13:2,16,27 14:3,16 15:3,15 16:1,17 17:3 18:2 22:24,28 23:2,6 29:1 31:3 34:6,9,12 35:7 37:1 38:8 39:7 41:21,25 42:19,24 43:9, 13 44:25 45:5,9,14 46:8,16,20,23 47:15 48:2,6,15,18,22,26,28 49:2,7,18 50:1,11,23 51:4,13,18,23 52:5,9, 13,17 53:27 54:2 55:2, 6,11 59:12 61:4,8,11, 14,19 62:21 63:10,11, 21,23 64:1,9,25 65:10, 12 66:9,15,24 67:2 68:3,11,14 69:15 70:21 72:9,20 73:7,10,17,26 75:1,12,19,26 76:8,16 77:8,9,16 78:4,19,22 79:4,14 80:2,10 81:5 83:1,7,9,10,17,18 84:3, 28 86:16 87:19 88:12, 17,20,27 89:2,6,13,16, 17,20,24 90:6,8,10 91:13,21,25 92:2,8,13, 25 93:7,12,19,22 94:11, 21 95:13,25 96:1,6,18, 21,28 97:6,10,13,20,22, 25,26 98:3,5,8,18,24,26 99:1,6,10,20 100:1,9, 15,19,23,25 101:14,15, 22,25 102:5,19,28 103:12,25 104:2,4,16, 18,22,26 105:4,7,15 106:2,21 107:4,13 108:1,26 109:1,3,15,17 110:5,10,14,21 112:7, 12,26 113:4 114:9,13, 21,24 116:12,18 117:27 118:3 119:14 121:19, 21,28 122:12,18 123:18 124:6,12,24 125:1,13, 17,24 126:6,11,21 127:1,8,14,23 128:1 129:5,10,16,23 130:1,8, 15,22,27 131:3,13,24, 27 132:12,16 133:1 134:7,14 135:4,9,11,15 136:19 137:8,16,22 138:1,17,28 139:7,17, 27 140:3,5,10 141:7,20, 23 142:4,20,24 143:5,8, 20,26 144:2,12,17,19, 27 145:14,17,24,28 146:11,19 147:23 148:25,28 149:4,6,12, 16,17

Court's 61:5 98:8 146:2
courtroom 12:10 16:4 50:28 77:17 78:28 142:21,28 143:19 146:15
courtrooms 58:14
cover 101:8
COVID 25:14 28:12 54:13 57:17 60:18 69:11,20 71:5
crack 71:13
cracked 53:12
crawl 86:24
craziest 46:1
crazy 57:15
crazy-assed 47:4
create 20:9 125:19 126:25
created 14:22 132:1
creating 127:3
creator 127:10
credence 13:17,23
credibility 14:1
credible 44:17 100:5
crime 92:5,6,11
critical 78:17
crooked 57:23
cross 8:19 14:28 88:26 105:27 108:21
cross-examination 51:21, 27 88:19 132:18
cross-examine 11:1 51:12 70:22 80:8 88:22,24 144:9
crossed 108:21
crossing 21:2
crosswalk 21:22 24:21,23 84:10
crown 28:24
crushed 21:25 29:11 39:27
crushing 29:15
CT 59:4,21
cue 69:3
culture 40:26
cumulative 70:18 131:15
curb 21:21 27:21 88:5
curious 136:28 139:15
curly 69:2
custodian 99:21 100:8 146:12

D

damage 22:9
damages 5:13,20 7:2 75:24
dark 55:20
date 124:2
dawn 22:3
day 28:26 29:13 38:3,6 60:18 72:25 87:24 123:27 144:1,11,21
days 55:24 67:5,6 68:19 69:4,7,23 70:10 71:16 77:6 145:26
dead 35:16 41:16,19 68:8 146:23
deadline 64:10
dealing 76:11
dear 25:14
death 55:26 60:22 74:16 83:6
deathly 80:17
decide 9:26 30:3,6 66:18
decided 20:16 63:22
decision 61:5 65:28
decorum 77:17
Defendant 25:17 64:22 82:15 83:26 148:2
Defendant's 52:27
Defense 11:14 12:14 15:11 64:1 83:23 86:20 98:22 100:1,2,14 102:22 132:15 137:23 141:24 144:28
Defense's 145:22
delay 146:14
deliberating 101:4
deliver 74:19
delivered 99:20
delivery 37:14
demanding 41:1,12 45:10
demonstrative 22:10 26:18 79:17
denial 78:10
denies 76:4
denying 107:24
depart 18:6
department 7:18,21 8:4,20 47:21 51:3 79:3 100:5 105:12 116:17 126:3
depends 9:13
deponent 113:22
deposition 82:17 92:16,20 93:3 123:7,10, 11,16 141:28
describe 10:6 45:15 54:2 68:16
describing 87:20
descriptions 65:21
descriptive 23:8
designated 100:20
detail 13:6
details 52:2
detected 14:21
determine 10:9 31:20 65:18 127:25
dial 35:27
die 7:10 24:1 30:12 31:5 33:8 35:14 36:23, 24,27 57:27 59:10,19 74:19
died 19:9 28:12 33:20 34:1
differences 12:6,24
difficult 62:18 65:6 86:22 101:26
digital 97:24,25,26
digress 80:4
Dilaudid 67:15
direct 17:11 58:3 64:13
directed 59:12
direction 22:6 44:13 81:11,24 82:11,19 83:4 84:5,6 111:9
directly 20:11 77:25 85:10,12 86:8 111:17
dirt 124:16
disabled 81:4
disagree 11:26
disagreement 83:21
disappeared 25:27 27:14 37:11
disc 97:23 98:3
disclosure 8:20
discovery 100:3
discrepancy 15:14
discrete 90:19
discs 99:25
discuss 63:12,15
discussed 75:24 102:24
discussing 7:2

discussion 53:14 102:9 106:5
disease 56:7
disgusting 33:9 41:20
dismount 84:14
dispatch 47:19
dispatched 38:23 47:19
dispute 146:7
disregard 83:13
distracted 98:24
distracting 77:8
distress 5:15 9:18
doctor 7:6,9 54:10, 12,28 56:25 57:1,2 58:26 62:3,19 67:17,18, 20
doctors 7:3,26 54:25 61:24,28 63:12 65:20 67:10
document 8:14 9:7, 8 17:25 61:17 73:12 101:3
documentation 8:17
documents 8:6,21 9:2 14:8 30:15 63:7 65:4,25 66:8 101:11
Doe 28:1 32:13
Dolan 11:17 96:27 97:28 99:20 100:3 102:15
Dolores 25:5
door 57:18 58:13
double 133:1 135:4
download 100:1
downtown 39:4
draft 145:22
drafting 145:6
dragon 36:24
draw 29:2
drawn 62:5
drive 31:19 36:11,17, 18 46:25 82:12 98:4 100:10
driver 44:20 49:25
drivers 29:22 130:4
drives 98:5
driving 29:23 39:14 54:24 72:5 75:16 82:7,9 94:18 107:20 108:20 112:18 113:13 123:4
drops 74:12
drove 55:16 58:6
drugs 49:17
dude 74:22
due 7:19
Dustin 32:20
duty 91:18,23
DVD 98:6
dying 7:7,17,19 8:11 23:28 27:27 28:4 29:10 30:9,13 38:17 39:24,28 40:7,18,28 41:15,18 44:19 54:13 56:7 57:17 69:19
Dylan 16:15 17:5

E

ear 87:23
earlier 9:21 20:17 25:13 109:19 111:20
early 36:9
ears 23:27 87:16
earth 98:1
easier 22:21 79:19
easiest 12:12
edge 20:2
edit 147:25 149:1
edited 147:19 148:3
editorialize 114:9
educated 63:4
effect 8:11
effectively 73:1 74:4
efficient 16:26
effort 98:21
elaborate 86:18
elected 6:8 16:23
electric 20:28 21:3
electrical 19:4
elegantly 13:1
eloquently 89:11
emergency 41:11, 26,27 46:4,11 49:2,20 52:3 56:19 57:14 58:11 96:25,26 99:23 100:5 102:14 105:12 122:26
emotional 5:15,26 9:18
emotive 17:12
employ 66:17
employee 35:24 46:21
employees 29:4,6 31:26 33:23 45:22
empty 39:18 88:5 138:8
EMT 43:18 48:28 50:2 53:14
EMTS 41:26 42:19 45:18,25 47:21 62:6
en 20:6
encourage 146:4
end 32:26 144:21
ended 69:18
enforce 77:16
enforcer 134:10
engineer 22:5
English 90:23
enjoy 88:9
ensure 44:5
enter 6:18 7:20 65:26 102:25 125:28
entered 16:4 97:15
entire 28:22 71:21 96:10
entirety 103:24
entry 108:18
envelope 97:14
ER 54:12,13
escaped 87:1
essentially 14:28 28:25 29:1 52:4 62:4 64:22
establish 39:25 52:22 64:27 139:1
established 44:7 137:19
estimating 21:8
estimations 19:13, 15
Evan 67:27 81:21,24, 28 82:8,12,20,23,24,25, 26 83:3,5 84:9,13 86:26
evening 149:15
event 15:8,18 43:6 127:16
events 17:22
evidence 9:9,16,27 10:4,8,15 12:1 15:15, 19,22,24 17:22 18:27 19:7 65:16 80:16 83:19 84:3,4 86:13,19 97:27 98:18 99:2,4,14,16 100:17 101:15 110:21 125:23 126:1 129:4 132:5 141:13 143:28 146:16
evidentiary 9:5
exact 47:2 105:14 130:24
examination 12:25 64:13 91:16 95:14 96:3 116:24,26 135:17,19 137:17,23 141:24 142:6

examine 11:2 12:2 48:6 93:28 104:18,22
examined 12:14 17:6 79:12
exception 8:7,8,12
excerpts 14:12
exchange 15:17
exclamatory 60:3
excluded 146:25
excruciating 23:13 70:3
excuse 17:13 77:4 133:7
excused 50:27 78:27 143:18
exhausted 53:10
exhibit 85:20 97:11, 13,15,18,19 98:12 99:22 100:20,21 101:12
exhibits 98:8,10
exonerates 83:26
expect 143:2 144:12
expecting 80:7
expedient 11:23
experience 12:11 24:15 29:22 77:2
experienced 22:23, 27 71:15
experiences 65:21
expert 14:23 22:26 61:1 62:23,27 63:15 65:13 70:20 84:24 94:9 137:28
expertise 62:1,12
experts 26:17 28:27 63:17,23 65:12 66:2
explain 26:18 41:21, 25 62:10 63:9 66:13 92:2 117:1 118:27 124:20
explained 117:25 128:10,25
explaining 62:19
explanation 116:4, 7,9 117:16 123:22 138:17
explanations 61:25
explicitly 148:15
explore 70:21
express 7:4 50:25 65:10,15 78:24 79:18, 21 116:13 143:13
expresses 74:20
expression 59:26 65:17
extend 87:9
extended 87:8,28
extent 18:3 22:25 63:21 84:23
externally 53:24
extreme 69:26
extremely 77:8
eye 85:13 87:23
eyes 32:21 78:5 136:11,28

F

F250 88:4
face 40:22 59:26
fact 28:20 40:4,8 62:17 65:28 76:16 81:6 105:11
factor 137:15
facts 129:3
fail 77:18
failing 19:9
fairly 17:18 19:2
faking 32:9
family 27:26 28:4 29:13 31:26 32:11 33:23 42:16
farsighted 136:13, 16
fast 39:3 49:25 50:3 58:7 103:19 120:19 131:1 140:12
fatal 34:23
father 34:1
fathom 126:16
fathomed 126:17
fault 24:20 27:5 39:25 43:23,26 44:13,26 48:12 52:22
fear 13:15
February 18:5,10 75:8 94:18
feel 11:11 80:20 89:14 124:9 133:19 137:5,25 138:4,5,7
feeling 7:13 29:14 30:13 57:27 68:25
feelings 7:4,12 36:26 53:18 75:21
feels 7:4 124:12
feet 21:19,23 27:21 28:24
fell 50:17
fellows 20:4
felt 21:25 23:19,22 34:8 60:6 70:25 87:6,9 88:15 137:7
fence 21:23
fentanyl 44:23
Fernandez 27:1 50:21 52:23 83:25
fight 42:9,10,14 54:12
figure 40:7
file 97:24,25,26 98:15, 17 101:28 102:1,11,13 105:12,13,21 106:14,28
files 99:17
fill 49:14
final 79:16 145:12
finally 22:7 30:20 31:13 32:5,8 72:22
find 8:7 18:25 28:5 31:4 36:19 55:28 56:4,9 125:15
finding 72:22
fine 31:2
fingers 27:24
finish 52:1 64:12 75:4 90:13
finished 55:21 78:15 121:1 142:12
fire 7:18,21 8:4,20 47:21
firefighter 8:10
firm 11:17 96:27 97:28 99:21 100:3,4
fits 7:25 85:23
flat 19:26
fled 77:26
flight 42:9,14
flow 77:13
focus 34:14,15
folded 63:27
follow 15:9 98:21
food 28:14
foot 31:14 84:13
footage 14:14 144:6
force 40:3 47:4
forced 44:19
Ford 88:3,4 94:17 123:6 137:10
foreclosing 80:11
forfeit 77:9
form 50:25 78:24 116:13 138:24 143:13 144:17,26 145:2,5,6,7, 10
format 6:8
Fortunately 7:16
forward 15:12 87:23, 28 103:19

found 38:3 50:5 72:23
foundation 68:2,6,9 73:15 74:27 76:28 84:25 86:12 104:13,23 125:21,22,25,27 127:7 129:14
fourth 37:25 60:17
fracture 46:7
Franciscan 33:11
Francisco 5:1 7:16, 17,21 25:7 26:21 28:5, 13 53:7 58:3 59:8 60:24 96:25 99:23 105:12 126:3
Franciscus 16:15 17:5
Francois 18:7
freaked 27:17 31:7 32:15 56:2
freaking 32:3,21,22
free 134:26
friend 25:14 28:12
friends 30:8 33:24 40:16 71:8
front 8:24,27 12:9,17 17:18 18:14 38:10,11 76:26 78:2 83:3 107:20 110:26 114:28 132:23 133:12,14,15 135:28 136:6,8 146:9
frozen 23:18
full 17:10 54:6,13 60:13 103:9,22

G

gabapentin 69:27
gap 88:16
gather 43:10 104:8
gave 9:24 10:6 18:26 54:20 67:14 78:15 80:5 97:3 99:25 128:6,21 141:4
general 53:7,9 54:21 57:11 58:4 59:8 60:24 145:4
generic 73:24
Gentlemen 77:9
gestures 90:24,26
Giler 21:8 46:18,21 47:1 52:11,12,23 53:3,6
give 6:3 10:3 13:16,23 16:23 17:17 35:25 51:10,19,25 62:27 63:26 64:10,14,21 65:12 72:6 98:4 100:13 116:4 119:19 121:16 132:14 138:17
giving 47:8 65:20 80:10 83:10 147:8,9
glad 88:7
glasses 136:10,12, 17,19,20,24
glimmer 38:15
God 31:16 32:7
good 5:7 16:5 53:20 57:16 71:8 90:6 91:13 115:20 143:17 145:19 149:15
goodness 45:22
gosh 35:14 38:24 74:13
grab 36:17
grabbed 27:23
grabbing 58:20
grand 88:8,10
gray 87:6
grayed 25:18
great 133:5
grocery 20:3 28:14
ground 23:1 24:28 26:10 27:25 31:18 32:19 33:5 35:22 36:16, 21 38:24 40:6,21 43:20 44:19 85:4,10,11,17 86:24
group 43:22 63:5 65:20 67:10
guess 17:8 24:3 30:27 60:23 76:11 78:7, 11 79:18,25 88:18 89:16 91:2 120:17 132:15
guide 15:8,22 98:20 99:12
guilty 147:21
gun 103:15
gunshot 57:5
gurney 45:6 46:11,13 57:19 58:13
guy 33:6 35:11,21 36:27 41:5 47:28 49:24 50:7 59:2 67:22 72:15 74:18 107:20 108:20
guys 21:26 22:13,16 29:2 33:7 35:10 38:2 44:18,21 47:13 52:19 54:23 60:27 64:21 65:1, 14,22,28 66:5 67:1 71:28 73:25 79:28

H

hack 18:20
half 63:27 144:11 146:23
halfway 39:12 110:17
hand 90:24 98:16 101:20
handed 103:16
handle 30:22 72:13 106:16 146:17
handles 57:5
handling 11:23 12:12
hang 25:10
hangs 39:1,2
happen 58:2 65:27
happened 20:22 21:15 22:2 24:6 27:9 29:18 30:23 33:21,22 35:15 37:4 38:9 41:22, 25 42:19,20,24 43:6,11, 15 44:26 45:2,5 46:14 48:7,18 49:7,23 52:7,17 54:2 55:3 61:10 62:15, 16 64:15 67:4 68:17,19 71:12 75:7,8 79:26 80:14,19 111:17 121:7 130:3 136:5 142:2
happening 42:8 66:14
happy 13:18
hard 8:23 18:22 34:3 38:20 74:1 88:1,2 126:16
harm 10:10,16
harvest 33:2
head 28:24 59:21 87:8,14 90:24 113:22
heading 18:7
heal 69:9
hear 5:19 15:23 23:6 26:3 35:5,10 37:15,18, 19 43:15 91:4 96:1 103:3 105:8 106:23 107:2 112:4,5 113:3 115:21 126:7 127:23 138:8,10,11,13,14 140:1,7 146:16
heard 52:10 66:1 97:7 108:4 109:20 113:1 115:1,18 121:2 133:23 138:22 139:8,20,21 140:19
hearing 77:5 87:15
hearings 103:28
hearsay 7:3,11,26 8:1,4,7,9,12 9:3,7,12 30:14 35:6 42:23 53:26 54:27 55:9 56:14,26,27 58:28 59:11,12,14,15, 17 61:22 62:21 63:3 69:14 73:4,6 83:17,18
heart 71:24
heave 54:1
heavy 23:10
heck 41:7,9 42:7,12 71:20

height 24:10
held 67:5,6 71:16
hell 31:8 42:5 45:8 47:5
helped 46:18,23 49:21 71:9
helpful 22:13
helping 26:12
helps 47:3
hey 31:21 33:2 35:5 39:26 41:13 47:28
hide 28:14 31:19
hiding 28:11 38:14
high 24:7 40:17 49:17 138:25
higher 54:9
highlights 14:25
hill 55:18 56:16
hills 19:27
hip 70:8
hire 40:25
hit 22:6,7 24:12 28:17 29:23 31:18 32:25,28 33:5,13 34:19 35:19 37:22,26 46:3 47:28 48:1 50:4,9 54:18 64:23 67:9 70:10 72:2,5,14 73:18 77:24 85:28 87:8 94:5 95:5 107:9,21 108:4,21 109:5,8,11,22 110:19,26 112:18 113:15,27 114:1,17,19, 20,23 115:26 116:3,8 117:2,7,12,13,21,23,24, 26 118:10 119:3,4,25, 27 120:14 121:4,8,9,11 128:9,16,18,27 129:1 137:25 138:6 147:10,13
hitting 147:21
hold 23:10 47:11 57:24 67:28 76:15 83:8 97:16 139:24
holding 147:3
hole 68:22
holes 49:13
home 18:6 54:6,24 69:25
honest 110:12
honestly 89:5 144:11
Honor 5:8,27 6:5 9:11 13:10,13,22 14:8 17:24 68:1,7 77:4 78:13 80:28 82:28 83:28 84:22 86:10 87:17 88:25 89:11 95:10 97:4 100:18 103:1,18 104:12 105:10,21 107:1 109:12 116:11 125:28 129:2 135:13 136:26 142:12 144:3,16 145:18 146:20,27
honorable 42:17
honoring 105:15
hook 44:5
hope 40:3 53:2 81:26
hoping 146:25
hospital 7:7 32:14 53:7,9 54:6,20 55:18,23 56:6,21 57:5,10 58:4 59:24 60:7,17 68:17 69:25
hospitals 8:19 57:6 58:15 65:22 74:16
hour 36:20 49:28 64:12 77:23 120:26 131:5 140:13 142:14,28 146:23
hour-and-a-half 78:23
hours 57:22 70:26 71:23
human 22:21 31:22, 25 47:23
hurdle 97:6
hurt 42:13 70:8
hurting 22:14

I

idea 9:1 36:2
identification 100:22
identified 78:14
identify 32:13 43:13 63:18 97:10 148:5
identifying 101:10
identity 72:15
illustrate 79:21 80:18 81:27
illustrations 79:17
illustrative 80:22 81:6 85:19
imagine 26:20 32:16 40:17 50:10
immediately 19:10 24:24 29:24 30:5 31:17 60:14 73:20 74:9 77:27 145:10
impact 79:24 133:19 137:5,7
impeach 11:9 129:21
impeachment 94:2
implication 30:28
imply 118:24
implying 43:22 45:11
important 79:22
impressions 49:15
improper 131:28
inaccurately 92:6
inadvertent 148:11
inadvertently 148:10
inappropriate 105:16 131:28
inaudible 5:27 27:5 105:26
incapable 65:11
incident 19:19 34:7 81:3 86:12 102:18 126:5 130:3
included 126:4
including 16:19 51:7 62:6 65:20 70:8 116:21
inconvenient 32:1
incorrect 96:11 140:28
indicating 23:15,25 28:23 37:13,18 57:24 59:28 70:16 83:5 84:19 85:13,16 86:1 87:9,10, 15 106:11
indirect 37:26
individually 101:2
individuals 62:10 91:28 102:26
infected 25:12 69:12
infection 56:8
infer 65:1
inference 63:7 71:28
inferences 29:2
information 6:15 8:22 42:3 44:20 52:26 53:6 54:26 56:24 60:11, 12 72:2,7,11 90:19,20 95:17 99:22 100:2 101:5 134:18
informed 53:6
injection 67:14
injured 39:27
injuries 5:16,18 27:9 28:19,22,25
injury 24:9 29:26 50:20 62:18 64:27 65:1 73:22 74:11 83:25
injustice 33:22
inquire 91:14
inquiry 93:1
inside 59:6 69:3 87:14,21

inspect 15:11 45:28
instance 29:27
instigated 118:15
instruction 9:20,21, 24,28 10:3 13:12
instructions 8:16 30:22 56:14 144:14 145:20
insufficient 65:23
insurance 9:23,26 72:6 146:24,28 147:3,8, 9,14,18,21,26 148:3,19, 22
intake 58:12
intelligence 14:20, 23
intend 80:3
intending 18:6
intensive 69:6,21
intention 35:21
intentional 148:12
interaction 30:25
interest 105:15
interesting 20:7
internal 53:22
interpret 22:15
interrogating 45:10 49:19
interrogation 44:19
interrupt 77:13
interruption 77:15
intersection 21:14 45:1 80:14 81:21,22,25 82:3,9,13,20 84:15 118:1 121:1 140:15
interview 127:17
introduced 67:20
inundated 56:5
invoke 145:3
involved 11:12 30:26 38:28 74:9 81:2
involvement 74:20
irrelevant 9:26
isolated 24:9
issue 5:14 9:17 10:16, 24 13:6 14:4 48:7 63:22 68:14 80:4 93:25 104:23 147:17 148:9
issues 10:19 34:14 39:19 139:18 144:20,24 146:1,16 147:23
item 8:24 99:10
items 147:18

J

jacket 76:25,26 78:1 85:18,19,21,23 86:4,14
jerry-rigging 103:22
Jessie 20:12,13
job 52:21,26 66:19,27 86:21
John 28:1 32:13
Judge 10:20 22:20 30:21 64:24 81:14
judges 67:3
jump 20:28 103:7,15 140:21
junky 44:23
juror 16:4 136:25
jurors 6:9 15:8,18 16:5,19 51:6 63:5 79:6 98:12 99:12 100:24 101:18 116:20
jury 5:19 6:6,19 7:5 8:15,27 9:21 10:11 12:5,9,18 13:14,17 16:21 42:24 43:15 45:15 47:17 48:7,10 50:27 59:16 63:2 66:18 77:20 78:22,27 83:13, 20 86:17 97:8 101:24 102:4 106:15 107:2 142:25 143:9,16,18 144:13,23 145:11,20 146:9 149:9
jury's 146:14

K

Kalene 16:9
karaoke 14:18
Keegan 23:3 39:6 68:13 77:3,5 80:16,18
keys 36:18
kick 18:20 19:3,11,16, 22,26 20:24 21:16 27:3
kicking 84:14
kids 33:23 58:19,20 88:8,10
kill 34:24 82:26
killed 27:5 35:16 59:5 83:6
killing 57:28
Kimono 36:23
kind 6:27 7:11 14:18 17:9,17 18:17,28 19:3, 26 20:6,18 23:10 26:28 33:9 43:3,4 58:13 59:3 81:27 85:4 96:21 124:20 138:17 147:6,15
knew 21:24 24:2 36:5 55:23,27 56:5
knowing 43:4

L

laboratory 18:15 28:12 70:28
lacerations 53:20
lack 30:18 65:11
lacks 68:2 73:14 74:26 76:27 84:25 86:11 125:21 127:6
laid 67:24
landed 84:20 85:9 88:1
lane 26:23,27 82:4
lanes 26:24,28 27:2 39:15
language 8:14
laptop 55:24 106:9, 17,23
large 53:8
late 22:8 142:13
latitude 5:10 10:6
laughing 41:14,15, 18
law 9:27 11:17 96:27 97:28 99:21 100:3,4
laws 27:7
lay 125:24,26
laying 26:10 31:13,22 32:19 36:15 40:6 43:20 86:25
lead 58:26
leaning 57:24
learned 72:5
leather 76:26 78:1 85:18,21
leave 6:9 33:13 52:22 119:11 134:27 143:15
leaves 47:26
leaving 18:14 35:22
left 23:12 76:22 81:16, 17,22,23 82:7,18 111:5, 7 117:19 119:6 128:14 130:19 132:22 135:1,28 148:10
left-hand 82:8
leg 23:17
legal 82:26 91:20 130:7
letter 72:17,21,26 73:2,5,6,19 74:6,24 75:9 141:11,13,22
level 63:4
liability 5:12 103:26 104:1 144:24 145:16
liable 64:23

lie 110:2
lieu 31:1
life 8:16 34:4 52:3 70:14 74:17 86:28 87:1
life-threatening 34:26
lights 24:11 86:7
lightweight 138:8
limb 8:17
Lime 18:12 81:3
limine 87:18 148:18
limitation 65:14
limited 12:11 22:22 66:7
links 100:1
liquor 20:11 25:4
list 132:1
listen 25:5 90:10,16 133:3,5 134:11
listened 107:7 109:4
literally 7:9 25:3 27:23 28:13 40:7 41:14, 16 44:19 105:20
live 19:6 28:7 29:13 63:24
lock 28:11
locked 97:28
lodge 81:1 84:23 86:11
logic 76:5
long 19:6 25:18 36:16 45:27 51:15 77:27 115:9 122:1,25 135:24 142:20 148:21
looked 21:27 25:17 27:18 53:20 60:2 86:14 133:6,14 136:6,8
lost 36:2 101:5,8
lot 5:9 17:14 21:1 34:22 42:14 56:7 146:22
lots 18:12
loud 32:24 90:22 139:10 140:3
louder 31:9
low 18:26
lucky 40:16 41:16,19
lunch 75:4 78:12,17, 23
lung 24:3 31:12 34:1 53:21 56:6,7,8 68:25
lungs 35:19
lying 30:9 110:7

M

machine 59:20,21 60:25 61:12,15,17
made 9:1 10:17 37:3 44:6 61:16 63:23 66:11 75:21 92:28 93:4,14 97:5 110:7,15 122:25 133:18 139:5,14 141:3
magnitude 17:10
mail 72:17
maintain 71:9 77:10, 21
major 19:27
make 5:21,23 7:24 8:23 11:16 12:28 13:4 14:11 25:11 33:23 36:16 40:5,13 53:11 54:15 65:28 66:27 68:12 71:2 73:7,15 76:3,10 77:14 81:26 83:11,19 90:26 91:10 95:20 101:7 103:10 105:17 107:8 117:22 118:3 130:18 146:8
makes 26:1 101:27
making 13:8 91:26 105:25 117:10 130:12 132:20,21 133:9,11,16 140:26
male 40:23
man 28:10 31:6,8 32:28 42:3,15,17 44:18 58:17
Management 100:6 102:14 105:13
manipulated 68:23
manner 7:25 11:10 80:18
map 26:10
Marine 42:18
mark 86:5 101:2,12 124:20
marked 100:21 147:18
markers 21:20
Market 18:8 26:23,24, 27
marks 76:25 85:25 124:15,18,26 125:3,9, 15
married 28:9 71:6
Martinez 20:5,10,17 25:2
Martinez's 20:12
mask 52:24
master 102:1
match 148:17
matched 24:10
matches 144:28
material 100:10 148:12 149:1
materials 6:22 100:28 145:28
matter 5:4 8:1 10:18 11:3 16:14,18 40:4,7 44:4 51:5 61:23 63:16 79:5 116:19
matters 5:12
means 91:5 96:7,9 131:14
mechanism 22:3
med 58:21,24
medical 6:14 54:10 61:28 62:3,5 63:12 65:25 71:7 74:25
meet 145:25
meets 99:2
members 16:21 36:10,13 78:22 101:23 143:9
memory 17:26 39:9 84:27
mention 31:3 40:14 59:23
mentioned 13:13 21:13 43:19 54:23 145:19 147:1
mentions 10:7
message 33:19 74:19 128:21,23
messaged 20:17
messages 41:12
met 67:17
microphone 90:2
mid 67:20 87:27
middle 87:27 140:15, 20
mile 120:26
miles 19:21 49:27 131:5 140:12
MILS 148:17
mind 22:18 25:28 26:2,4 35:4 36:3 38:16 42:6 96:13 128:13
minute 65:9 66:12 105:20 115:5,10
minutes 19:21,25 20:24,25 29:7,10 30:6 31:20 35:14,23 36:20 39:3 47:16 52:16,20 64:14 66:9 75:3 76:4 80:5,9 115:10 122:14, 15 144:8
mirror 24:11 81:15,16 132:21,24 133:7 135:25,27
mirrors 135:21
Mission 84:6

misspoke 96:12
misstates 109:13 122:16 137:6 140:24 141:12
mistake 66:27
mix-up 101:9
modify 145:20
moment 16:11,12 27:12 31:4 36:6 38:25 39:22 42:12 48:9 75:22 79:23,26 80:19 87:2 105:17
Monday 142:16 143:11 144:21,22
money 13:20 62:22, 26 65:11
monitor 69:7
monitoring 71:17
month 72:23
months 25:13 26:16
morgue 28:2,6 32:14
morning 5:8 6:7 10:12 13:23 16:5,21 50:24 54:8 60:9 75:25 77:23 143:11
mortal 34:24
mortality 8:10
mother 33:24
motion 148:18
motions 87:18
mounted 81:7
move 7:1 17:18 23:17 30:1,2 37:1,9 39:18 62:13 72:20 76:7 80:8 84:9 85:6 126:23 129:6 130:8,15 131:16 141:23
moved 27:14 69:17 140:22 141:2
movies 12:23 58:14, 15
moving 69:5
multiple 98:20
music 25:5
mustered 35:18

N

names 28:28
narrative 6:4,9 9:17 16:23 51:25 52:6 90:18 92:26
narrow 60:22
narrowly 87:1
nature 145:9
Navaratnasingham 5:6,7 6:22 13:10 14:7 17:24 18:1 22:22,25 35:6 53:26 54:27 59:11 68:1,5 69:14 70:19 72:8,19 73:4,14 74:26 75:11,18,23 76:2,6,14, 27 77:4 78:3 80:28 82:28 83:28 84:22 85:2 86:10 87:17 88:23,25 89:1 91:19,24 92:7,12, 23 93:5,10 94:9,19 97:3 100:18 103:1,18 107:27 108:11 109:12 110:3,8, 13 114:4 118:12,19 119:12 122:9,16 123:15 124:4,11,22,28 125:6, 11,16,20 126:27 127:6, 12,18,28 129:2,27 130:6,14,20,26 131:2, 11,22 132:10,19 133:3 134:15 135:3,10,13 136:14,26 137:1,6,13, 27 138:21 139:23 140:9,24,28 141:6,12, 19 142:3 144:3,15,18 145:18 146:20 147:17
necessarily 37:13
neck 23:16 48:20,23 49:22 70:8 87:9,25,28
needed 33:20,23 98:11 120:13
negate 148:23
negative 133:1 135:4
nervous 133:4
Ness 56:18
nice 56:20,21 63:5 67:10
night 67:8
nods 90:25 113:22
noon 64:12 66:16
normal 38:12
note 54:21 99:13
notebooks 143:15
noted 5:24,25 84:28 85:1 86:17
notes 17:26,28 64:3
notice 40:5 125:2
notified 53:15
number 16:16 22:1 72:16 92:16,20 97:13 101:3 142:23

O

oath 17:2,4 51:24 79:14 91:2 116:23
object 22:26 25:27 68:2,7 74:26
objection 22:24 35:6 53:26 55:13 59:11 68:4 69:14 70:19 72:8,19 73:4,11,15 75:18,23 76:2,6,14,27 81:1 82:28 83:15,28 84:23,28 86:11,16,17 87:17 91:4, 6,19,24 92:7,12,23 93:5 100:16 107:27 109:12 110:3,8,13 114:4,11 118:12 119:12 122:16 123:15 124:4,22,28 125:11,20,26 126:12,27 127:6,12,18,26,27 129:2,27 130:6,14,20 131:11,22 132:4,10 136:14,26 137:1,6,13, 27 138:21 140:9,24 141:6,12,19 142:3
objections 12:17 75:11 78:3 92:3 93:10 130:26 131:2
objective 26:13
obligated 29:21 125:10
obligation 130:4
observations 17:21 77:24
observe 77:18
obvious 42:11 141:17
occasion 122:19 129:17,20 139:8
occurred 86:13
offer 6:25 9:14 10:17 12:1 13:20 100:26 129:18 131:21,26 140:21 146:9
offered 7:28 8:3 61:23 147:21
offering 61:24 98:27 148:2
offers 10:8 11:2
office 20:1,9 21:9 57:9 99:26
officer 11:6 27:1 39:11,20 40:8,11 41:10, 14 43:19 44:16 45:3 48:11 49:18 50:21 52:23,27 81:8 82:25 83:2,16 99:20 125:9,19 126:17,25 127:3,17 128:6,22,28 129:4,11
officer's 40:2
officers 39:24 43:17 44:2,25 45:27 49:5 118:1 147:12,14
official 96:23
oftentimes 20:26
Ohh 31:20
older 67:19
omit 148:17
one-sided 30:27 32:19
operating 20:28

operational 18:21
operator 34:22 35:2, 13 37:28 38:12,26 107:18 109:10 111:3,13 112:1,16 113:12 116:3, 5,8 118:1,17 128:24
operators 95:5
opiates 69:27
opinion 12:6 22:26 30:26,27 33:7 84:24 94:10 109:20,21 137:28
opinions 50:25 78:24 116:14 143:13
opportunity 12:15 51:20 77:10 83:10 93:19,23,28 101:8 112:13 113:5
opposite 20:14 81:23
opt 42:13
opted 71:4
option 66:4
oral 145:15
orange 34:2
order 7:11 9:11 51:2 52:2 77:7 79:2,18 92:28 99:3 116:16 129:20
ordered 5:11
Orengo 11:6 52:27 127:17 128:6,22,28 129:1,4,11
organization 72:18
organs 32:14 33:3
original 14:10,12 60:9
out-of-court 7:28 61:22
outlandish 13:15
outstanding 52:2
overrule 55:13 129:5
overruled 35:7 68:3, 15 70:21 73:11 75:12 78:4 87:19 94:21 124:6 128:1 141:7
Ow 37:12
owned 20:10

P

p.m. 19:20 21:7,11 29:5,9 39:2 122:7 149:17
pages 101:17
pain 21:24 22:19,23, 27 23:13,26 27:11,16, 20 38:4 43:21 53:10 54:8 58:1 69:26 70:1,3, 11,15 71:9,11 72:24 87:22,24,26
pandemic 18:11 25:8 39:17
paper 15:1,6
papers 16:28
parallel 81:11 84:7
paramedic 49:21
paramedics 46:12
pared 144:7 146:21
park 25:6 36:19
parked 39:13
Parnassus 55:16,18 56:10,11,12,13,14,15 60:8,10,13
part 7:1 19:4 29:17 32:4 34:15 64:18 72:27 89:21 99:16 103:27 105:18 122:27 129:20 147:2,3,5
parties 5:5 9:22 10:9 16:19 51:7 79:7 116:21 146:3
partner 20:10
partners 31:27
parts 102:16
party 14:21 35:7 73:11 90:12,20 91:8
pass 71:19 99:11 100:23 101:19
passed 25:14 103:12
passenger 86:7
past 21:23 58:6
Patel 71:1
patient 77:7
pause 96:18 102:10
pedestrian 37:22 48:1 84:16 92:10 112:19 113:15 117:2,7 129:25
pedestrians 91:18 130:5,12 132:25 133:8, 15
pending 88:20
people 6:13 9:4 14:28 17:21 21:1 22:11 25:7, 10 26:11 29:28 30:14 35:25,26 40:25 41:10 43:16 45:13 54:1,13 56:7 57:17 58:12 59:5, 25 60:12 61:27 65:20 69:19 71:1,13 135:27 136:7 139:3 140:17
percent 36:15
perception 5:24 32:27
perfect 101:27 106:7
perfectly 13:18 14:26
performs 56:26
period 15:5 63:13
permission 114:15
permit 8:13 23:5 80:2 131:16
permitted 9:8 11:1 62:9 104:4,6,27
person 14:25 30:5,8 31:27,28 36:17 38:12, 17,24 40:18,27 42:6 49:21 63:4 81:7,14 104:15 140:16
personal 17:20 53:17 101:5
pertains 10:15
pertinent 10:18 147:23
phase 5:20 34:15 63:26 75:24 143:23,27 144:23
phone 24:26 27:20,25 29:8 32:27 33:18 35:27 36:8,13,16 55:1 72:15 74:18 76:3 85:15,17 107:16 110:7,12 111:17 114:17 117:22,23 119:24 127:16 128:15
phones 16:7
phonetic 16:9 32:20
photograph 60:25
photographs 59:6
physical 26:7
pick 36:11 38:27 88:10
picked 32:8 52:13 53:3 57:12 69:24 116:27
pickup 88:4
piece 9:15 15:6 95:16 102:25
piecemeal 12:2
pieces 148:19
pigtail 69:1
place 12:24 18:13 20:6,17 24:9 26:7 68:7 71:8 75:5 76:9 147:7
places 40:17
Plaintiff 100:20
plaintiff's 100:21 146:26
plan 6:3
plastic 85:28
play 12:17 14:12 18:11 43:14 95:16,21 96:14, 17,18 101:16 103:2 104:4,6,27 105:7,16,19, 21 106:9,25 112:3,7,23, 26 126:21
played 14:13 106:14, 28 107:23 110:17

111:20 112:27 113:8 142:21 146:11
playing 97:22 103:2, 5,8 105:17 106:22
pleases 98:3
point 7:17 8:19 12:24 14:3 22:12 24:16 64:21 72:14 78:8,11 80:6,7,12 83:19 87:25 93:25 95:10 100:11 103:8 105:6,14,24,25 137:20 141:1 145:19
police 36:9 38:28 39:1,2,4,5,14,20 40:19 43:19 45:25 47:2 49:5 52:19 74:10 81:7 82:25 85:22 86:4 92:5,6 115:28 117:7,11,25,28 118:1,28 119:1,3,26 120:2,5,7,9 121:6,8,10, 14 122:2,22,25,26 123:3 125:9,19 126:1,2, 3,14,16,17,25 134:16 141:4
Poor 106:13
popped 87:11
portion 30:22 104:18 105:8,16 112:4,5
portions 9:10 104:5, 7
posed 121:24
position 26:5 63:1 71:9
possibly 24:3 51:17 93:18
postulation 22:4,5
potentially 7:19 10:21 26:6 88:10
pounds 70:17 88:5
power 19:24 58:1
practitioners 71:7
pray 36:24
preamble 105:7
predator 33:8
predicament 65:6
preferably 144:22
preference 16:8
premised 95:9
prepare 88:18 142:21
prepared 5:26 67:16 89:10 95:24 96:28 102:3
preparing 26:14,16
prescription 136:21
presence 9:25 77:20
present 5:5 16:19 51:7 65:4 66:6,7,16 76:23 79:7 89:15 102:4, 20,22 116:21 129:14 143:23,27 145:10
presentation 13:4 77:15 96:10 145:28
presented 101:17 103:23 144:13
pressing 87:3
presume 17:1
presumes 26:28
pretty 7:9 19:10 24:7, 24 28:17 30:4 47:10 52:18 69:9 71:12 85:24 86:18
prevent 13:7
previously 17:6 79:12
principal 61:22
prior 59:23 99:26 100:2 102:24 132:19 133:8,11,16 141:13
private 71:7
Pro 66:20
problem 8:5,9 9:6 62:25,26 72:1 82:14 103:7 134:9 136:21
problems 75:28 87:12,15 106:17
proceed 16:24 18:4 64:16,25 94:1 105:4 106:2
proceeding 6:7 101:23
PROCEEDINGS 5:2
process 13:7
produced 10:15
product 18:2
professionals 62:6
profound 33:16
progressed 17:9
prohibited 10:24
prolonged 5:23
promised 88:13
prompted 60:4
proof 36:15
proper 105:17
properly 105:22
proposed 144:17,28 145:2
propriety 89:13
protect 42:15
prove 7:28 12:21 61:23
provide 6:9,19,21 17:11 29:19 63:26 100:10,13
provided 11:15,17 61:2 82:16 98:8 99:28 100:4,6 101:13 102:14 126:2 128:23 134:18 144:25
pull 27:24 58:12 85:16, 18 86:19 100:12 115:2, 18
pulled 69:2 121:2 133:22
pulling 27:23 39:4,5
pulse 19:4
pulsing 27:11
punched 68:20,22
punctual 16:6
punctured 67:25
purely 17:20
purported 8:2 131:19
purportedly 10:8
purpose 83:22
purposes 101:10,23
push 19:10
pushing 23:19 37:6
put 10:21,27 12:16 13:3 15:6,12 16:7 24:17 28:1 40:5 45:3,6,19 48:20,22 49:22 56:27 57:13 59:20,21 60:4,25 61:12,14 66:18 69:18 83:19,20 84:3 107:13 128:14,22
putting 10:26 13:18

Q

quarterback 40:26
quasi 44:10
question 6:11 11:2 13:19 14:8 50:1 59:13 69:18 88:20 89:17 90:13,17,21 91:3,9 92:19 94:4,11,12,14 100:15 107:5,13,14,28 108:2,12,27 109:3,13, 18,23 111:25 112:6,9 113:6,10 114:10 120:8, 21 121:16,24,25,28 122:23,24 123:9,23,28 126:7,8,13,19,22 128:3, 4,20 129:6,8,23 132:6 133:2,4 134:11,12,22 137:2 138:2 139:28 140:5 141:8,9 143:26 145:3
question-and-answer 6:8
question/answer 16:24
questions 11:24 12:13,28 39:8 41:2 42:20,26,27,28 44:11

51:20 89:22 91:11 95:3, 7 104:24 126:15 131:28 132:3,14 133:5 135:16 141:26

queue 105:24,25

quick 52:18 113:3

quickly 17:9,10,19 18:27 19:2 69:10

quiet 67:13

Quit 73:10

quote 21:4

R

radiology 54:22

raging 22:18

raise 8:13

raised 42:17 126:12

ran 59:24 102:16

rancid 48:14

rang 21:10

rate 71:24

re-routing 20:18

reach 24:26

reached 74:8

reacting 24:4

read 9:19 13:13 47:14 61:1 109:15 126:8,9 136:24,27

reading 17:27 136:17,19,20

ready 95:19 102:24 146:5,13,16 149:11

real 17:9 31:25,27 53:10

realize 26:17

realized 18:19 31:5 44:2

realizing 42:7

rear 81:15

rearview 132:20,24 133:6

reason 39:18 86:27 128:26 131:21 133:22

reasoning 57:4 118:23

rebuttal 93:24

recall 27:12 38:2 42:21 47:27 115:11 122:27 124:2 127:5

receipt 100:7

receive 101:1

received 14:8 101:28 105:11

recently 131:6

recess 16:3 51:1 75:4 106:1 116:15

recognize 73:21

recollection 49:9 113:9 145:1

reconstruction 19:13 84:24

record 5:4 7:18 9:20 16:18 18:27,28 26:3 34:18 51:4,6 73:16 76:17 79:5,6 84:23 86:11 90:27 96:24,26 97:10 101:22 102:9 103:9,22 105:23 106:5 116:20 126:1,9 128:5

recorded 48:9 90:1 127:10

recorder 106:21

recording 11:28 12:16,26 15:4,9,17,23 49:16 96:21 98:27 99:1, 4,7,15 100:16 101:16, 24 103:3,6,20 104:7,19 105:9 109:20 110:22,24 112:9,13 113:8,18 118:8,14 126:22 129:19 148:13

recordings 146:5, 10,13 147:27 148:2,4 149:2

records 7:21 8:3,8,18 19:7 46:4 55:1 60:19 61:2,25,28 62:4 63:14 99:21 100:7,8 146:12

redact 147:24 148:28

redacted 9:11 148:7

redirect 12:15 135:15,17,19

reference 13:12 146:24 147:25

referenced 147:26

referring 17:25

reflect 5:5 16:18 116:20

refrain 13:25

refresh 49:9

refreshed 113:9

refuses 65:12

regard 63:22

regular 44:16

reiterate 61:19 146:21

rejected 49:22

relate 139:17

related 5:15

relates 103:4

relationship 5:27

relax 20:27

relaxed 67:15

release 46:12

released 17:14 69:23

relevance 75:18 76:6,14 92:7 123:15 124:4 125:12,21 129:28 130:7,21 132:11 137:2, 28 138:28 140:9 141:19 142:3

relevant 34:9,12 119:14 124:5 137:20 142:4,5

rely 110:22 148:1

Remain 51:2 79:2 116:16

remarks 75:1,2 77:22 83:7,9 88:21

remember 10:1 20:16 21:16 27:18 29:3 32:18 34:3 41:28 43:1, 10,14,25 44:10 47:27 49:8,10 50:5,24 57:19 67:18,22 69:2,22 71:18 78:24 82:18 86:23 87:26 111:9,11 112:8, 11,14,22,25 113:7 116:13 121:23 123:7 134:7 143:13

remind 64:6

remove 46:10

removed 15:4 86:4

render 29:24 30:10

rent 18:20 19:19

rented 18:25 19:8 81:3

repeat 119:24 120:8 123:9 128:17

repeated 118:17,26 120:1,6

repeating 48:2 64:6 121:10

rephrase 91:8,21 108:1

replay 112:13 113:5

replaying 106:21

report 40:13 74:10 83:24

reported 101:25

Reporter 90:25 101:25 109:15

reporting 50:7 92:5, 6,10

represents 141:18

request 14:3 94:25

requested 5:11

require 143:27

required 15:7

requisite 62:12

reserve 78:13 88:26
resolve 10:18 146:1
resolved 146:2
resonate 65:22
respect 10:7 12:6 62:14,17 64:14 66:26 67:2 145:27 146:8
responders 38:26 47:18
response 59:14,17 127:24
responses 90:28
responsibility 10:10
responsible 146:12
rest 93:17 95:11
restart 106:18
rested 96:7
resume 16:27 51:23 52:5,9 79:8 116:24
resumed 17:6 116:26
return 52:6
returned 36:8,9 79:12
review 60:27 98:9,10, 13 145:26
reviewing 100:28
revival 58:8,9,10,17 59:7,8
rib 53:12,28 67:25 71:13
ribs 29:11,14 39:27 46:7 53:22 54:1 57:26 68:23 70:2,7,13,16 87:26
ride 17:12 19:19 20:3 21:2
ridiculous 13:26
riding 27:3 81:11
right-hand 133:11, 18
ringing 23:27
risk 29:28
road 21:5 31:24
Robert 69:24
rode 19:17
role 66:27
roll 67:2 144:22
rolled 140:6,7
roller 17:12
rolling 55:25
room 56:19 57:14 58:7 59:4,20 67:9,13
rooms 58:9
Rosario 5:4,10,11, 21,25 6:5,11,13,23,27 8:16 9:10,20 10:20,26 11:4 12:27 13:28 14:9, 18 15:10,27 16:2,15,27 17:1,5 18:4 34:6 37:1 38:8 41:21 43:9 44:25 46:8 48:2 50:11 51:5,9, 11,14,22 52:1,8 61:4 64:5 66:9 68:16 77:6, 10,14,22 78:5 79:5,8, 10,11 80:2 88:12 89:8, 19,23 91:14,17,22,26 92:4,9,14,28 93:2,8,11, 13,17,21 94:2,7,15,16, 24 95:7,16,27 96:5,11, 20,23 97:5,9,12,14,24, 28 98:14,19,25,28 99:5, 8,17 100:12 101:13,20, 28 102:7,10,20 103:7, 15,21,26 104:3,12,17, 21,25 105:3,5,24 106:3, 6,12,16,20,22 107:1,6, 15 108:3,13,17 109:4, 15,22,24,26 110:6,11, 15,23 112:10,16,23,28 113:11 114:6,12,16,23, 26 116:10,19,24,27 118:6,13,22 119:15 121:22 122:1,9,11,13, 24 123:20 124:5,7,14, 26 125:2,7,14,18,22,28 126:10,13,20,24 127:2, 9,15,21 128:4 129:13, 22,24 130:2,9,10,11,16, 17,23,28 131:4,20,25, 27 132:6,13 133:27 135:16,20 136:15,23,27 137:3,9,15,21,24 138:3, 24 139:1,7,12,21,24 140:6,11,26 141:1,9,14, 15,17,21,27 142:11,22 143:4,6,24 144:1,10,20, 25 145:12,16,23 146:4, 17,27 147:20 148:6,16, 27 149:3,5,11,15
Rosario's 16:22
Roseman 32:20 85:10,12
roughly 52:14 64:14
route 20:6
rule 7:27 8:7,9 9:3,5 63:11 91:5
rules 29:1 61:18 63:2, 10 66:11,24
ruling 8:24 63:23 64:21 68:12,14 73:7 83:11 87:18
run 11:21 31:28 47:16 71:28
running 43:17 60:5
runs 84:7
rush 52:21
rushing 64:8,9

S

S-U-B-H-I 90:4
sacrificed 34:4
sad 59:3
Safeway 18:8 19:14 20:6,20
sake 89:13 107:1
San 5:1 7:16,17,21 25:7 26:21 28:5,13 33:11 53:7 58:3 59:8 60:24 96:25 99:23 105:12 126:3
sat 12:13 29:10 36:21, 23 69:3
save 52:3 74:17
saved 86:28
scale 26:11 28:17
scan 60:26
scared 117:11,14,17 118:28 119:8 120:11 128:12
scene 10:6 13:14,20 26:13 29:6 36:19 37:2 44:3 48:13 74:14 77:26 94:25,28 134:21 135:1, 7
scientist 28:10
scoot 18:20 19:18
scooted 19:16
scooter 21:3,21 24:23,24 36:5 50:18 80:23,27 81:2,3,7 82:21 83:4 84:14 85:3,6 86:26
scooter-type 18:12
scooters 18:12 20:28 80:17 132:25 133:8,15
scooting 19:3,22,26 20:24 21:16 27:4
scope 5:24 137:16,22 141:24 142:5
scream 37:13 139:4
screaming 22:18 31:18 38:4 121:3 128:11 138:25 139:3
screen 11:12 14:27 15:1 106:18 142:23
screw 23:23
scrubbed 105:13
seat 66:26 101:3
seated 51:2 79:2 89:28 116:16
secondary 9:6
seconds 25:22,25 58:17
Section 132:5
sections 148:6
seek 90:18

seeking 9:16 96:2
seeks 90:20
send 33:19 36:17 141:11,22 148:21
sense 7:2 26:1,18 81:26 95:20 100:5 101:27
separate 90:19 129:16
separating 25:9
sequelae 5:16
sequence 5:28 102:7 119:19 140:27
service 34:2 49:2
services 41:11,26,27 46:12 49:21 96:25,26 99:24 100:6 102:1,15 122:27
session 5:3 51:3,15, 19 79:1,3 80:6 116:17, 18
set 7:8 70:11 95:18 142:22 149:8,10
setting 143:1
settlement 10:4,8 11:2 13:14 14:6
severe 21:24 27:10 67:7
SF 54:21
SFPD 126:2
share 11:13 65:9 144:19 148:14
shipped 56:28 60:15
shoe 31:14 74:12
shooting 23:16
shop 20:7,11,13 25:3
short 16:3 19:6 51:1 106:1 116:15 136:12
shorter 87:5
shortly 21:10
shortsighted 136:13,16
shots 14:9
shoulder 87:27
shoulders 70:9
show 19:7 22:10,26 26:11 32:12 36:14 41:11 54:7 62:4 63:7 64:1 78:7 80:19,26 99:3,6 129:15 144:6
showed 46:18
showing 22:23
shown 6:24 12:25
shows 52:23 99:22 127:3
shredding 27:24 85:27
shrill 138:25 139:10
shuffle 101:5
sic 81:10
side 20:14 21:5 27:4 50:19 51:20 57:18 70:8 77:12 81:16,18,22 82:8 86:7 87:14 111:5,7,8, 11,12 115:14 133:7 135:21
sides 15:16 136:9
sidetracked 34:13
sidewalk 21:18,22 24:15 27:23 29:10 30:13 31:5 33:20 36:1 38:3 39:24 40:18 41:15 76:23 108:25 115:23
sign 136:25
signed 73:12
silent 16:7 60:5
silly 61:18
simple 10:10
simply 8:11 11:24 12:9,12 13:3 14:4 15:22 62:3 83:19 101:25 104:27
simultaneously 102:12
single 26:23 28:10 29:15 57:21 71:23 102:12
sir 6:12,20 13:2 15:15, 26,28 16:1,28 17:3 34:10 45:5 51:13,24 52:9 54:3 55:7,11 58:18 61:8,12 62:13 66:16 68:11 72:20 73:7 75:1 79:14 83:9 84:3 88:20 89:3,17 91:13 92:2 96:1 97:22 98:24 103:25 104:2,3,16 107:5 112:7 113:4 114:9,13 115:3 118:2,5 121:12,20 125:27 126:23 127:24 129:8,12 131:8,15 132:19 134:13,15 137:16,22 139:17,27 141:23 142:6,8 143:4,7, 26 144:1 145:17 146:18 148:16,18 149:4,10,15
sirens 58:6
sister 31:22 35:26
sisters 33:24
sit 30:6 33:14 96:17
sitting 25:24 32:3 33:6 36:24 41:5 70:27 142:27
situated 70:28
situation 21:4 43:21 45:19 52:19 72:13
Skate 20:9
skateboard 20:7,11, 13 25:3
skeleton 22:11,21 23:3,4
skull 23:12
slammed 58:13
sledgehammer 70:26
sleep 70:27 71:18,21
slow 55:25 113:2
slowed 112:3,6
small 116:11
small-cell 34:1
smart 63:6
smeared 78:1
smudged 78:1
so-called 146:5
Sobati 11:16 17:9 101:20 103:13 105:10 106:9,19,27 108:16 149:14
somebody's 31:22
sore 70:9
sort 133:19
sound 49:10 138:16
sounded 138:18
sounds 103:19
source 73:19
Souza 23:9
speak 7:12 23:7 27:7 47:6 63:3 122:10,12
speaker 25:1 95:24 96:20 106:12,13,26
speaks 14:25
special 145:5
specific 28:28 30:22 92:27 103:8 145:3
specifically 8:18,20 34:27 44:3,11 79:23,24
speculation 84:26 94:10,20 126:28 127:7 137:14,28
speculative 138:1
speed 35:27 120:22, 24 130:18,24
spell 90:1
spend 135:25
spent 135:26
spine 31:12 87:25
spinning 85:5
spoke 67:11 102:21 111:18
spoken 14:17 107:3
spotty 49:12

squares 148:23
squeezing 68:26
staff 63:12
stamps 106:19
stand 10:21,26,28 12:22 13:19 16:28 17:7 42:11 47:23 51:23 52:6 79:9,13 81:28 82:26 95:27 96:16 114:13 115:2 131:7
standing 24:8,25 31:6 39:12 40:28 41:13 82:27
start 16:12 17:23 39:4, 5 49:14 58:20 61:21 83:14 84:9 115:25 119:23 121:3
started 29:16 31:9, 10,11 37:11 45:4,17,18 48:13 58:25 70:11 71:1 87:3 112:19 115:4 134:4
starts 32:18,23 39:21, 23
state 28:7 68:4 89:28 136:25
stated 82:17 92:15 107:7,9 111:23 135:21 138:14
statement 7:28 8:2 9:1 17:8 40:10,13 47:8, 9 52:28 61:22 93:9 110:7,16 129:18
statements 8:6 11:10 62:3 66:18 92:20, 27 118:20,21 145:13
states 46:6 99:21
stating 74:24
stay 25:15 27:16 62:14 64:7 95:27 116:1 123:25
stayed 45:27 69:22
steal 27:28
step 46:18 51:11 89:2 102:5 142:9
stepping 6:1 16:10
stick 80:3
stickers 58:26
sticking 58:26 68:20 83:24
stipulate 11:4
stood 31:10 38:13
stop 20:5,16,27 29:24 30:4 56:18 102:10 120:28 131:27 139:6,27 140:16
stopped 75:15 115:21 122:3 133:22 139:9,19 140:15,19,20
store 20:4,12 25:4 28:14
stored 99:25
story 19:6 37:8 38:23 47:5,7 60:21 66:6 92:18,22 109:27 125:19 126:17,25 127:3 128:5 129:11 143:25
straight 74:4
straps 48:20,22
streams 105:27
street 18:8,9 19:28 20:8,14 21:15,18 25:4 26:20,21,23,24 27:4 31:23 32:20 36:4 45:15, 16 47:22 50:5,19 55:17 59:5 84:6 112:18 113:13 115:14 130:19, 25
streets 21:2 39:17
stricken 75:2 83:7,9, 12
strict 134:10
strike 76:7 85:25 92:16 110:16
striking 129:25
stripes 21:19 84:11
struck 24:22 38:1,25 84:5 86:6 109:21
stuck 60:15 67:26 68:28
students 58:21,24
stuff 25:5
Subhi 16:15 89:25 90:3
subject 8:6 9:3 51:26 61:4 81:2
submit 17:27 30:16 46:5
submitting 97:7
subpoenas 6:16
subtitles 15:3
sucked 71:14
sudden 50:8
suddenly 26:4 33:5 58:18,20 74:17
suffer 28:25
suggest 101:1
suggesting 61:24
suggestions 90:7, 10
super 40:19
Superior 67:2
support 29:20
supposed 29:20,21, 23,24,25,27 30:4,9,10 72:6,10 136:4
surgeries 74:17
surgery 67:16,18,21 68:6
surreal 36:26
sustain 55:12 132:4
sustained 28:22 53:27 69:15 72:9 75:1, 19,26 76:8 83:1,15 91:21,25 92:3,8,13,25 93:7,12 110:5,10,14 114:11 119:14 122:18 123:18 124:12,24 125:1,13,17,26 126:12 127:1,8,14 130:1,8,15, 22,27 131:3,24 132:12 137:8 140:10 141:20 142:7
Sutter 55:19 56:18, 20,21 57:4,6,12 59:24 60:8,12,14
sworn 17:6 79:12 89:21,26
system 6:16 66:21
systemic 28:25

T

table 82:1 114:14
tables 81:28
tabulate 14:28
takes 32:12 42:14
taking 58:20,25 80:22
talk 21:4 22:15 24:17 35:12 48:5 61:10,27 62:18 64:28 74:7 80:13 110:23 111:16
talked 38:21 117:28 119:16,17 128:28 129:11 146:22
talking 7:25 14:5,20 32:23,24 43:17,27 44:23 52:25 64:17 77:1 98:14,15 117:28 120:18 127:19
tall 67:22
taller 80:16
tape 35:10 112:27
tapped 59:1
task 104:20
team 36:10,13 40:25, 26 42:16
technical 79:19 146:15
Tehama 21:14 26:22 82:4,7,11 132:21 133:19 137:4
telling 8:28 35:2 38:20,21 65:19 75:28 117:9 118:8

temporal 26:5
ten 122:14,15
Terry 18:7
testified 5:17 17:7 79:13 83:17 89:26 90:8 99:27 133:26 139:12
testify 6:14 38:8 39:7 51:25 88:13
testimonies 51:14
testimony 5:15,24 6:26 13:28 16:22 17:15 21:13 44:16 51:10,16, 19 64:11,14 65:5,17 66:13 70:20 75:21 79:22,23 82:16 84:1 103:4 109:19 122:17 123:16 131:15 137:7 140:25 143:28 144:5
text 14:19 98:17 110:20
thing 11:6 14:19 22:10 24:14 25:19 27:2 31:21 33:26 35:13 39:9 42:10 43:3 44:11,12 46:1,19 55:15 64:7 69:1 74:21 75:20 79:20 85:5, 6 86:26 90:12 97:4
things 6:1 7:25 9:4 10:12 11:16 13:11 17:14 19:7 22:2 24:27 25:6 26:19 27:10 33:15 34:28 37:14 43:23 45:11 49:13,15 53:16, 21,22 55:25 64:5 77:13 79:16,18 86:23 98:15 116:4 118:10,14,16 119:20 121:21 142:23 145:26
thinks 5:17
thirty 122:14
thought 23:28 24:2,4 27:26,27 30:12 32:23 35:12 38:13,16 91:26 94:12
threatened 140:22, 23
thresholds 99:2,3
throw 32:13 71:10
thrown 24:28 31:18 86:2 88:1
thumb 98:4,5 100:10
till 66:16
time 7:23 19:14 21:8, 10,11 23:20 26:3 28:8 32:27 34:3 35:24 37:7, 25 38:20 47:2 48:8,15 49:5,8,17 52:14 55:20 56:2 62:11 66:13,17 71:4,6,18,22,23 75:22 78:16 80:11,21 86:3 88:23 89:8 91:1 93:3 95:7 102:6 104:11 106:19 107:2,14 109:6 119:6,16,17,20,21 122:5,28 123:2 124:2 129:9,13 132:7 135:25, 26 139:4 142:16,24,25 143:2,5,27 146:14 149:11
timeline 5:28 17:17 47:13
times 9:4 37:26 47:28 59:22 93:27 98:20 114:2,8,16 124:10 128:27
timestamps 47:2
tinnitus 87:16
today 5:25,28 16:9 33:3 34:27 47:9 53:1 64:12 78:9
toes 28:23
told 7:6,9 21:26 30:14 34:8,18 42:22 47:27 53:3,4 56:10,12 60:10 62:6,19 79:28 81:8 95:23 98:4 109:8,10 115:3 117:5,19 118:15 119:1,3,21,27 120:6,9, 13 121:8,9,11 134:26 141:28 142:11 147:13
tomorrow 142:15 143:16
top 87:11,12
tore 85:24
toss 31:28
tossed 24:25 42:4
totally 9:26 41:2
touch 5:8 50:9 94:3
touched 28:24 36:13 38:5,6 50:14 73:2 74:22
touching 73:22,27
town 36:11,19
track 37:16,20 50:11 62:14 64:7 107:24
trade 72:11
traffic 21:5 39:18
train 25:26
transcript 14:27 15:7,16,28 96:28 97:2, 20,21 98:17,18,19 99:12,13 101:17,21 102:2,3,19,21,25 108:15,18
transcripts 15:11, 18 100:24 102:17 147:28 148:25 149:2,3
transit 26:8 88:3 94:17 123:6 137:11
transparency 86:22
transparent 78:21 80:1
transparently 103:23
trash 31:24
trauma 57:5,10 58:5
travel 19:15
traveled 19:14,21
traveling 28:16 44:12
treated 33:10
treating 44:22 66:24
triage 56:23 58:12 62:16
trial 6:18 8:27 40:4
truck 27:14 34:19 37:22,27 38:14 39:13 42:4 46:3,24 54:18 70:11 76:24,26 78:2 82:2,8 115:12,17 137:10,19,21,26 138:5, 7
true 9:2 113:28 123:13 130:11 135:6
trust 45:21
truth 7:28 38:20,22 61:23 65:19 75:28 86:21 95:10 125:10
tube 67:26 68:19,28
Tuesday 145:13
tunnel 87:7
turn 16:7 35:12 57:20, 22 81:17,23 82:7,13 85:7 128:14 130:18,19, 24 131:1 132:20,21,22 133:9,11,16,18 137:4 140:12,14,17,21
turned 56:17 82:18 114:28 120:26
turning 23:23 46:27 81:13 82:11 110:25 111:4,6,7,10
turns 26:2 81:14 130:12
two-way 26:22 27:2
Tylenol 69:27
type 40:23 42:15 57:6 65:14 70:1 85:27 123:4 136:10 139:2
typical 130:18
typically 110:2 131:21

U

UCSF 20:2 54:21,22 55:21 57:9 60:9,13
unaware 36:1
unbelievable 23:26
uncertain 15:21

underneath 67:26 84:20
understand 10:14 22:14 29:22 30:11 46:9 52:19 57:4 61:17 66:5, 21,22 67:1 76:5 77:16 79:26 80:5 83:23 86:17 91:3 95:25 96:2 101:24 104:21 118:22,24 130:3
understanding 25:19 62:5 72:4 76:19 108:12
understood 12:27 81:5 102:28 105:2,3 134:12 148:20
unit 58:5 69:6,7,21
unrelated 103:5
untrue 13:15
unworkable 12:9
upset 7:22 30:11
URL 99:28

V

vacate 59:2
vague 84:25 92:23 93:5 107:27 108:11 119:12 124:22 127:12, 18,28 130:20 131:11,13
van 21:28 26:8 27:19 32:25 33:14 34:20 35:20 47:26 50:14 56:18 81:13,19,20,23 86:5,8 88:3,4 94:17 107:20 108:20 110:19 112:17 113:13 123:4,5, 12,21 124:3,8,15,19,27 125:3,15 137:10 138:9, 11,12 139:19
van's 24:10
vault 98:1 99:26
vehicle 30:1,2 38:5,7, 25 39:18 73:2,23,28 81:8,9 82:24 83:4 91:23 93:14 94:3,5,8,13 107:10,12 123:12,19 125:10 133:20,23,27 140:22 141:2
vehicles 21:2
verbal 90:27
verbalized 128:8
verdict 64:22 144:17, 25 145:2,4,5,10
version 14:11 146:26
versus 5:4 16:15 51:5 79:5 116:19
vice 23:19,21 29:15 57:20 68:26 87:2
victim 93:14 110:18 128:9
Victoria 28:8 55:19 71:5
video 11:12,13,28 12:2,16,25 14:9,10,13 15:4 41:17 43:1,7,11,14 45:4 47:3 49:4,9,13 52:28 86:15 125:23 127:2,11,17 129:19 142:11,13,14,16,21 146:5,10,13 147:2,18, 27 148:2 149:2
videos 11:6,7 45:18 46:26 78:7 85:21 126:4 146:21,23
videotapes 36:12
Vietnam 34:3
view 16:25 26:13 81:16 82:21 133:7 136:12 146:2
violate 30:24
Violates 87:18
visceral 33:16
vision 87:6,13
visit 25:2 52:2
visiting 71:2
visual 96:22
visualize 26:26
voice 91:10 95:20,22 96:15,19 108:23,27,28 110:28 111:1,23,25,27 113:17,19,23,24
volunteer 121:26 134:12

W

wait 23:2 102:10 133:1
waited 29:9 54:7 115:27 121:13 122:28 123:1,2 134:16
waiting 30:19 37:7 54:10 119:9 142:28 149:9
wake 71:19
waking 24:15
walk 20:28 27:28 36:19 80:25 88:8 139:4
walked 39:14 46:2, 10,13 50:3
walking 21:15 24:20, 23 27:4 31:2 35:28 44:4 57:23 68:10 76:20 82:23,24 84:15
walks 47:22,25 58:18
wall 80:24 85:8
wallet 28:1 32:12
wanted 5:8,14,21 42:12 45:8,26 47:5 48:13 53:10 56:4,9 79:20 113:6
warranted 30:1
wash 123:25,27 124:3,7
Washington 28:7
watch 33:14 43:7
watching 33:8 36:23,24
water 20:2
watermarks 96:24
ways 11:22 27:1
weakling 40:22
wear 136:10
wearing 85:22
week 124:3,10
weekend 143:10,17
weeks 18:14 74:21
weigh 137:12
weighs 88:5
weight 88:6 137:18, 26
weird 25:19 38:13 43:4 49:14 59:26
well-funded 72:17
whatnot 76:21
whatsoever 35:22 39:16 121:18 131:21
wheels 85:8
white 23:26 26:8 27:11 84:11 123:6
whoa 44:14 56:3 58:23 60:4
wife 46:2 54:7,24 69:23 70:28 123:12 142:1
wild 66:20
window 77:25,28 140:6
wing 69:19
woke 69:5
wondering 48:4
Wong 10:20 62:24 66:10,19 81:14
word 14:25 69:22 90:23 138:26
words 14:17,22 28:28 37:15 60:2 74:1 136:24 138:19 139:16
work 8:28 18:2 19:4 29:1 32:2 40:25 72:12 136:28 145:22 149:1
worked 18:22 58:1
working 20:4 48:8 106:7,13
workplace 18:6
works 40:11 59:4

69:24

world 28:11

worried 27:28 69:8, 16,17 71:26 142:1

worry 69:11

wound 34:23,24,26

wounds 57:6

wow 31:14 38:17 74:15

wrap 70:4,5,6,7

written 17:17

wrong 21:5 24:19 44:12 50:19

wrote 7:18 73:3 83:25

X

x-ray 54:14,24 56:27 60:1,2

x-rays 59:25 60:9,14 61:7

Y

Yakamoto 59:24

Yamamoto 59:24 60:14

year 22:8

years 26:15 37:8 50:22 75:7 78:10 86:12

yell 115:5 139:13,22

yelled 32:24 34:19 35:18,19

yelling 29:16,18 31:9, 10,11 32:7 37:11,12,16 45:11 74:13 110:18 115:4,25 117:9,12 118:27 119:23 120:12 121:3 128:11 133:24 134:2,4 138:10,15,16, 20,22,24,27 139:2,5,8, 15,20 140:20

yellow 21:19 84:17,18

yes-or-no 95:3 123:23

yesterday 5:9,26 7:8,23 9:25 17:13 21:13,26 30:20 50:21 52:25 95:24 97:4 98:23 101:14 102:22

yield 130:4,12

yielding 91:18

young 58:22 67:10,22

Z

Zuckerberg 57:3,10 58:4 60:15 67:4